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Babylonians And Assyrians

Life And Customs

By The

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London

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Edited By

James Alexander Craig

Professor of Semitic Languages and Literatures and Hellenistic Greek, University of Michigan

Recent scientific research has stimulated an increasing interest in the study of the Babylonians, Assyrians, and allied Semitic races of ancient history among scholars, students, and the serious reading public generally. It has provided us with a picture of a hitherto unknown civilization, and a history of one of the great branches of the human family. The object of the present Series is to state its results in popularly scientific form. Each work is complete in itself, and the Series, taken as a whole, neglects no phase of the general subject. Each contributor is a specialist in the subject assigned him, and has been chosen from the body of eminent Semitic scholars both in Europe and America.

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EDITOR’S PREFACE

Semitic studies, both linguistically and archæologically, have advanced by rapid strides during the last two decades. Fresh light has fallen upon the literary, scientific, theological, mercantile, and other achievements of this great branch of the human family. What these peoples thought and achieved has a very direct bearing upon some of the problems that lie nearest to the hearts of a large portion of the intelligent peoples of Christendom to-day. Classical studies no longer enjoy a monopoly of attention in the curricula of our colleges and universities. It is, in fact, more and more plainly perceived by scholars that among the early peoples who have contributed to the ideas inwrought into our present civilization there is none to whom we owe a greater debt than we do to the Semitic family. Apart from the genetic relation which the thought of these peoples bears to the Christianity of the past and present, a study of their achievements in general has become a matter of general human interest. It is here that we find the earliest beginnings of civilization historically known to us—here that early religious ideas, social customs and manners, political organizations, the beginnings of art and architecture, the rise and growth of mythological ideas that have endured and spread to western nations, can be seen in their earliest stages, and here alone the information is supplied which enables us to follow them most successfully in their development.

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James Alexander Craig.

University of Michigan,

September, 1899.

CHAPTER I. BABYLONIA AND ITS INHABITANTS

Babylonia was the gathering-place of the nations. Berossus, the Chaldean historian, tells us that after the creation it was peopled by a mixture of races, and we read in the book of Genesis that Babel, or Babylon, was the first home of the manifold languages of mankind. The country for the most part had been won from the sea; it was the gift of the two great rivers, Euphrates and Tigris, which once flowed separately into the Persian Gulf. Its first settlers must have established themselves on the desert plateau which fringes the Babylonian plain rather than in the plain itself.

The plain is formed of the silt deposited each year by the rivers that flow through it. It is, in fact, as much a delta as Northern Egypt, and is correspondingly fertile. Materials exist for determining approximately the rate at which this delta has been formed. The waters of the Persian Gulf are continually receding from the shore, and Ainsworth(1) calculates that about ninety feet of land are added annually to the coast-line. But the rate of deposit seems to have been somewhat more rapid in the past. At all events, Mohammerah, which in 1835 was forty-seven miles distant from the Gulf, stands on the site of Spasinus Charax, which, in the time of Alexander the Great, was not quite a mile from the sea. In 2,160 years, therefore, no less than forty-six miles of land have been formed at the head of the Persian Gulf, or nearly one hundred and fifteen feet each year.

The deposit of soil, however, may not have been so rapid in the flourishing days of Babylonian history, when the canals were carefully attended to and the irrigation of the country kept under control. It is safer, therefore, to assume for the period preceding the rise of the Macedonian Empire a rate of deposit of not more than one hundred feet each year. The seaport of primitive Chaldea was Eridu, not far from Ur, and as the mounds of Abu-Shahrein or Nowâwis, which now mark its site, are nearly one hundred and thirty miles from the present line of coast, we must go back as far as 6500 B.C. for the foundation of the town. “Ur of the Chaldees,” as it is called in the Book of Genesis, was some thirty miles to the north, and on the same side of the Euphrates; the ruins of its great temple of the Moon-god are now known by the name of Muqayyar or Mugheir. It must have been founded on the sandy plateau of the Arabian desert at a time when the plain enclosed between the Tigris and the Euphrates was still too marshy for human habitation. As the Moon-god of Ur was held to be the son of El-lil of Nippur, Dr. Peters is doubtless right in believing that Ur was a colony of the latter city. Nippur is the modern Niffer or Nuffar in the north of Babylonia, and recent excavations have shown that its temple was the chief sanctuary and religious centre of the civilized eastern world in the earliest epoch to which our records reach. Eridu, Ur, and Nippur seem to have been the three chief cities of primeval Babylonia. As we shall see in a future chapter, Eridu and Nippur were the centres from which the early culture and religion of the country were diffused. But there was an essential difference between them. Ea, the god of Eridu, was a god of light and beneficence, who employed his divine wisdom in healing the sick and restoring the dead to life. He had given man all the elements of civilization; rising each morning out of his palace under the waters of the deep, he taught them the arts and sciences, the industries and manners, of civilized life. El-lil of Nippur, on the contrary, was the lord of the underworld; magical spells and incantations were his gifts to mankind, and his kingdom was over the dead rather than the living. The culture which emanated from Eridu and Nippur was thus of a wholly different kind. Is it possible that the settlers in the two cities were of a different race?

Of this there is no proof. Such evidence as we have tells against it. And the contrast in the character of the cultures of Eridu and Nippur can be explained in another way. Eridu was a seaport; its population was in contact with other races, and its ships traded with the coasts of Arabia. The myth which told how Ea or Oannes had brought the elements of civilization to his people expressly stated that he came from the waters of the Persian Gulf. The culture of Eridu may thus have been due to foreign intercourse; Eridu was a city of merchants and sailors, Nippur of sorcerer-priests.

Eridu and Nippur, however, alike owed their origin to a race which we will term Sumerian. Its members spoke agglutinative dialects, and the primitive civilization of Babylonia was their creation. They were the founders of its great cities and temples, the inventors of the pictorial system of writing out of which the cuneiform characters subsequently developed, the instructors in culture of their Semitic neighbors. How deep and far-reaching was their influence may be gathered from the fact that the earliest civilization of Western Asia finds its expression in the Sumerian language and script. To whatever race the writer might belong he clothed his thoughts in the words and characters of the Sumerian people. The fact makes it often difficult for us to determine whether the princes of primitive Chaldea whose inscriptions have come down to us were Semites or not. Their very names assume Sumerian forms.

It was from the Sumerian that the Semite learnt to live in cities. His own word for “city” was _âlu_, the Hebrew _’ohel_ “a tent,” which is still used in the Old Testament in the sense of “home;” the Hebrew _’îr_ is the Sumerian _eri_. _Ekallu_, the Hebrew _hêkal_, “a palace,” comes from the Sumerian _ê-gal_ or “great house;” the first palaces seen by the Semitic nomad must have been those of the Chaldean towns.

But a time came when the Semite had absorbed the culture of his Sumerian teachers and had established kingdoms of his own in the future Babylonia. For untold centuries he lived in intermixture with the older population of the country, and the two races acted and re-acted on each other. A mixed people was the result, with a mixed language and a mixed form of religion. The Babylonia of later days was, in fact, a country whose inhabitants and language were as composite as the inhabitants and language of modern England. Members of the same family had names derived from different families of speech, and while the old Sumerian borrowed Semitic words which it spelt phonetically, the Semitic lexicon was enriched with loan-words from Sumerian which were treated like Semitic roots.

The Semite improved upon the heritage he had received. Even the system of writing was enlarged and modified. Its completion and arrangement are due to Semitic scribes who had been trained in Sumerian literature. It was probably at the court of Sargon of Akkad that what we may term the final revision of the syllabary took place. At all events, after his epoch the cuneiform script underwent but little real change.

Sargon was the founder of the first Semitic empire in Asia. His date was placed by the native historians as far back as 3800 B.C., and as they had an abundance of materials at their disposal for settling it, which we do not possess, we have no reason to dispute it. Moreover, it harmonizes with the length of time required for bringing about that fusion of Sumerian and Semitic elements which created the Babylonia we know. The power of Sargon extended to the Mediterranean, even, it may be, to the island of Cyprus. His conquests were continued by his son and successor Naram-Sin, who made his way to the precious copper-mines of the Sinaitic peninsula, the chief source of the copper that was used so largely in the work of his day. “The land of the Amorites,” as Syria was called, was already a Babylonian province, and he could therefore march in safety toward the south through the desert region which was known as Melukhkha.

How long the empire of Sargon lasted we do not know. But it spread Babylonian culture to the distant west and brought it to the very border of Egypt. It was, too, a culture which had become essentially Semitic; the Sumerian elements on which it was based had been thoroughly transformed. What Babylonian civilization was in the latest days of Chaldean history, that it already was, to all intents and purposes, in the age of Sargon. The Sumerian and the Semite had become one people.

But the mixture of nationalities in Babylonia was not yet complete. Colonies of Amorites, from Canaan, settled in it for the purposes of trade; wandering tribes of Semites, from Northern Arabia, pastured their cattle on the banks of its rivers, and in the Abrahamic age a line of kings from Southern Arabia made themselves masters of the country, and established their capital at Babylon. Their names resembled those of Southern Arabia on the one hand, of the Hebrews on the other, and the Babylonian scribes were forced to give translations of them in their own language.

But all these incomers belonged to the Semitic race, and the languages they spoke were but varieties of the same family of speech. It is probable that such was the case with the Kaldâ, who lived in the marshes at the mouth of the Euphrates, and from whom classical geography has derived the name of Chaldean. The extension of the name to the whole population of Babylonia was due to the reign of the Kaldâ prince, Merodach-baladan, at Babylon. For years he represented Babylonian freedom in its struggle with Assyria, and his “Chaldean” subjects became an integral part of the population. Perhaps, too, the theory is right which makes Nebuchadnezzar of Kaldâ descent. If so, there is a good reason why the inhabitants of Babylonia should have become “Chaldeans” in the classical age.

Of wholly different origin were the Kassites, mountaineers from the east of Elam, who conquered Babylonia, and founded a dynasty of kings which lasted for several centuries. They also gave their name to the population of the country, and, in the Tel-el-Amarna tablets, accordingly, the natives of Babylonia are known as “Kassi.” Sennacherib found their kinsfolk in the Elamite mountains, and here they still lived in the age of the Greek writers. Strabo calls them Kosseans, and it seems probable that they are the same as the Kissians, after whom the whole of Elam was named. At any rate the Kassites were neither Sumerians nor Semites; and their language, of which several words have been preserved, has no known connections. But they left their mark upon the Babylonian people, and several family names were borrowed from them.

The Babylonian was thus a compound of Sumerian, Semitic, and Kassite elements. They all went to form the culture which we term Babylonian, and which left such enduring traces on Western Asia and the world. Mixed races are invariably the best, and the Babylonians were no exception to the rule. We have only to compare them with their neighbors, the more purely blooded Semitic Assyrians, to assure ourselves of the fact. The culture of Assyria was but an imitation and reflection of that of Babylonia—there was nothing original about it. The Assyrian excelled only in the ferocities of war, not in the arts of peace. Even the gods of Assyria had migrated from the southern kingdom.

The dual character of Babylonian civilization must never be forgotten. It serves to explain a good deal that would otherwise be puzzling in the religious and social life of the people. But the social life was also influenced and conditioned by the peculiar nature of the country in which the people lived. It was an alluvial plain, sloping toward the sea, and inundated by the overflow of the two great rivers which ran through it. When cultivated it was exceedingly fertile; but cultivation implied a careful regulation of the overflow, as well as a constant attention to the embankments which kept out the waters, or to the canals which drained and watered the soil.

The inhabitants were therefore, necessarily, agriculturists. They were also irrigators and engineers, compelled to study how best to regulate the supply of water, to turn the pestiferous marsh into a fruitful field, and to confine the rivers and canals within their channels. Agriculture and engineering thus had their natural home in Babylonia, and originated in the character of the country itself.

The neighborhood of the sea and the two great waterways which flanked the Babylonian plain further gave an impetus to trade. The one opened the road to the spice-bearing coasts of Southern Arabia and the more distant shores of Egypt; the other led to the highlands of Western Asia. From the first the Babylonians were merchants and sailors as well as agriculturists. The “cry” of the Chaldeans was “in their ships.” The seaport of Eridu was one of the earliest of Babylonian cities; and a special form of boat took its name from the more inland town of Ur. While the population of the country devoted itself to agriculture, the towns grew wealthy by the help of trade.

Their architecture was dependent on the nature of the country. In the alluvial plain no stone was procurable; clay, on the other hand, was everywhere. All buildings, accordingly, were constructed of clay bricks, baked in the sun, and bonded together with cement of the same material; their roofs were of wood, supported, not unfrequently, by the stems of the palm. The palm stems, in time, became pillars, and Babylonia was thus the birthplace of columnar architecture. It was also the birthplace of decorated walls. It was needful to cover the sun-dried bricks with plaster, for the sake both of their preservation and of appearance. This was the origin of the stucco with which the walls were overlaid, and which came in time to be ornamented with painting. Ezekiel refers to the figures, portrayed in vermilion, which adorned the walls of the houses of the rich.

The want of stone and the abundance of clay had another and unique influence upon Babylonian culture. It led to the invention of the written clay tablet, which has had such momentous results for the civilization of the whole Eastern world. The pictures with which Babylonian writing began were soon discarded for the conventional forms, which could so easily be impressed by the stylus upon the soft clay. It is probable that the use of the clay as a writing material was first suggested by the need there was in matters of business that the contracting parties should record their names. The absence of stone made every pebble valuable, and pebbles were accordingly cut into cylindrical forms and engraved with signs. When the cylinder was rolled over a lump of wet clay, its impress remained forever. The signs became cuneiform characters, and the Babylonian wrote them upon clay instead of stone.

The seal-cylinder and the use of clay as a writing material must consequently be traced to the peculiar character of the country in which the Babylonian lived. To the same origin must be ascribed his mode of burial. The tomb was built of bricks; there were no rocky cliffs in which to excavate it, and the marshy soil made a grave unsanitary. It was doubtless sanitary reasons alone that caused wood to be heaped about the tomb after an interment and set on fire so that all within it was partially consumed. The narrow limits of the Babylonian plain obliged the cemetery of the dead to adjoin the houses of the living, and cremation, whether partial or complete, became a necessity.

Even the cosmogony of the Babylonians has been influenced by their surroundings. The world, it was believed, originated in a watery chaos, like that in which the first settlers had found the Babylonian plain. The earth not only rested on the waters, but the waters themselves, dark and unregulated, were the beginning of all things. This cosmological conception was carried with the rest of Babylonian culture to the West, and after passing through Canaan found its way into Greek philosophy. In the Book of Genesis we read that “darkness was on the face of the deep” before the creative spirit of God brooded over it, and Thales, the first of Greek philosophers, taught that water was the principle out of which all things have come.

The fertility of the Babylonian soil was remarkable. Grain, it was said, gave a return of two hundred for one, sometimes of three hundred for one. Herodotus, or the authority he quotes, grows enthusiastic upon the subject. “The leaf of the wheat and barley,” he says, “is as much as three inches in width, and the stalks of the millet and sesamum are so tall that no one who has never been in that country would believe me were I to mention their height.” In fact, naturalists tell us that Babylonia was the primitive home of the cultivated cereals, wheat and probably barley, and that from the banks of the Euphrates they must have been disseminated throughout the civilized world. Wheat, indeed, has been found growing wild in our own days in the neighborhood of Hit.

The dissemination of wheat goes back to a remote epoch. Like barley, it is met with in the tombs of that prehistoric population of Egypt which still lived in the neolithic age and whose later remains are coeval with the first Pharaonic epoch. The fact throws light on the antiquity of the intercourse which existed between the Euphrates and the Nile, and bears testimony to the influence already exerted on the Western world by the culture of Babylonia. We have, indeed, no written records which go back to so distant a past; it belongs, perhaps, to an epoch when the art of writing had not as yet been invented. But there was already civilization in Babylonia, and the elements of its future social life were already in existence. Babylonian culture is immeasurably old.

CHAPTER II. THE FAMILY

Two principles struggled for recognition in Babylonian family life. One was the patriarchal, the other the matriarchal. Perhaps they were due to a duality of race; perhaps they were merely a result of the circumstances under which the Babylonian lived. At times it would seem as if we must pronounce the Babylonian family to have been patriarchal in its character; at other times the wife and mother occupies an independent and even commanding position. It may be noted that whereas in the old Sumerian hymns the woman takes precedence of the man, the Semitic translation invariably reverses the order: the one has “female and male,” the other “male and female.” Elsewhere in the Semitic world, where the conceptions of Babylonian culture had not penetrated, the woman was subordinate to the man, his helpmate and not his equal.

In this respect nothing can be more significant than the changes undergone by the name and worship of the goddess Istar, when they were carried from Babylonia to the Semites of the West. In Babylonia she was a goddess of independent power, who stood on a footing of equality with the gods. But in Southern Arabia and Moab she became a male divinity, and in the latter country was even identified with the supreme god Chemosh. In Canaan she passed into the feminine Ashtoreth, and at last was merged in the crowd of goddesses who were but the feminine reflections of the male. A goddess whose attributes did not differ from those of a god was foreign to the religious ideas of the purely Semitic mind.

It was otherwise in Babylonia. There the goddess was the equal of the god, while on earth the women claimed rights which placed them almost on a level with the men. One of the early sovereigns of the country was a queen, Ellat-Gula, and even in Assyria the bas-reliefs of Assur-bani-pal represent the queen as sitting and feasting by the side of her husband. A list of trees brought to Akkad in the reign of Sargon (3800 B.C.) speaks of them as having been conveyed by the servants of the queen, and if Dr. Scheil is right in his translation of the Sumerian words, the kings of Ur, before the days of Abraham, made their daughters high-priestesses of foreign lands.

Up to the last the Babylonian woman, in her own name, could enter into partnership with others, could buy and sell, lend and borrow, could appear as plaintiff and witness in a court of law, could even bequeath her property as she wished. In a deed, dated in the second year of Nabonidos (555 B.C.), a father transfers all his property to his daughter, reserving to himself only the use of it during the rest of his life. In return the daughter agrees to provide him with the necessaries of life, food and drink, oil and clothing. A few years later, in the second year of Cyrus, a woman of the name of Nubtâ, or “Bee,” hired out a slave for five years in order that he might be taught the art of weaving. She stipulated to give him one _qa_, or about a quart and a half of food, each day, and to provide him with clothing while he was learning the trade. It is evident that Nubtâ owned looms and traded in woven fabrics on her own account.

Nubtâ was the daughter of Ben-Hadad-amara, a Syrian _settled_ in Babylonia who had been adopted by another Syrian of the name of Ben-Hadad-nathan. After the latter’s death his widow brought an action before the royal judges to recover her husband’s property. She stated that after their marriage she and Ben-Hadad-nathan had traded together, and that a house had been purchased with a portion of her dowry. This house, the value of which was as much as 110 manehs, 50 shekels, or £62 10s., had been assigned to her in perpetuity. The half-brother Aqabi-il (Jacob-el), however, now claimed everything, including the house. The case was tried at Babylon before six judges in the ninth year of Nabonidos, and they decided in favor of the plaintiff.

One of the documents that have come down to us from the age of Abraham records the gift of a female slave by a husband to his wife. The slave and her children, it was laid down, were to remain the property of the wife in case either of divorce or of the husband’s death. The right of the woman to hold private property of her own, over which the male heirs had no control, was thus early recognized by the law. In later times it is referred to in numberless contracts. In the reign of Nebokin-abla, for instance, in the eleventh century B.C., we find a field bequeathed first of all to a daughter and then to a sister; in the beginning of the reign of Nabonidos we hear of a brother and sister, the children of a naturalized Egyptian, inheriting their father’s property together; and in the fourth year of Cyrus his son Cambyses sued for the payment of a loan which he had made to a Babylonian on the security of some house-property, and which was accordingly refunded by the debtor’s wife. Other deeds relate to the borrowing of money by a husband and his wife in partnership, to a wife selling a slave for a maneh of silver on her own account, to a woman bringing an action before six judges at the beginning of the reign of Nabonidos to recover the price of a slave she had sold, and to another woman who two years previously was the witness to the sale of a house. Further proofs are not needed of the independent position of the woman, whether married or single, and of her equality with the man in the eyes of the law.

It would seem that she was on a level with him also in the eyes of religion. There were priestesses in Babylonia as well as priests. The oracles of Istar at Arbela were worked by inspired prophetesses, who thus resembled Deborah and Huldah and the other prophetesses of Israel. When Esar-haddon inquired of the will of heaven, it was from the prophetesses of Istar that he received encouragement and a promise of victory. From the earliest period, moreover, there were women who lived like nuns, unmarried and devoted to the service of the Sun-god. The office was held in high honor, one of the daughters of King Ammi-Zadok, the fourth successor of Khammurabi or Amraphel, being a devotee of the god. In the reign of the same king we find two of these devotees and their nieces letting for a year nine feddans or acres of ground in the district in which the “Amorites” of Canaan were settled. This was done “by command of the high-priest Sar-ilu,” a name in which Mr. Pinches suggests that we should see that of Israel. The women were to receive a shekel of silver, or three shillings, “the produce of the field,” by way of rent, while six measures of corn on every ten feddans were to be set apart for the Sun-god himself. In the previous reign a house had been let at an annual rent of two shekels which was the joint property of a devotee of the Sun-god Samas and her brother. It is clear that consecration to the service of the deity did not prevent the “nun” from owning and enjoying property.

Like Samas, the Sun-god, Istar was also served by women, who, however, do not seem to have led the same reputable lives. They were divided into two classes, one of which was called the “Wailers,” from the lamentations with which each year they mourned the death of the god Tammuz, the stricken favorite of Istar. The Chaldean Epic of Gilgames speaks of the “troops” of them that were gathered together in the city of Erech. Here Istar had her temple along with her father, Anu, the Sky-god, and here accordingly her devotees were assembled. Like the goddess they served, it would appear that they were never married in lawful wedlock. But they nevertheless formed a corporation, like the corporations of the priests.

Babylonian law and custom prevailed also in Assyria. So far as can be gathered from the contracts that have come down to us, the Assyrian women enjoyed almost as many privileges as their sisters in Babylonia. Thus, in 668 B.C., we find a lady, Tsarpi by name, buying the sister of a man whose slave she was, for reasons unknown to us, and paying half a maneh of silver (£4 10s.) for the girl. Tsarpi was a “prefectess,” like another lady who is called “the prefectess of Nineveh,” and who, in 683 B.C., purchased seventeen slaves and a garden. It is plain from this that women could hold civil offices and even act as governors of a city.

In fact, wherever Babylonian culture and law extended, the principles and practice of it were necessarily in force. The Amorite colonies from Canaan established in Babylonia for the purposes of trade in the age of Abraham were naturally subject to the Babylonian laws, and the women among them possessed all the rights of their Babylonian neighbors. At the very beginning of the dynasty to which Khammurabi belonged, an Amorite lady, a certain Kuryatum, brought an action for the recovery of a field which had been the property of her father, Asalia, and won her suit. Kuryatum and her brother were themselves subsequently sued by three other “Amorites,” the children of Izi-idrê, one of whom was a woman, for a field and house, together with some slaves and palm-trees, of which, it was asserted, they had wrongfully taken possession. The judges, however, after hearing both sides, dismissed the case.

It is not strange that the same laws and principles should have held good in Canaan itself, which was so long a Babylonian province. Sarah, who was of Babylonian origin, owned a female slave (Gen. xvi. 2, 6, 8, 9), and the Kennizzite Caleb assigned a field with springs to his daughter Achsah in the early days of the invasion of Canaan (Josh. xv. 18, 19). A Canaanitish lady takes part in the Tel-el-Amarna correspondence, and writes to the Pharaoh on matters of state, while the Mosaic Law allowed the daughter to inherit the possessions of her father (Numb. xxxvi. 8). This, however, was only the case where there was no son; after the Israelitish conquest of Canaan, when the traditions of Babylonian custom had passed away, we hear no more of brothers and sisters sharing together the inheritance of their father, or of a wife bequeathing anything which belongs to her of right. As regards the woman, the law of Israel, after the settlement in Canaan, was the moral law of the Semitic tribes. We must go back to the age of Abraham and Sarah to find a Hebrew woman possessed of the same powers as the Babylonian lady who, in the fifth year of Cambyses, sold a slave for two manehs and five shekels of silver, her husband and mother guaranteeing the value of the chattel that was thus sold.

The dowry which the woman brought with her on marriage secured of itself her independence. It was her absolute property, and she could leave it by will as she pleased. It protected her from tyrannical conduct on the part of her husband, as well as from the fear of divorce on insufficient grounds. If a divorce took place the dowry had to be restored to her in full, and she then returned to her father’s house or set up an establishment of her own. Where no dowry had been brought by the bride, the husband was often required by the marriage contract to pay her a specified sum of money in case of her divorce. Thus a marriage contract made in Babylon in the thirteenth year of Nebuchadnezzar stipulates that, if the husband marries a second wife, the act shall be equivalent to a divorce of the first wife, who shall accordingly receive not only her dowry, but a maneh of silver as well. The payment, in fact, was a penalty on the unfaithfulness of the husband and served as a check upon both divorce and polygamy.

The dowry consisted not of money alone, but also of slaves and furniture, the value of which was stated in the marriage contract. In the contract just referred to, for instance, part of the dowry consisted of a slave who was valued at half a maneh. Sometimes the dowry included cattle and sheep. In the sixth year of Nabonidos we hear of three slaves and “furniture with which to stock the house,” besides a maneh of silver (£6), being given as the marriage-portion. In this instance, however, the silver was not forthcoming on the wedding-day, and in place of it a slave valued at two-thirds of a maneh was accepted, the remaining third being left for payment at a subsequent date. Where the dowry could not be paid at once, security for the payment of it was taken by the bridegroom.

The payment was made, not by the bridegroom, as among the Israelites and other Semitic peoples, but by the father of the bride. If he were dead, or if the mother of the bride had been divorced and was in the enjoyment of her own property, the mother took the place of the father and was expected to provide the dowry. In such a case she also naturally gave permission for the marriage, and it was from her accordingly that consent to it had to be obtained. In one instance, however, in a deed dated in the sixteenth year of Nabonidos, a sister is given in marriage by her two brothers, who consequently furnish the dowry, consisting of a piece of ground inherited from the mother, a slave, clothes, and furniture. It is evident that in this case both the parents must have been dead.

It was the bridegroom’s duty and interest to see that the dowry was duly paid. He enjoyed the usufruct of it during his life, and not unfrequently it was employed not only to furnish the house of the newly married couple, but also to start them in business. It was with his wife’s dowry that Ben-Hadad-nathan bought in part the house to which his widow laid claim after his death, and we read of instances in which the husband and wife enter into partnership in order to trade with the wife’s money. More frequently the wife uses her dowry to transact business separately, her purchases and loans being made in her own name; this is especially the case if she otherwise has property of her own.(2)

At times the son-in-law found it difficult to get the dowry paid. From a deed dated in the third year of Cambyses we gather that the dowry, instead of being delivered “into the hand” of the bridegroom, as ought to have been done at the time of the marriage, was still unpaid nine years later. Sometimes, of course, this was due to the inability of the father-in-law to discharge his debt, through bankruptcy, death, or other causes. Where, therefore, the money was not immediately forthcoming, security was taken for its future payment. If payment in full was impossible, owing to pecuniary losses incurred after the marriage contract had been drawn up, the bridegroom was entitled to claim a proportionate amount of it on behalf of his wife. The heirs were called upon to pay what was due if the father-in-law died between the drawing-up of the contract and the actual marriage, and when the wife died without children it returned to her “father’s house.”

If the husband died and his widow married again, she carried her former dowry with her. In such a case the children of the first marriage inherited two-thirds of it upon her death, the remaining third going to the children of the second husband. This was in accordance with a law which regulated the succession to the property of a father who had married a second time, the children of the first marriage receiving two-thirds of it and the remainder being reserved for the children of the second wife. The law could only be overruled by a will made during the man’s lifetime, and properly attested by witnesses.

The dowry could not be alienated by the wife without the consent of her parents, if they were still alive. In the year of Nergal-sharezer’s accession, for example, a certain Nergal-ballidh and his wife Dhibtâ wished to sell a slave, who had constituted the dowry of Dhibtâ, for twenty-five shekels, but the sale was not considered valid until the consent of both her father and mother had been obtained.

The dowry was not the only property the woman was able to hold. She had similar power to hold and dispose of whatever else had come to her by inheritance or gift. The gains she made in business, the proceeds of the sale of her estates, and the interest upon the capital she lent, all belonged to herself, and to herself alone. For purposes of succession they were reckoned along with the dowry as constituting her property during life. In the thirty-fourth year of Nebuchadnezzar, for instance, a father stipulates that the creditors of his daughter’s father-in-law should have no claim either upon her dowry or upon any other part of her possessions.

The power of the married woman over her property was doubtless the result of the system which provided her with a dowry. The principle of her absolute control over the latter once admitted, it was extended by the law to the rest of her estate. She thus took rank by the side of the man, and, like him, could trade or otherwise deal with her property as she chose. The dowry, in fact, must have been her original charter of freedom.

But it was so because it was given by her father, and not by the bridegroom. Where it was the gift of the bridegroom it was but a civilized form of purchasing the bride. In such a case the husband had a right to the person and possessions of the wife, inasmuch as he had bought her; as much right, in fact, as he had to the person and possessions of a slave. The wife was merely a superior slave.

Where, however, the dowry was the gift of the bride’s father the conditions were reversed. The husband received not only a wife, he received also an estate along with her. He it was upon whom the benefit was conferred, and he had to accept the conditions offered him, not to make them. In a commercial state like Babylonia, property represented personalty, and the personalty of the wife accordingly remained with the family from which her property was derived, rather than with the husband, to whom the use of it was lent. Hence the independence of the married woman in Babylonia and her complete freedom of action as regards her husband. The property she possessed, the personalty it represented, belonged to herself alone.

Traces, however, may be detected of an older order of things, which once existed, at all events, in the Semitic element of the Babylonian population. The dowry had to be paid to the husband, to be deposited, as it were, in his “hand.” It was with him that the marriage contract was made. This must surely go back to an age when the marriage portion was really given to the bridegroom, and he had the same right over it as was enjoyed until recently by the husband in England. Moreover, the right of divorce retained by the husband, like the fact that the bride was given away by a male relation, points in the same direction. According to an early Sumerian law, while the repudiation of the wife on the part of the husband was punishable only with a small fine, for the repudiation of the husband by the wife the penalty was death. A deed drawn up in the time of Khammurabi shows that this law was still in force in the age of Abraham. It lays down that if the wife is unfaithful to her husband she may be drowned, while the husband can rid himself of his wife by the payment only of a maneh of silver. Indeed, as late as the time of Nebuchadnezzar, the old law remained unrepealed, and we find a certain Nebo-akhi-iddin, who married a singing-woman, stipulating in the marriage contract that if he should divorce her and marry another he was to pay her six manehs, but if, on the contrary, she committed adultery, she should be put to death with “an iron sword.”

In this instance, however, the husband married beneath him, and in view of the antecedents of the wife the penalty with which she was threatened in case of unfaithfulness was perhaps necessary. She came to him, moreover, without either a dowry or family relations who could give her away. She was thus little better than the concubines whom the Babylonian was allowed to keep by the side of his lawful wife. But even so, the marriage contract had to be made out in full legal form, and the penalty to be paid for her divorce was as much as £54. With this she could have lived comfortably and probably have had no difficulty in finding another husband.

The concubine was usually a slave who had been bought by the bridegroom. Occasionally, by agreement with the parents, the wife herself was in much the same position. Thus Dagil-ili, who married the daughter of a lady named Khammâ, gave the mother one and a half manehs of silver and a slave worth half a maneh, and agreed that if he married another wife he would give her daughter a maneh and send her back to her old home. Here the husband practically buys his wife, though even so the law obliged him to divorce her if he married again, and also fined him for doing so. Khammâ was apparently in financial difficulties, and consequently, instead of furnishing her daughter with a dowry, received money from the bridegroom. It was a private arrangement, and utterly opposed to the usual custom. The parents had, however, the power of selling their children before they came of age, and where the parents were dead, the same power was possessed—at any rate in Assyria—by a brother in the case of a sister. Doubtless the power was restricted by law, but the instances in which we hear of its being exercised are so rare that we do not know what these restrictions were.

Nor do we know the reasons which were considered sufficient to justify divorce. The language of the early laws would seem to imply that originally it was quite enough to pronounce the words: “Thou art not my wife,” “Thou art not my husband.” But the loss of the wife’s dowry and the penalties attached to divorce must have tended to check it on the part of the husband, except in exceptional circumstances. Perhaps want of children was held to be a sufficient pretext for it; certainly adultery must have been so. Another cause of divorce was a legal one: a second marriage invalidated the first, if the first wife was still alive.

This is a very astonishing fact in a country where polygamy was allowed. It proves that polygamy was greatly restricted in practice, and that the tendency of the law was to forbid it altogether. Among the multitudinous contracts of the second Babylonian empire it is difficult to find any which show that a man had two legitimate wives living at one and the same time. The high position of the mother of the family, her independence and commercial equality with her husband, were all against it. It is only where the wife is a bought slave that polygamy can flourish.

In early times, it is true, the rich Babylonian indulged in the possession of more than one wife. Some contracts of the age of Khammurabi, translated by Mr. Pinches, are particularly instructive in this respect. We hear in them of a certain Arad-Samas, who first married a lady called Taram-Sagila and then her adopted sister Iltani. Iltani, it is ordained, shall be under the orders of her sister, shall prepare her food, carry her chair to the Temple of Merodach, and obey her in all things. Not a word is said about the divorce of the first wife; it is taken for granted that she is to remain at the head of the household, the younger and second wife acting as her servant. The position of Iltani, in fact, is not very different from that of a slave, and it is significant that neither wife brought a dowry with her.

As we have seen in the case of Dagil-ili, the law and custom of later Babylonia display a complete change of feeling and practice. Marriage with a second wife came to involve, as a matter of course, divorce from the first, even where there had been a _mésalliance_ and the first wife had been without a dowry. The woman had thus gained a second victory; the rule that bound her in regard to marriage was now applied to the man. The privilege of marrying two husbands at once had been denied her; usage was now denying a similar privilege to him. It was only when the first wife was dead or divorced that a second could be taken; the wife might have a successor, but not a rival.

The divorced wife was regarded by the law as a widow, and could therefore marry again. A deed of divorce, dated in the reign of the father of Khammurabi, expressly grants her this right. To the remarriage of the widow there was naturally no bar; but the children by the two marriages belonged to different families, and were kept carefully distinct. This is illustrated by a curious deed drawn up at Babylon, in the ninth year of Nabonidos. A certain Bel-Katsir, who had been adopted by his uncle, married a widow who already had a son. She bore him no children, however, and he accordingly asked the permission of his uncle to adopt his step-son, thereby making him the heir of his uncle’s property. To this the uncle objected, and it was finally agreed that if Bel-Katsir had no child he was to adopt his own brother, and so secure the succession of the estate to a member of his own family. The property of the mother probably went to her son; but she had the power to leave it as she liked. This may be gathered from a will, dated in the seventh year of Cyrus, in which a son leaves property to his father in case of death, which had come to him from his maternal grandfather and grandmother. The property had been specially bequeathed to him, doubtless after his mother’s death, the grandmother passing over the rest of her descendants in his favor.

The marriage ceremony was partly religious, partly civil; no marriage was legally valid without a contract duly attested and signed. The Babylonians carried their business habits into all departments of life, and in the eyes of the law matrimony was a legal contract, the forms of which had to be duly observed. In the later days of Babylonian history the legal and civil aspect of the rite seems to have been exclusively considered, but at an earlier period it required also the sanction of religion; and Mr. Pinches has published a fragmentary Sumerian text in which the religious ceremony is described. Those who officiated at it, first placed their hands and feet against the hands and feet of the bridegroom, then the bride laid her neck by the side of his, and he was made to say to her: “Silver and gold shall fill thy lap; thou art my wife; I am thy husband. Like the fruit of an orchard will I give thee offspring.” Next came the ceremony of binding the sandals on the feet of the newly wedded pair and of handing them the latchet wherewith the shoes should be tied, as well as “a purse of silver and gold.” The purse perhaps symbolized the dowry, which was given by the father of the bride. In the time of Nebuchadnezzar the ceremony was restricted to joining together the hands of the bride and bridegroom.

Contact with the Assyrians and Babylonians in the Exilic period introduced the Babylonian conception of the legal character of marriage among the Israelites, and, contrary to the older custom, it became necessary that it should be attested by a written contract. Thus, Raguel, when he gave his daughter “to be wife to Tobias,” “called Edna, his wife, and took paper and did write an instrument of covenants, and sealed it” (Tobit vii. 14).

According to Herodotus, a gigantic system of public prostitution prevailed in Babylonia. Every unmarried woman was compelled to remain in the sacred enclosure of Mylitta—by which Istar is apparently meant—until some stranger had submitted to her embraces, while the sums derived from the sale of their personal charms by the handsome and good-looking provided portions for the ugly. Of all this there is not a trace in the mass of native documents which we now possess. There were the devotees of Istar, certainly—the _ukhâtu_ and _kharimâtu_—as well as public prostitutes, who were under the protection of the law; but they formed a class apart, and had nothing to do with the respectable women of the country. On the contrary, in the age of Khammurabi it was customary to state in the marriage contracts that no stain whatever rested on the bride. Thus we read in one of them: “Ana-Â-uzni is the daughter of Salimat. Salimat has given her a dowry, and has offered her in marriage to Bel-sunu, the son of the artisan. Ana-Â-uzni is pure; no one has anything against her.” The dowry, as we have seen, was paid by the near relations of the wife, and where there was none, as in the case of the singing-woman married by Nebo-akhi-iddin, there was no dowry at all. The dowries provided for the ugly by the prostitution of the rich must be an invention of the Greeks.

Within what degree of relationship marriage was permitted is uncertain. A man could marry his sister-in-law, as among the Israelites, and, in one instance, we hear of marriage with a niece. In the time of Cambyses a brother marries his half-sister by the same father; but this was probably an imitation of the Persian custom.

The children, as we have seen, whether boys or girls, inherited alike, subject to the provisions of the parent’s will. The will seems to have been of Babylonian origin. Testamentary devolution of property went back to an early period in a country in which the legal relations of trade had been so fully developed. Trade implied private property and the idea of individual possession. The estate belonging to a person was his absolutely, to deal with pretty much as he would. He had the same right to alienate it as he had to increase it. In a commercial community there could be no community of goods.

As far back, therefore, as our materials carry us, the unit in the Babylonian state is the individual rather than the family. It is he with whom both the law and the government deal, and the legal code of Babylonia is based upon the doctrine of individual responsibility. Private ownership is the key-note of Babylonian social life.

But the whole of this social life was fenced about by a written law. No title was valid for which a written document could not be produced, drawn up and attested in legal forms. The extensive commercial transactions of the Babylonians made this necessary, and the commercial spirit dominated

Babylonian society. The scribe and the lawyer were needed at almost every juncture of life.

The invention of the will or documentary testament, followed naturally. The same legal powers that were required to protect a man's property during his lifetime were even more urgently required when he was dead. The will was at first the title which gave the heir his father's estate. Gradually it developed, until at last it came to be an instrument by means of which the testator retained control over his property even after his death. As an example of the form which it usually assumed, we may take one which was drawn up in the seventh year of the reign of Cyrus as King of Babylon (532 B.C.):

> Nebo-baladan, the son of Samas-palassar, the son of the priest of the Sun-god, has, of his own free-will, sealed all his estate, which he had inherited from Nebo-balasu-iqbi, the son of Nur-Ea, the son of the priest of the Sun-god, the father of his mother, and from Kabtâ, the mother of Assat-Belit, his grandmother, consisting of a piece of land, a house and the slaves or serfs attached to it, in accordance with the will (_literally_ tablet) which his maternal grandfather, Nebo-balasu-iqbi, and his maternal grandmother, Kabtâ, had sealed and bequeathed to Nebo-baladan, the son of their daughter, and has bequeathed them for ever to Samas-palassar, the son of Samas-ina-esi-edher, the son of the priest of the Sun-god. As long as Nebo-baladan lives the piece of ground, the house, the slaves, and all the rest of his property shall continue in his own possession, according to the terms of this his will. Whoever shall attempt to change them, may Anu, Bel, and Ae curse him; may Nebo, the divine scribe of Ê-Saggil, cut off his days! This will has been sealed in the presence of Sula, son of Bania, son of Epes-ilu; of Bel-iddin, son of Bel-natsir, son of the priest of Gula; of Nebo-sum-yukin, son of Sula, son of Sigua; of Nebo-natsir, son of Ziria, son of Sumâti; … of Nebo-sum-lisir, son of Nebo-sum-iskun, son of the wine-merchant (?), and the scribe Samas-zir-yusabsi, son of Zariqu-iddin, son of the architect. (Written at) Babylon, the 19th day of Sebat (February), the seventh year of Cyrus, king of Babylon and the world.

In this case it is a son who makes over his property to his father should he be the first to die. The will shows that the son was absolute master of his own possessions even during his father's lifetime, and could bequeath it as he chose.

A remarkable instance of the application of the principles underlying testamentary devolution is to be found in the case of Ninip-Sum-iskun, the son of a land-surveyor who handed over his property to his daughter Dhabtu, while he was still alive, stipulating only for the usufruct of it. The text begins by saying that the testator called to his daughter: "Bring me writing materials, for I am ill. My brother has deserted me; my son has offended me. To you therefore I turn. Have pity on me, and while I live support me with food, oil, and clothes. The income from my surveying business, in which I have two-thirds of a share with my brother, do I hand over to you." After this preamble the deed is drawn up in due form, attested, dated, and sealed. The whole of the testator's property is assigned to his daughter "for ever," "the usufruct of his income" only being reserved to himself "as long as he shall live." He undertakes accordingly not to "sell" it, not to give it to another, not to pawn it or alienate a portion of it. By way of doubly securing that the deed shall take effect, the gods are invoked as well as the law.(3)

Another case in which a kind of will seems to have been made which should take effect during the lifetime of the testator, is a document drawn up by order of the Assyrian King Sennacherib. We may gather from it that Esar-haddon, though not his eldest, was his favorite son, a fact which may explain his subsequent assassination by two of his other sons, who took advantage of their brother's absence in Armenia at the head of the army, to murder their father and usurp the throne. In the document in question Sennacherib makes a written statement of his desire to leave to Esar-haddon certain personal effects, which are enumerated by name. "Gold rings, quantities of ivory, gold cups, dishes, and necklaces, all these valuable objects in plenty, as well as three sorts of precious stones, one and one-half maneh and two and one-half shekels in weight, I bequeath to Esar-haddon, my son, who bears the surname of Assur-etil-kin-pal, to be deposited in the house of Amuk." It will be noticed that this document is not attested by witnesses. Such attestation was dispensed with in the case of the monarch; his own name was sufficient to create a title. Whether it would have been the same in Babylonia, where the king was not equally autocratic and the commercial spirit was stronger than in Assyria, may be questioned. At all events, when Gigitu, the daughter of the Babylonian King Nergal-sharezer, was married to one of his officials, the contract was made out in the usual form, and the names of several witnesses were attached to it, while the deeds relating to the trading transactions of Belshazzar when heir-apparent to the throne differ in nothing from those required from the ordinary citizen.

Besides possessing the power of making a will, the head of the family was able to increase it by adoption. The practice of adoption was of long standing in Babylonia. The right to become King of Babylon and so to claim legitimate rule over the civilized world was conferred through adoption by the god Bel-Merodach. The claimant to sovereignty "took the hand of Bel," as it was termed, and thereby became the adopted son of the god. Until this ceremony was performed, however much he might be a sovereign _de facto_, he was not so _de jure_. The legal title to rule could be given by Bel, and by Bel alone. As the Pharaohs of Egypt were sons of Ra the Sun-god, so it was necessary that the kings of Babylon should be the sons of the Babylonian Sun-god Merodach. Sonship alone made them legitimate.

This theory of adoption by a god must have been derived from a practice that was already well known. And the power of adopting children was exercised by the Babylonians up to the last. It has been suggested that it was due to ancestor-worship, and the desire to prevent the customary offerings from being discontinued through the extinction of the family. But for this there is no evidence. Indeed, it is questionable whether there was any worship of ancestors in Babylonia except in the case of the royal family. And even here it had its origin in the deification of the kings during their lifetime.

The prevalence of adoption in Babylonia had a much less recondite cause. It was one of the results of the recognition of private property and the principle of individual ownership. The head of the family naturally did not wish his estate to pass out of it and be transferred to a stranger. Wherever monogamy is the general rule, the feeling of family relationship is strong, and such was the case among the Babylonians. The feeling shows itself in the fact that when inherited land is sold we find other members of the family signing their assent by their presence at the sale. The father or mother, accordingly, who adopted a child did so with the intention of making him their heir, and so keeping the estate they had inherited or acquired in the hands of their own kin.

That this is the true explanation of the Babylonian practice of adoption is clear from the case mentioned above in which Bel-Katsir was prevented from adopting his step-son, because his uncle and adoptive father, whose property would then have passed to the latter, objected to his doing so. It was entirely a question of inheritance. Bel-Katsir had been adopted in order that he might be his uncle's heir, and consequently the uncle had the right of deciding to whom his estate should ultimately go. He preferred that it should be the brother of Bel-Katsir, and the brother accordingly it was settled to be.

The fact that women could adopt, also points in the same direction. The woman was the equal of the man as regards the possession and management of property, and like the man, therefore, she could determine who should inherit it.

A slave could be adopted as well as a free man. It was one of the ways in which a slave obtained his freedom, and contracts for the sale of slaves generally guarantee that they have not been adopted into the family of a citizen. A curious suit that was brought before a special court at Babylon in the tenth year of Nabonidos illustrates the advantage that was sometimes taken of the fact. The action was brought against a slave who bears the Israelitish name of Barachiel, and may, therefore, have been a Jew, and it was tried, not only before the ordinary judges, but before special commissioners and "elders" as well. The following is a translation of the judgment which was delivered and preserved in the record office:

"Barachiel is the slave of Gagâ, the daughter of … , redeemable with money only. In the thirty-fifth year of Nebuchadnezzar, King of Babylon (570 B.C.), he was given to Akhi-nuri, son of Nebo-nadin-akhi, as security for a debt of twenty-eight shekels. Now he claims that he is the adopted son of Bel-rimanni, who has joined the hands of Samas-mudam-miq, the son of Nebo-nadin-akhi, and Qudasu, the daughter of Akhi-nuri, in matrimony. The case was pleaded before the commissioners, the elders, and the judges of Nabonidos, King of Babylon, and the arguments were heard on both sides. They read the deeds relating to the servile condition of Barachiel, who from the thirty-fifth year of Nebuchadnezzar, King of Babylon, to the seventh year of Nabonidos, King of Babylon, had been sold for money, had been given as security for a debt, and had been handed over to Nubtâ, the daughter of Gagâ, as her dowry—Nubtâ, had afterward, by a sealed deed, given him with a house and other slaves to her son, Zamama-iddin, and her husband, Nadin-abla—and they said to Barachiel: You have brought an action and called yourself an adopted son. Prove to us your adoption. Barachiel thereupon confessed: Twice did I run away from the house of my master and for many days was not seen. Then I was afraid and pretended to be an adopted son. My adoption is non-existent; I was the slave of Gagâ, redeemable with money. Nubtâ, her daughter, made a present of me, and by a sealed deed transferred me to her son, Zamama-iddin, and her husband, Nadin-abla. After the death of Gagâ and Nubtâ, I was sold by sealed contract to Itti-Merodach-baladhu, the son of Nebo-akhi-iddin, the son of Egibi. I will go and [perform each of my duties. The commissioners,] the elders, and the judges heard his evidence and restored him to his servile condition, and [confirmed] his possession by Samas-mudammiq [the son of Nebo-nadin-akhi] and Qudasu, the daughter of Akhi-nuri, who had given him as a dowry (to his daughter)." Then follow the names of the judges and secretary, and the date and place where the judgment was delivered, two of the judges further affixing their seals to the document, as well as a certain Kiribtu who calls himself "the shield-bearer," but who was probably one of the commissioners sent to investigate the case.

After a slave had been adopted, it was in the power of the adoptive father to cancel the act of adoption and reduce him to his former state of servitude if he had not performed his part of the contract and the parties who had witnessed it were willing that it should be cancelled. We learn this from a deed that was drawn up in the thirteenth year of Nabonidos. Here we read:

"Iqisa-abla, the son of Kudurru, the son of Nur-Sin, sealed a deed by which he adopted his servant, Rimanni-Bel, usually called Rimut, in return for his receiving food and clothing from Rimanni-Bel. But Rimanni-Bel, usually called Rimut, has violated the contract ever since the deed by which he was adopted was sealed, and has given neither food, oil, nor clothing, whereas Ê-Saggil-ramat, the daughter of Ziria, the son of Nabâ, the wife of Nadin-Merodach, the son of Iqisa-abla, the son of Nur-Sin, has taken her father-in-law, has housed him, and has been kind to him and has provided him with food, oil, and clothing. Iqisa-abla, the son of Kudurru, the son of Nur-Sin, has, therefore, of his own free will, cancelled the deed of adoption, and by a sealed deed has given Rimanni-Bel to wait upon Ê-Saggil-ramat and Nubtâ, the daughter of Ê-Saggil-ramat and Nadin-Merodach, the grandson of Nur-Sin; Ê-Saggil-ramat and Nubtâ, her daughter, shall he obey. After the death of Ê-Saggil-ramat he shall wait on Nubtâ, her daughter. Whoever shall change these words and shall destroy the deed which Iqisa-abla has drawn up and given to Ê-Saggil-ramat and Nubtâ, her daughter, may Merodach and the goddess Zarpanit denounce judgment upon him!" Then come the names of four witnesses and the clerk, the date and place of writing, and the statement that the deed was indented in the presence of Bissâ, the daughter of Iqisa-abla.

It is clear that the testator had little or no property of his own, and that he was too old, or otherwise incapacitated, to earn anything for himself. It is also clear that the adopted slave, who is described by the milder term _gallu_, or "servant," had acquired some wealth, and that this was the motive for his adoption. He, however, deserted and neglected his adopted father after his freedom had been secured to him, and thereby failed to carry out his part of the contract. Iqisa-abla accordingly had the legal right to break it also on his side.

One of the effects of the system of adoption was to give the privileges of Babylonian citizenship to a good many foreigners. The foreign origin of Barachiel, as evidenced by his name, was no obstacle to his claim to be a citizen, and the numerous contracts in which it is certified of a foreign slave that he has never been adopted prove the fact conclusively. A commercial community cannot afford to be exclusive on the ground of race and nationality.

Such, then, was the family system in the Babylonia of the historical period. Polygamy was rare, and the married woman possessed full rights over her property and could employ or bequeath it as she chose. The dowry she brought from her father or other near relation made her practically independent of her husband. Sons and daughters alike were able to inherit, and the possessor of property had the power of making a will. The law seems to have placed but few restrictions upon the way in which he could bestow his wealth. A family could be increased or prevented from dying out by means of adoption, and new blood could thus be introduced into it.

The rights and duties of the individual were fully recognized; it was with him alone that the law had to deal. Nevertheless, a few traces survived of that doctrine of the solidarity of the family which had preceded the development of individual ownership and freedom of action. The bride was given in marriage by her parents, or, failing these, by her nearest male relations, and when an estate was sold which had long been in the possession of a certain family, it was customary for the rest of the family to signify their consent by attending the sale. We may gather, however, that the sale was not invalidated if the consent was not obtained. In the older days of Babylonian history, moreover, it was usual for the property of a deceased citizen to be divided among his heirs without the intervention of a will. It went in the first instance to his widow, and was then divided equally among his children, whether body heirs or adopted ones, the eldest son alone receiving an additional share in return for administering the estate. But disputes frequently arose over the division, and the members of the family went to law with one another. In such cases it became the custom to place the whole of the property in the hands of the priests of the city-temple, who thus corresponded to the English Court of Chancery, and made the division as they judged best. The results, however, were not always satisfactory, and it was doubtless in order to avoid both the litigation and the necessity of appointing executors who were not members of the family, that the will came to play so important a part in the succession to property. In bequeathing his possessions the head of the family was expected to observe the usual rule of division, but it ceased to be obligatory to do so.

CHAPTER III. EDUCATION AND DEATH

One of the lesson-books used in the Babylonian nursery contains the beginning of a story, written in Sumerian and translated into Semitic, which describes the adventures of a foundling who was picked up in the streets and adopted by the King. We are told that he was taken "from the mouth of the dogs and ravens," and was then brought to the _asip_ or "prophet," who marked the soles of his feet with his seal. What the precise object of this procedure was it is difficult to say, but the custom is alluded to in the Old Testament (Job xiii. 27). Certain tribes in the south of China still brand the soles of a boy's feet, for the purpose, it is said, of testing his strength and hardihood.

After the operation was performed the boy was handed over to a "nurse," to whom his "bread, food, shirt, and (other) clothing were assured for three years." At the same time, we may assume, he received a name. This giving of a name was an important event in the child's life. Like other nations of antiquity the Babylonians conformed the name with the person who bore it; it not only represented him, but in a sense was actually himself. Magical properties were ascribed to the name, and it thus became of importance to know what names were good or bad, lucky or unlucky. An unlucky name brought evil fortune to its possessor, a lucky name secured his success in life. A change of name influenced a man's career; and the same superstitious belief which caused the Cape of Storms to become the Cape of Good Hope not unfrequently occasioned a person's name to be altered among the nations of the ancient East.

The gods themselves were affected by the names they bore. A knowledge of the secret and ineffable name of a deity was the key to a knowledge of his inner essence and attributes, and conferred a power over him upon the fortunate possessor of it. The patron god of the dynasty to which Khammurabi belonged was spoken of as "the Name," Sumu or Samu, the Shem of the Old Testament; his real title was too sacred to be uttered in speech. The name of a thing was the thing itself, and so too the name of a god or person was the actual god or person to whom it was attached.

A large proportion of Babylonian names includes the name of some divinity. In spite of their length and unwieldiness they tended to increase in number as time went on. In ordinary life, however, they were frequently shortened. In the contract given in the last chapter, the slave Rimanni-Bel is said to have been usually called Rimut, the one name signifying "Love me, O Bel," the other "Love." In other instances we find Samas-musezib contracted into Samsiya and Suzub, Kabti-ilâni-Merodach into Kabtiya, Nebo-tabni-uzur into Tabniya. The Belesys of Greek writers is the Babylonian Balasu, which is a shortened form of Merodach-balasu-iqbi, and Baladan, which is given in the Old Testament as the name of the father of Merodach-baladan, has lost the name of the god with which it must originally have begun.

Sometimes a change in the form of the name was due to its being of foreign origin and consequently mispronounced by the Babylonians, who assimilated it to words in their own language. Thus Sargon of Akkad was properly called Sargani, "The Strong One," or, more fully, Sargani-sar-ali, "Sargani, the King of the City," but his Sumerian subjects turned this into Sar-gina or Sargon, "The Established King." The grandson of Khammurabi bore the Canaanitish name of Abesukh, the Abishua of the Israelites, "The Father of Welfare," but it was transformed by the Babylonians into Ebisum, which in their own dialect meant "The Actor." Eri-Aku or Arioch was an Elamite name signifying "The Servant of the Moon-god;" the Babylonians changed it into Rim-Sin and perhaps even Rim-Anu, "Love, O Moon-god," "Love, O Sky-god."

At other times the name was changed for political or superstitious reasons. When the successful general Pul usurped the throne of Assyria he adopted the name of one of the most famous of the kings of the older dynasty, Tiglath-pileser. His successor, another usurper, called Ululâ, similarly adopted the name of Shalmaneser, another famous king of the earlier dynasty. It is probable that Sargon, who was also a usurper, derived his name from Sargon of Akkad, and that his own name was originally something else. Sennacherib tells us that Esar-haddon had a second name, or surname, by which he was known to his neighbors. In this respect he was like Solomon of Israel, who was also called Jedidiah.

It is doubtful whether circumcision was practised in Babylonia. There is no reference to it in the inscriptions, nor is it mentioned by classical writers as among Babylonian customs. In fact, the words of the Greek historian Herodotus seem to exclude the practice, as the Babylonians are not one of the nations of Western Asia who are said by him to have learnt the rite from the Egyptians. Moreover, Abraham and his family were not circumcised until long after he had left Babylonia and had established himself in Canaan. Africa, rather than Asia, seems to have been the original home of the rite.

If the boy were the son of well-to-do parents he was sent to school at an early age. One of the texts which, in Sumerian days, was written as a head-line in his copy-book declared that "He who would excel in the school of the scribes must rise like the dawn." Girls also shared in the education given to their brothers. Among the Babylonian letters that have been preserved are some from ladies, and the very fact that women could transact business on their own account implies that they could read and write. Thus the following letter, written from Babylon by a lover to his mistress at Sippara, assumes that she could read it and return an answer: "To the lady Kasbeya thus says Gimil-Merodach: May the Sun-god and Merodach, for my sake, grant thee everlasting life! I am writing to enquire after your health; please send me news of it. I am living at Babylon, but have not seen you, which troubles me greatly. Send me news of your arrival, so that I may be happy. Come in the month Marchesvan. May you live forever, for my sake!" The Tel-el-Amarna collection actually contains letters from a lady to the Egyptian Pharaoh. One of them is as follows: "To the king my lord, my gods, my sun-god, thus says Nin, thy handmaid: At the feet of the king my lord, my gods, my sun-god, seven times seven I prostrate myself. The king my lord knows that there is war in the land, and that all the country of the king my lord has revolted to the Bedâwin. But the king my lord has knowledge of his country, and the king my lord knows that the Bedâwin have sent to the city of Ajalon and to the city of Zorah, and have made mischief (and have intrigued with) the two sons of Malchiel; and let the king my lord take knowledge of this fact."

The oracles delivered to Esar-haddon by the prophetesses of Arbela are in writing, and we have no grounds for thinking that they were written down by an uninspired pen. Indeed, the "bit riduti," or "place of education," where Assur-bani-pal tells us he had been brought up, was the woman's part of the palace. The instructors, however, were men, and part of the boy's education, we are informed, consisted in his being taught to shoot with the bow and to practise other bodily exercises. But the larger part of his time was given to learning how to read and write. The acquisition of the cuneiform system of writing was a task of labor and difficulty which demanded years of patient application. A vast number of characters had to be learned by heart. They were conventional signs, often differing but slightly from one another, with nothing about them that could assist the memory; moreover, their forms varied in different styles of writing, as much as Latin, Gothic, and cursive forms of type differ among ourselves, and all these the pupil was expected to know. Every character had more than one phonetic value; many of them, indeed, had several, while they could also be used ideographically to express objects and ideas. But this was not all. A knowledge of the cuneiform syllabary necessitated also a knowledge of the language of the Sumerians, who had been its inventors, and it frequently happened that a group of characters which had expressed a Sumerian word was retained in the later script with the pronunciation of the corresponding Semitic word attached to them, though the latter had nothing to do with the phonetic values of the several signs, whether pronounced singly or as a whole.

The children, however, must have been well taught. This is clear from the remarkably good spelling which we find in the private letters; it is seldom that words are misspelt. The language may be conversational, or even dialectic, but the words are written correctly. The school-books that have survived bear testimony to the attention that had been given to improving the educational system. Every means was adopted for lessening the labor of the student and imprinting the lesson upon his mind. The cuneiform characters had been classified and named; they had also been arranged according to the number and position of the separate wedges of which they consisted. Dictionaries had been compiled of Sumerian words and expressions, as well as lists of Semitic synonyms. Even grammars had been drawn up, in which the grammatical forms of the old language of Sumer were interpreted in Semitic Babylonian. There were reading-books filled with extracts from the standard literature of the country. Most of this was in Sumerian; but the Sumerian text was provided with a Semitic translation, sometimes interlinear, sometimes in a parallel column. Commentaries, moreover, had been written upon the works of ancient authors, in which difficult or obsolete terms were explained. The pupils were trained to write exercises, either from a copy placed before them or from memory. These exercises served a double purpose—they taught the pupil how to write and spell, as well as the subject which the exercise illustrated. A list of the kings of the dynasty to which Khammurabi belonged has come to us, for instance, in one of them. In this way history and geography were impressed upon the student's memory, together with extracts from the poets and prose-writers of the past.

The writing material was clay. Papyrus, it is true, was occasionally used, but it was expensive, while clay literally lay under the feet of everyone. While the clay was still soft, the cuneiform or "wedge-shaped" characters were engraved upon it by means of a stylus. They had originally been pictorial, but when the use of clay was adopted the pictures necessarily degenerated into groups of wedge-like lines, every curve becoming an angle formed by the junction of two lines. As time went on, the characters were more and more simplified, the number of wedges of which they consisted being reduced and only so many left as served to distinguish one sign from another. The simplification reached its extreme point in the official script of Assyria.

At first the clay tablet after being inscribed was allowed to dry in the sun. But sun-dried clay easily crumbles, and the fashion accordingly grew up of baking the tablet in a kiln. In Assyria, where the heat of the sun was not so great as in the southern kingdom of Babylonia, the tablet was invariably baked, holes being first drilled in it to allow the escape of the moisture and to prevent it from cracking. Some of the early Babylonian tablets were of great size, and it is wonderful that they have lasted to our own days. But the larger the tablet, the more difficult it was to bake it safely, and consequently the most of the tablets are of small size. As it was often necessary to compress a long text into this limited space, the writing became more and more minute, and in many cases a magnifying glass is needed to read it properly. That such glasses were really used by the Assyrians is proved by Layard's discovery of a magnifying lens at Nineveh. The lens, which is of crystal, has been turned on a lathe, and is now in the British Museum. But even with the help of lenses, the study of the cuneiform tablets encouraged short sight, which must have been common in the Babylonian schools. In the case of Assur-bani-pal this was counteracted by the out-of-door exercises in which he was trained, and it is probable that similar exercises were also customary in Babylonia.

A book generally consisted of several tablets, which may consequently be compared with our chapters. At the end of each tablet was a colophon stating what was its number in the series to which it belonged, and giving the first line of the next tablet. The series received its name from the words with which it began; thus the fourth tablet or chapter of the "Epic of the Creation" states that it contains "one hundred and forty-six lines of the fourth tablet (of the work beginning) 'When on high unproclaimed,' " and adds the first line of the tablet which follows. Catalogues were made of the standard books to be found in a library, giving the name of the author and the first line of each; so that it was easy for the reader or librarian to find both the work he wanted and the particular chapter in it he wished to consult. The books were arranged on shelves; M. de Sarzec discovered about 32,000 of them at Tello in Southern Chaldea still in the order in which they had been put in the age of Gudea (2700 B.C.).

Literature of every kind was represented. History and chronology, geography and law, private and public correspondence, despatches from generals and proclamations of the king, philology and mathematics, natural science in the shape of lists of bears and birds, insects and stones, astronomy and astrology, theology and the pseudo-science of omens, all found a place on the shelves, as well as poems and purely literary works. Copies of deeds and contracts, of legal decisions, and even inventories of the property of private individuals, were also stored in the libraries of Babylonia and Assyria, which were thus libraries and archive-chambers in one. In Babylonia every great city had its collection of books, and scribes were kept constantly employed in it, copying and re-editing the older literature, or providing new works for readers. The re-editing was done with scrupulous care. Where a character was lost in the original text by a fracture of the tablet, the copyist stated the fact, and added whether the loss was recent or not. Where the form of the character was uncertain, both the signs which it resembled are given. Some idea may be formed of the honesty and care with which the Babylonian scribes worked from the fact that the compiler of the Babylonian Chronicle, which contains a synopsis of later Babylonian history, frankly states that he does "not know" the date of the battle of Khalulê, which was fought between the Babylonians and Sennacherib. The materials at his disposal did not enable him to settle it. It so happens that we are in a more fortunate position, as we are able to fix it with the help of the annals of the Assyrian King.

New texts were eagerly collected. The most precious spoils sent to Assur-bani-pal after the capture of the revolted Babylonian cities were tablets containing works which the library of Nineveh did not possess. The Babylonians and Assyrians made war upon men, not upon books, which were, moreover, under the protection of the gods. The library was usually within the walls of a temple; sometimes it was part of the archives of the temple itself. Hence the copying of a text was often undertaken as a pious work, which brought down upon the scribe the blessing of heaven and even the remission of his sins. That the library was open to the public we may infer from the character of some of the literature contained in it. This included private letters as well as contracts and legal documents which could be interesting only to the parties whom they concerned.

The school must have been attached to the library, and was probably an adjacent building. This will explain the existence of the school-exercises which have come from the library of Nineveh, as well as the reading-books and other scholastic literature which were stored within it. At the same time, when we remember the din of an oriental school, where the pupils shout their lessons at the top of their voices, it is impossible to suppose that the scribes and readers would have been within ear-shot. Nor was it probable that there was only one school in a town of any size. The practice of herding large numbers of boys or girls together in a single school-house is European rather than Asiatic.

The school in later times developed into a university. At Borsippa, the suburb of Babylon, where the library had been established in the temple of Nebo, we learn from Strabo that a university also existed which had attained great celebrity. From a fragment of a Babylonian medical work, now in the British Museum, we may perhaps infer that it was chiefly celebrated as a school of medicine.

In Assyria education was mainly confined to the upper classes. The trading classes were perforce obliged to learn how to read and write; so also were the officials and all those who looked forward to a career in the diplomatic service. But learning was regarded as peculiarly the profession of the scribes, who constituted a special class and occupied an important position in the bureaucracy. They acted as clerks and secretaries in the various departments of state, and stereotyped a particular form of cuneiform script, which we may call the chancellor's hand, and which, through their influence, was used throughout the country. In Babylonia it was otherwise. Here a knowledge of writing was far more widely spread, and one of the results was that varieties of handwriting became as numerous as they are in the modern world. The absence of a professional class of scribes prevented any one official hand from becoming universal. We find even the son of an "irrigator," one of the poorest and lowest members of the community, copying a portion of the "Epic of the Creation," and depositing it in the library of Borsippa for the good of his soul. Indeed, the contract tablets show that the slaves themselves could often read and write. The literary tendencies of Assur-bani-pal doubtless did much toward the spread of education in Assyria, but the latter years of his life were troubled by disastrous wars, and the Assyrian empire and kingdom came to an end soon after his death.

Education, as we have seen, meant a good deal more than merely learning the cuneiform characters. It meant, in the case of the Semitic Babylonians and Assyrians, learning the ancient agglutinative language of Sumer as well. In later times this language ceased to be spoken except in learned society, and consequently bore the same relation to Semitic Babylonian that Latin bears to English. In learning Sumerian, therefore, the Babylonian learned what was equivalent to Latin in the modern world. And the mode of teaching it was much the same. There were the same paradigms to be committed to memory, the same lists of words and phrases to be learned by heart, the same extracts from the authors of the past to be stored up in the mind. Even the "Hamiltonian" system of learning a dead language had already been invented. Exercises were set in translation from Sumerian into Babylonian, and from Babylonian into Sumerian, and the specimens of the latter which have survived to us show that "dog-Latin" was not unknown.

But the dead language of Sumer was not all that the educated Babylonian or Assyrian gentlemen of later times was called upon to know. In the eighth century before our era Aramaic had become the common medium of trade and diplomacy. If Sumerian was the Latin of the Babylonian world, Aramaic was its French. The Aramaic dialects seem to have been the result of a contact between the Semitic languages of Arabia and Canaan, and the rising importance of the tribes who spoke them and who occupied Mesopotamia and Northern Arabia caused them to become the language of trade. Aramaic merchants were settled on the banks of the Euphrates and Tigris, and conveyed the products of Babylonia and Phœnicia from one country to the other. Many of the commercial firms in Babylonia were of Aramaic origin, and it was natural that some part at least of their business should have been carried on in the language of their fathers.

Hence it was that, when the Rab-shakeh or Vizier of Sennacherib appeared before Jerusalem and summoned its inhabitants to submit to the Assyrian King, he was asked by the ministers of Hezekiah to speak in "Aramæan." It was taken for granted that Aramaic was known to an Assyrian official and diplomatist just as it was to the Jewish officials themselves. The Rab-shakeh, however, knew the Hebrew language as well, and found it more to his purpose to use it in addressing the Jews.

Here, then, we have an Assyrian officer who is acquainted not only with Sumerian, but also with two of the living languages of Western Asia. And yet he was not a scribe; he did not belong to the professional class of learned men. Nothing can show more clearly the advanced state of education even in the military kingdom of Assyria. In Babylonia learning had always been honored; from the days of Sargon of Akkad onward the sons of the reigning king did not disdain to be secretaries and librarians.

The linguistic training undergone in the schools gave the Babylonian a taste for philology. He not only compiled vocabularies of the extinct Sumerian, which were needed for practical reasons, he also explained the meaning of the names of the foreign kings who had reigned over Babylonia, and from time to time noted the signification of words belonging to the various languages by which he was surrounded. Thus one of the tablets we possess contains a list of Kassite or Kossean words with their signification; in other cases we have Mitannian, Elamite, and Canaanite words quoted, with their meanings attached to them. Nor did the philological curiosity of the scribe end here. He busied himself with the etymology of the words in his own language, and just as a couple of centuries ago our own dictionary-makers endeavored to find derivations for all English words, whatever their source, in Latin and Greek, so, too, the Babylonian etymologist believed that the venerable language of Sumer was the key to the origin of his own. Many of the words in Semitic Babylonian were indeed derived from it, and accordingly Sumerian etymologies were found for other words which were purely Semitic. The word _Sabattu_, "the Sabbath," for instance, was derived from the Sumerian _Sa_, "heart," and _bat_, "to cease," and so interpreted to mean the day on which "the heart ceased" from its labors.

History, too, was a favorite subject of study. Like the Hebrews, the Assyrians were distinguished by a keen historical sense which stands in curious contrast to the want of it which characterized the Egyptian. The Babylonians also were distinguished by the same quality, though perhaps to a less extent than their Assyrian neighbors, whose somewhat pedantic accuracy led them to state the exact numbers of the slain and captive in every small skirmish, and the name of every petty prince with whom they came into contact, and who had invented a system of accurately registering dates at a very early period. Nevertheless, the Babylonian was also a historian; the necessities of trade had obliged him to date his deeds and contracts from the earliest age of his history, and to compile lists of kings and dynasties for reference in case of a disputed title to property. The historical honesty to which he had been trained is illustrated by the author of the Babylonian Chronicle in the passage relating to the battle of Khalulê, which has been already alluded to. The last king of Babylonia was himself an antiquarian, and had a passion for excavating and discovering the records of the monarchs who had built the great temples of Chaldea.

Law, again, must have been much studied, and so, too, was theology. The library of Nineveh, however, from which so much of our information has come, gives us an exaggerated idea of the extent to which the pseudo-science of omens and portents was cultivated. Its royal patron was a believer in them, and apparently more interested in the subject than in any other. Consequently, the number of books relating to it are out of all proportion to the rest of the literature in the library. But this was an accident, due to the predilections of Assur-bani-pal himself.

The study of omens and portents was a branch of science and not of theology, false though the science was. But it was based upon the scientific principle that every antecedent has a consequent, its fallacy consisting in a confusion between real causes and mere antecedents. Certain events had been observed to follow certain phenomena; it was accordingly assumed that they were the results of the phenomena, and that were the phenomena to happen again they would be followed by the same results. Hence all extraordinary or unusual occurrences were carefully noted, together with whatever had been observed to come after them. A strange dog, for instance, had been observed to enter a palace and there lie down on a couch; as no disaster took place subsequently it was believed that if the occurrence was repeated it would be an omen of good fortune. On the other hand, the fall of a house had been preceded by the birth of a child without a mouth; the same result, it was supposed, would again accompany the same presage of evil. These pseudo-scientific observations had been commenced at a very early period of Babylonian history, and were embodied in a great work which was compiled for the library of Sargon of Akkad.

Another work compiled for the same library, and containing observations which started from a similarly fallacious theory, was one in seventy-two books on the pseudo-science of astrology, which was called "The Illumination of Bel." But in this case the observations were not wholly useless. The study of astrology was intermixed with that of astronomy, of which Babylonia may be considered to be the birthplace. The heavens had been mapped out and the stars named; the sun's course along the ecliptic had been divided into the twelve zodiacal signs, and a fairly accurate calendar had been constructed. Hundreds of observations had been made of the eclipses of the sun and moon, and the laws regulating them had been so far ascertained that, first, eclipses of the moon, and then, but with a greater element of uncertainty, eclipses of the sun, were able to be predicted. One of the chapters or books in the "Illumination of Bel" was devoted to an account of comets, another dealt with conjunctions of the sun and moon. There were also tables of observations relating to the synodic revolution of the moon and the synodic periods of the planet Venus. The year was divided into twelve months of thirty days each, an intercalary month being inserted from time to time to rectify the resulting error in the length of the year. The months had been originally called after the signs of the zodiac, whose names have come down to ourselves with comparatively little change. But by the side of the lunar year the Babylonians also used a sidereal year, the star Capella being taken as a fixed point in the sky, from which the distance of the sun could be measured at the beginning of the year, the moon being used as a mere pointer for the purpose. At a later date, however, this mode of determining time was abandoned, and the new year was made directly dependent on the vernal equinox. The month was subdivided into weeks of seven days, each of which was consecrated to a particular deity.

These deities were further identified with the stars. The fact that the sun and moon, as well as the evening and morning stars, were already worshipped as divinities doubtless led the way to this system of astro-theology. But it seems never to have spread beyond the learned classes and to have remained to the last an artificial system. The mass of the people worshipped the stars as a whole, but it was only as a whole and not individually. Their identification with the gods of the state religion might be taught in the schools and universities, but it had no meaning for the nation at large.

From the beginning of the Babylonian's life we now pass to the end. Unlike the Egyptian he had no desert close at hand in which to bury his dead, no limestone cliffs, as in Palestine, wherein a tomb might be excavated. It was necessary that the burial should be in the plain of Babylonia, the same plain as that in which he lived, and with which the overflow of the rivers was constantly infiltrating. The consequences were twofold. On the one hand, the tomb had to be constructed of brick, for stone was not procurable; on the other hand, sanitary reasons made cremation imperative. The Babylonian corpse was burned as well as buried, and the brick sepulchre that was raised above it adjoined the cities of the living.

The corpse was carried to the grave on a bier, accompanied by the mourners. Among these the wailing women were prominent, who tore their hair and threw dust upon their heads. The cemetery to which the dead was carried was a city in itself, to which the Sumerians had given the name of Ki-makh or "vast place." It was laid out in streets, the tombs on either side answering to the houses of a town. Not infrequently gardens were planted before them, while rivulets of "living water" flowed through the streets and were at times conducted into the tomb. The water symbolized the life that the pious Babylonian hoped to enjoy in the world to come. It relieved the thirst of the spirit in the underground world of Hades, where an old myth had declared that "dust only was its food," and it was at the same time an emblem of those "waters of life" which were believed to bubble up beneath the throne of the goddess of the dead.

When the corpse reached the cemetery it was laid upon the ground wrapped in mats of reed and covered with asphalt. It was still dressed in the clothes and ornaments that had been worn during life. The man had his seal and his weapons of bronze or stone; the woman her spindle-wheel and thread; the child his necklace of shells. In earlier times all was then thickly coated with clay, above which branches of palm, terebinth, and other trees were placed, and the whole was set on fire. At a more recent period ovens of brick were constructed in which the corpse was put in its coffin of clay and reeds, but withdrawn before cremation was complete. The skeletons of the dead are consequently often found in a fair state of preservation, as well as the objects which were buried with them.

While the body was being burned offerings were made, partly to the gods, partly to the dead man himself. They consisted of dates, calves and sheep, birds and fish, which were consumed along with the corpse. Certain words were recited at the same time, derived for the most part from the sacred books of ancient Sumer.

After the ceremony was over a portion of the ashes was collected and deposited in an urn, if the cremation had been complete. In the later days, when this was not the case, the half-burnt body was allowed to remain on the spot where it had been laid, and an aperture was made in the shell of clay with which it was covered. The aperture was intended to allow a free passage to the spirit of the dead, so that it might leave its burial-place to enjoy the food and water that were brought to it. Over the whole a tomb was built of bricks, similar to that in which the urn was deposited when the body was completely burned.

The tombs of the rich resembled the houses in which they had lived on earth and contained many chambers. In these their bodies were cremated and interred. Sometimes a house was occupied by a single corpse only; at other times it became a family burial-place, where the bodies were laid in separate chambers. Sometimes tombstones were set up commemorating the name and deeds of the deceased; at other times statues representing them were erected instead.

The tomb had a door, like a house, through which the relatives and friends of the dead man passed from time to time in order to furnish him with the food and sustenance needed by his spirit in the world below. Vases were placed in the sepulchre, filled with dates and grain, wine and oil, while the rivulet which flowed beside it provided water in abundance. All this was required in that underworld where popular belief pictured the dead as flitting like bats in the gloom and darkness, and where the heroes of old time sat, strengthless and ghostlike, on their shadowy thrones.

The kings were allowed to be burned and buried in the palace in which they had lived and ruled. We read of one of them that he was interred in "the palace of Sargon" of Akkad, of another that his burial had taken place in the palace he himself had erected. A similar privilege was granted to their subjects only by royal permission.

Want of space caused the tombs of the dead to be built one upon the other, as generations passed away and the older sepulchres crumbled into dust. The cemetery thus resembled the city; here, too, one generation built upon the ruins of its predecessor. The houses and tombs were alike constructed of sun-dried bricks, which soon disintegrate and form a mound of dust. The age of a cemetery, like the age of a city, may accordingly be measured by the number of successive layers of building of which its mound or platform is composed. In Babylonia they are numerous, for the history of the country goes back to a remote past. Each city clustered round a temple, venerable for its antiquity as well as for its sanctity, and the cemetery which stood near it was consequently under the protection of its god. At Cutha the necropolis was so vast that Nergal, the god of the town, came to be known as the "lord of the dead." But the cemeteries of other towns were also of enormous size. Western Asia had received its culture and the elements of its theology from Babylonia, and Babylonia consequently was a sacred land not only to the Babylonians themselves, but to all those who shared their civilization. The very soil was holy ground; Assyrians as well as Babylonians desired that their bodies should rest in it. Here they were in the charge, as it were, of Bel of Nippur or Merodach of Babylon, and within sight of the ancient sanctuaries in which those gods were worshipped. This explains in part the size of the cemeteries; the length of time during which they were used will explain the rest. As Dr. Peters says of each:(4) "It is difficult to convey anything like a correct notion of the piles upon piles of human relics which there utterly astound the spectator. Excepting only the triangular space between the three principal ruins, the whole remainder of the platform, the whole space between the walls, and an unknown extent of desert beyond them, are everywhere filled with the bones and sepulchres of the dead. There is probably no other site in the world which can compare with Warka in this respect."

Babylonia is still a holy land to the people of Western Asia. The old feeling in regard to it still survives, and the bodies of the dead are still carried, sometimes for hundreds of miles, to be buried in its sacred soil. Mohammedan saints have taken the place of the old gods, and a Moslem chapel represents the temple of the past, but it is still to Babylonia that the corpse is borne, often covered by costly rugs which find their way in time to an American or European drawing-room. "The old order changes, giving place to new," but the influence of Chaldean culture and religion is not yet past.

CHAPTER IV. SLAVERY AND THE FREE LABORER

Slavery was part of the foundation upon which Babylonian society rested. But between slavery as it existed in the ancient oriental world and slavery in the Roman or modern world there was a great difference. The slave was often of the same race as his master, sometimes of the same nationality, speaking the same language and professing the same religion. He was regarded as one of the family, and was not infrequently adopted into it. He could become a free citizen and rise to the highest offices of state. Slavery was no bar to his promotion, nor did it imprint any stigma upon him. He was frequently a skilled artisan and even possessed literary knowledge. Between his habits and level of culture and those of his owners was no marked distinction, no prejudices to be overcome on account of his color, no conviction of his inferiority in race. He was brought up with the rest of the family to which he was considered to belong and was in hourly contact with them. Moreover, the large number of slaves had been captives in war. A reverse of fortune might consign their present masters to the same lot; history knew of instances in which master and slave had changed places with one another. There were some slaves, too, who were Babylonians by birth; the law allowed the parent to sell his child, the brother his sister, or the creditor his debtor under certain circumstances, and the old Sumerian legislation ordained that a son who denied his father should be shorn and sold as a slave. In times of famine or necessity a man even sold himself to be quit of a debt or to obtain the means of subsistence. A slave was always fed and clothed; the free laborer at times could get neither food nor clothing.

There were three classes of slaves—those who were the property of a private individual, the serfs who were attached to the soil which they cultivated, and the temple slaves who had been dedicated to the service of the gods. Of the second class but few traces are found in Babylonia. Agriculture was carried on there either by free laborers, or by the slaves of the private land-owners. Where the land belonged to priests, it was of course usually the temple slaves who tilled it. What was the exact legal position of the Jews and other exiles who were transported to Babylonia by Nebuchadnezzar we do not know, but they were neither serfs nor slaves. The practice of transportation had been borrowed from Assyria, and under the Assyrian system the exiled population was treated as a colony. Israelites appear among the Assyrian officials in contracts of the second Assyrian empire, and Jewish names are found in the Babylonian contracts of the age of Nebuchadnezzar and his successors.

The Babylonians were not a military people, and after the Kassite conquest their wars of aggression were not sufficiently numerous or extensive to provide them with a supply of captives who could be made into slaves. Slave-merchants are rarely, if ever, referred to in the Babylonian contract tablets, and the slaves must have been home-born, the children and descendants of those who had been slaves before them. In the age of Abraham it was doubtless different. Then the power of Babylonia extended throughout Western Asia, and the constant wars in the East and West must have filled the market with foreign captives. The white slaves brought from Kurdistan and the north were especially prized. Thus in the reign of Ammi-Zadok, the fourth successor of Khammurabi, some "white Kurdish slaves" were sold for 3 homers and 24⅔ _qas_ of oil, which were valued at 20⅔ shekels, and in the time of his son Samsu-ditana "a white slave" from Suri or Northern Mesopotamia fetched as much as 20 shekels, or £3.

The earliest code of Sumerian laws known to us takes the slave under its protection. It assumes the principle that the life of the slave is not absolutely at his master's disposal, and enacts that, if the slave is killed, beaten, maimed, or injured in health, the hand that has so offended shall pay each day a measure of wheat. This must mean that the payment shall be continued until the slave recovers from his ill-treatment. Light is thrown upon it by a later Babylonian law, according to which, if the services of a slave have been hired by a second person and the slave falls ill or is otherwise rendered incapable of work, the hirer is fined for as long a time as the illness or incapacity continues. The object of the law is clear. It was intended to prevent the slave from being overworked by one who had not, as it were, a family interest in him. It protected the slave and at the same time protected the master to whom he belonged.

There are several instances of its application. Thus in the eighth year of Cyrus a slave named Nidinti was apprenticed for six years by his master and mistress to a certain Libludh in order that he might learn the trade of fulling. It was stipulated that he was to learn it thoroughly, and if at any time he was unable to work Libludh was to pay each day 3 _qas_ (or about 4½ quarts) of wheat for his support. At the end of the period, when the trade had been learned, Libludh was to receive a cloth worth 4 shekels (12 s.) and hand over Nidinti to the service of the Sun-god of Sippara. In the same year another slave was apprenticed to the stone-cutter Quddâ, who was himself a slave and belonged to the heir-apparent, Cambyses. Quddâ undertook to teach his trade to the apprentice in four years, and if he failed to do so was to be fined 20 shekels. Six years earlier Qubtâ, the daughter of Iddina-Merodach, had given the slave of another person to a weaver for a period of five years, in order that he might be taught the art of weaving, at the same time agreeing to provide him with 1 _qa_ (1⅓ quarts) of food each day and to pay his teacher something besides. If, however, he was incapacitated from learning, the weaver was required to pay a daily fine of half a "measure" of wheat, which we are told was the wage of the slave. Any infringement of the contract would be punished by a penalty of 20 manehs.

The slave was able to apprentice himself without the intervention of his owners. Thus in the sixth year of Cyrus one slave apprenticed himself of his own accord to another in order to learn a trade. In this case also the penalty for not being taught the trade was half a "measure" of wheat each day, which is again stated to be the wage of the slave. The wage, however, it would seem, had to be paid to the master, at all events in some cases; this is clear from a document which relates to the conclusion of the apprenticeship in which Nubtâ took part. The slave she had apprenticed had learnt his trade, and his master accordingly received from the teacher 5 shekels, which it was calculated were the equivalent of the services the apprentice had rendered. Ordinarily the 5 shekels would have been considered a return for the slave's maintenance during the term of his apprenticeship; but in this instance, for reasons unknown to us, the maintenance had been provided by a lady and the payment for the slave's services was consequently clear gain.

The slave, however, was allowed to accumulate capital for himself, to trade with it, and even to become rich enough to lend money to his own master or to purchase his own freedom. That a similar privilege was allowed to the slaves of the Israelites we may gather from the fact that Saul's slave offered to pay the seer Samuel a quarter of a shekel which he had about him, though it is true that this might have been the property of his master. In Babylonia the possession of property by the slave was not at all uncommon. In the sixth year of Cambyses, for example, a female slave named Khunnatu received a large quantity of furniture, including five beds, ten chairs, three dishes, and various other kitchen utensils, and agreed to pay the rent of the house in which she deposited them. Her master also lent her 122 shekels of silver, which were expended in buying fifty casks of beer, besides other things, and upon which she was to pay interest. Apparently she wanted to set up an inn or drinking-shop; the fact that the money was lent to her by her master proves that she must have been engaged in business on her own account. In other contracts we find the slave taking a mortgage and trading in onions and grain or employing his money in usury. In one case a slave borrows as much as 14 manehs 49 shekels, or £138 3s., from a member of the Egibi firm. In another case it is a considerable quantity of grain in addition to 12 shekels of silver that is borrowed from the slave by two other persons, with a promise that the grain shall be repaid the following month and the money a year later. The contract is drawn up in the usual way, the borrowers, who, like the witnesses, are free-born citizens, giving the creditor a security and assuming a common responsibility for the debt. The grain, however, was to be repaid in the house of the slave's master; it seems evident, therefore, that the slave had no private house of his own. The slave, nevertheless, could own a house or receive it in payment of a debt. This is illustrated by an interesting contract in which reference is made to Ustanni, the Tatnai of the Book of Ezra, who is called "the governor of Ebir-nâri," "the other side of the river." The contract is as follows:

"Two manehs of silver lent by Kurrulâ, the slave of Ustanni, the governor of Babylon and Ebir-nâri, to Merodach-sum-ibni, the son of Sula, the son of Epes-ilu. The house of the latter, which is by the side of the road of the god Bagarus, is Kurrulâ's security. No one else has any prior claim to it. The house is not to be let or interest taken upon the loan." Then come the names of five free-born witnesses, and the document is dated at Babylon in the third year of Darius. The terms of the contract are precisely the same as those exacted by Cambyses, when he was crown-prince, from a certain Iddin-Nebo, to whom he had lent money through the agency of his secretary, receiving a house as security for the debt.

In some instances the slave was merely the confidential agent of his master, to whom therefore all or most of the profits went. Thus a deed dated in the ninth year of Cyrus describes a field situated opposite the gate of Zamama at Babylon, which had been assigned by "the judges" to a lady named Ê-Saggil-belit, and afterward mortgaged by her to a slave of Itti-Merodach-baladhu, one of the members of the Egibi firm. The lady, however, still wanted money, and accordingly proposed to Itti-Merodach-baladhu that if he would make her a "present" of 10 shekels she would hand over to him her title-deeds. This was done, and the field passed into the possession of Itti-Merodach-baladhu, with whom the mortgage had really been contracted.

In spite of the privileges possessed by the Babylonian slave, he was nevertheless a chattel, like the rest of his master's property. He could constitute the dowry of a wife, could take the place of interest on a debt or of the debt itself, and could be hired out to another, the wages he earned going into the pocket of his master. In the age of Khammurabi we find two brothers hiring the services of two slaves, one of whom belonged to their father and the other to their mother, for ten days. The slaves were wanted for harvest work, and it was agreed that a _gur_ (or 180 _qas_) of grain should be paid them. This, of course, ultimately went to their owners. In the reign of Cambyses a man and his wife, having borrowed 80 shekels, gave a slave as security for the repayment of the loan; the terms of the contract are the same as if the security had been a house. On another occasion a slave is security for only part of a debt which amounted to a maneh and twenty shekels, interest being paid upon the shekels. His service was regarded as equivalent to the interest upon the maneh.

When a slave was sold the seller guaranteed that he was not disobedient, that he had not been adopted by a free citizen, that there was no prior claim to him, and that he had not been impressed into the royal service, or, in the case of female slaves, been a concubine of the king. Purchasers had to be on their guard on all these points. Strict honesty was not always the rule in the Babylonian commercial world, and a case which came before the judges in the early part of the reign of Nabonidos shows that ladies were capable of sharp practice as well as men. The judicial record states that a certain "Belit-litu gave the following evidence before the judges of Nabonidos, King of Babylon: 'In the month Ab, in the first year of Nergal-sharezer, King of Babylon, I sold my slave, Bazuzu, for thirty-five shekels of silver to Nebo-akhi-iddin, the son of Sulâ, the descendant of Egibi; he has pretended that I owed him a debt, and so has not paid me the money.' The judges heard the charge, and caused Nebo-akhi-iddin to be summoned and to appear before them. Nebo-akhi-iddin produced the contract which he had made with Belit-litu; he proved that she had received the money and convinced the judges. And Ziria, Nebo-sum-lisir and Edillu gave (further) evidence before the judges that Belit-litu, their mother, had received the silver. The judges deliberated and condemned Belit-litu to (pay) fifty-five shekels (by way of fine), the highest fine that could be inflicted on her, and then gave it to Nebo-akhi-iddin."

The prices fetched by slaves varied naturally. We have seen that in the Abrahamic age 20 shekels (£3) were given for a white slave from the North, the same price as that for which Joseph was sold. In the reign of Ammi-zadok 4½ shekels only were paid for a female slave. In later times prices were considerably higher, though under Nebuchadnezzar we hear of a slave given as part of a dowry who was valued at 30 shekels, and of a female slave and her infant child whose cost was only 19 shekels. In the first year of Nergal-sharezer a slave-merchant of Harran sold three slaves for 45 shekels, while a little later 32 shekels were given for a female slave. The same sum was given for a slave who was advanced in years, while a slave girl four years of age only was sold for 19 shekels. In the sixth year of Cambyses an Egyptian and her child three months old, whom the Babylonian Iddin-Nebo had "taken, with his bow," was sold by him for 2 manehs or 120 shekels, a bond for 240 _gurs_ of dates being handed over to him as security for the payment of the sum. The Egyptian, it may be noted, received a Babylonian name before being put up for auction. In the same reign we hear of 3 manehs being paid for two slaves, of a maneh for a single slave, and of 7 manehs 56 shekels for three female slaves. This would be at the rate of 2 manehs 38 shekels or £23 14s. for each. On the whole, however, the average price seems to have been about 30 shekels. This, at any rate, was the case among the Israelites, not only in the Mosaic period (Exod. xxi. 32) but also in the time of the Maccabees (II. Macc. viii. 9, 10).

The fact that slaves sometimes ran away from their masters, like Barachiel, who pretended to be a free citizen, and that in contracts for their sale their obedience is expressly guaranteed, proves that they were not always content with their lot. Indeed, it is not strange that it should have been so. They were merely chattels, subject to the caprices and tyranny of those who owned them, and their lives were as little valued as that of an ox. Thus in the fortieth year of Nebuchadnezzar a judgment was delivered that, if it could be proved by witnesses that a certain Idikhi-ilu had murdered the slave of one of the Arameans settled in the town of Pekod, he was to be fined a maneh of silver; that was all the slave's life was worth in the eyes of the law, and even that was paid to the master to compensate him for the loss of his property. Sometimes the name of the slave was changed; as we have seen, the captive Egyptian woman received a Babylonian name, and a contract of the time of Khammurabi, relating to the female slave of a Babylonian lady, who had been given to her by her husband, and who, it is stipulated, shall not be taken from her by his sons after his death, mentions that the name of the slave had been changed. In this case, however, the reason seems to have been that the girl was adopted by her mistress, though the adoption was not carried out in legal form and was therefore technically invalid. The contract accordingly describes her by her proper name of Mutibasti, but adds that "she is called Zabini, the daughter of Saddasu," her mistress.

That the law should nevertheless have regarded the slave as a person, and as such possessed of definite rights, appears strange. But Babylonian law started from the principle of individual responsibility and individual possession of property, and since the slave was a human being and could, moreover, hold property of his own, it necessarily seemed to place him more and more on a footing of equality with the free-born citizen. The causes which brought about the legal emancipation of women worked in the same direction in favor of the slave. Hence the power he had of purchasing his freedom out of his own earnings and of being adopted into a citizen's family. Hence, too, the claim of the law to interfere between the slave-owner and his property.

A slave, in fact, could even act as a witness in court, his testimony being put on the same legal level as that of a native Babylonian. He could also be a party to a suit. Thus we find a slave called Nergal-ritsua, in the tenth year of Nabonidos, bringing a suit for the recovery of stolen property. He had been intrusted by his master with the conveyance of 480 _gur_ of fruit to the ships of a Syrian, named Baal-nathan, who undertook to carry it to Babylon, and to be responsible for loss. On the way part of the fruit was stolen, and Baal-nathan, instead of replacing it, absconded, but was soon caught. The slave accordingly appeared against him, and the five judges before whom the case was brought gave a verdict in his favor.

A slave could even own another slave. In the twenty-seventh year of Nebuchadnezzar, for example, the porter of the temple of the Sun-god at Sippara, who was "the slave of Nebo-baladh-yulid," purchased a female slave for two-thirds of a shekel (2s.). The amount was small, but the purchaser did not possess so much at the moment, and credit was consequently allowed him. The list of witnesses to the contract is headed by a slave.

The condition of the slave in Assyria was much what it was in Babylonia. The laws and customs of Assyria were modelled after those of Babylonia, whence, indeed, most of them had been derived. But there was one cause of difference between the two countries which affected the character of slavery. Assyria was a military power, and the greater part of its slaves, therefore, were captives taken in war. In Babylonia, on the contrary, the majority had been born in the country, and between them and their masters there was thus a bond of union and sympathy which could not exist between the foreign captive and his conqueror. In the northern kingdom slavery must have been harsher.

Slaves, moreover, apparently fetched higher prices there, probably on account of their foreign origin. They cost on the average as much as a maneh (£9) each. A contract, dated in 645 B.C., states that one maneh and a half was given for a single female slave. One of the contracting parties was a Syrian, and an Aramaic docket is accordingly attached to the deed, while among the witnesses to it we find Ammâ, "the Aramean secretary." Ammâ means a native of the land of Ammo, where Pethor was situated. About the same time 3 manehs, "according to the standard of Carchemis," were paid for a family of five slaves, which included two children. Under Esar-haddon a slave was bought for five-sixths of a maneh, or 50 shekels, and in the same year Hoshea, an Israelite, with his two wives and four children, was sold for 3 manehs. With these prices it is instructive to compare the sum of 43 shekels given for a female slave in Babylonia only four years later.

As a specimen of an Assyrian contract for the sale of slaves we may take one which was made in 709 B.C., thirteen years after the fall of Samaria, and which is noticeable on account of the Israelitish names which it contains: "The seal of Dagon-melech," we read, "the owner of the slaves who are sold. Imannu, the woman U——, and Melchior, in all three persons, have been approved by Summa-ilâni, the bear-hunter from Kasarin, and he has bought them from Dagon-melech for three manehs of silver, according to the standard of Carchemish. The money has been fully paid; the slaves have been marked and taken. There shall be no reclamation, lawsuit, or complaints. Whoever hereafter shall at any time rise up and bring an action, whether it be Dagon-melech or his brother or his nephew or any one else belonging to him or a person in authority, and shall bring an action and charges against Summa-ilâni, his son, or his grandson, shall pay 10 manehs of silver, or 1 maneh of gold (£140), to the goddess Istar of Arbela. The money brings an interest of 10 (_i.e._, 60) per cent. to its possessors; but if an action or complaint is brought it shall not be touched by the seller. In the presence of Addâ the secretary, Akhiramu the secretary, Pekah the governor of the city, Nadab-Yahu (Nadabiah) the bear-hunter, Bel-kullim-anni, Ben-dikiri, Dhem-Istar, and Tabnî the secretary, who has drawn up the deed of contract." The date is the 20th of Ab, or August, 709 B.C.

The slaves are sold at a maneh each, and bear Syrian names. Addâ, "the man of Hadad," and Ben-dikiri are also Syrian; on the other hand, Ahiram, Pekah, and Nadabiah are Israelitish. It is interesting to find them appearing as free citizens of Assyria, one of them being even governor of a city. It serves to show why the tribes of Northern Israel so readily mingled with the populations among whom they were transported; the exiles in Assyria were less harshly treated than those in Babylonia, and they had no memories of a temple and its services, no strong religious feeling, to prevent them from being absorbed by the older inhabitants of their new homes.

In Assyria, as in Babylonia, parents could sell their children, brothers their sisters, though we do not know under what circumstances this was allowed by the law. The sale of a sister by her brother for half a maneh, which has already been referred to, took place at Nineveh in 668 B.C. In the contract the brother is called "the owner of his sister," and any infringement of the agreement was to be punished by a fine of "10 silver manehs, or 1 maneh of gold," to the treasury of the temple of Ninip at Calah. About fifteen years later the services of a female slave "as long as she lived" were given in payment of a debt, one of the witnesses to the deed being Yavanni "the Greek." Ninip of Calah received slaves as well as fines for the violation of contracts relating to the sale of them; about 645 B.C., for instance, we find four men giving one to the service of the god. Among the titles of the god is that of "the lord of workmen;" and it is therefore possible that he was regarded as in a special way the patron of the slave-trader.

It seems to have been illegal to sell the mother without the children, at all events as long as they were young. In the old Sumerian code of laws it was already laid down that if children were born to slaves whom their owner had sold while still reserving the power of repurchasing them, he could nevertheless not buy them back unless he bought the children at the same time at the rate of one and a half shekels each. The contracts show that this law continued in force down to the latest days of Babylonian independence. Thus the Egyptian woman who was sold in the sixth year of Cambyses was put up to auction along with her child. We may gather also that it was not customary to separate the husband and wife.(5) When the Israelite Hoshea, for instance, was put up for sale in Assyria in the reign of Esar-haddon, both his wives as well as his children were bought by the purchaser along with him. It may be noted that the slave was "marked," or "tattooed," after purchase, like the Babylonian cattle. This served a double purpose; it indicated his owner and identified him if he tried to run away.

In a country where slaves were so numerous the wages of the free workmen were necessarily low. There were, however, two classes of free workmen, the skilled artisan and the agricultural laborer. The agricultural character of the Babylonian state, and the fact that so many of the peasantry possessed land of their own, prevented the agriculturist from sinking into that condition of serfdom and degradation which the existence of slavery would otherwise have brought about. Moreover, the flocks and cattle were tended by Bedâwin and Arameans, who were proud of their freedom and independence, like the Bedâwin of modern Egypt. In spite, therefore, of the fact that so much of the labor of the country was performed by slaves, agriculture was in high esteem and the free agriculturist was held in honor. Tradition told how Sargon of Akkad, the hero of ancient Babylonia, had been brought up by Akki the irrigator, and had himself been a gardener, while the god Tammuz, the bridegroom of Istar, had tended sheep. Indeed, one of the oldest titles of the Babylonian kings had been that of "shepherd."

At the same time there was a tendency for the free laborer to degenerate into a serf, attached to the soil of the farm on which he and his forefathers had been settled for centuries. A contract dated in the first year of Cyrus is an illustration of the fact. It records the lease of a farm near Sippara, which belonged to the temple of the Sun-god, and was let to a private individual by the chief priest and the civil governor of the temple. The farm contained 60 _gur_ of arable land, and the lease of it included "12 oxen, 8 peasants, 3 iron plough-shares, 4 axes, and sufficient grain for sowing and for the support of the peasants and the cattle." Here the peasants are let along with the land, and presumably would have been sold with it had the farm been purchased instead of being let. They were, in fact, irremovable from the soil on which they had been born. It must, however, be remembered that the farm was the property of a temple, and it is possible that serfdom was confined to land which had been consecrated to the gods. In that case the Babylonian serfs would have corresponded with the Hebrew Nethinim, and might have been originally prisoners of war.

We learn some details of early agricultural life in Babylonia from the fragments of an old Sumerian work on farming which formed one of the text-books in the Babylonian schools. Passages were extracted from it and translated into Semitic for the use of the students, and difficult words and expressions were noted and explained. The book seems to have resembled the "Works and Days" of the Greek poet Hesiod, except that it was not in verse. We gather from it that the agricultural year began, not with Nisan, or March, but with Tisri, or September, like the Jewish civil year; at all events, it was then that the tenure of the farmer began and that his contract was drawn up with the landlord. It was then, too, after the harvest, that he took possession of the land, paying his tax to the government, repairing or making the fences, and ploughing the soil.

His tenure was of various kinds. Sometimes he undertook to farm the land, paying half the produce of it to the landlord or his agent and providing the farming implements, the seeds, and the manure himself. Sometimes the farm was worked on a co-operative system, the owner of the land and the tenant-farmer entering into partnership with one another and dividing everything into equal shares. In this case the landlord was required to furnish carts, oxen, and seeds. At other times the tenant received only a percentage of the profits—a third, a fourth, a fifth, or a tenth, according to agreement. He had also to pay the _esrâ_ or tithe.

The most common form of tenure seems to have been that in which a third of the produce went to the lessor. Two-thirds of the rent, paid either in dates or in their monetary equivalent, was delivered to the landlord on the last day of the eighth month, Marchesvan, where the dates had been gathered and had been laid out to dry. By the terms of the lease the tenant was called upon to keep the farm buildings in order, and even to erect them if they did not exist. His own house was separate from that in which the farm-servants lived, and it was surrounded by a garden, planted for the most part with date-palms. If the farm-buildings were not built or were not kept in proper repair a fine was imposed upon him, which in the case quoted by the writer of the agricultural work was 10 shekels, or 30s. The tenant was furthermore expected to pay the laborers their wages, and the landlord had the power of dismissing him if the terms of the contract were not fulfilled.

The laborers were partly slaves, partly freemen, the freemen hiring themselves out at so much a month. A contract of the age of Khammurabi, for instance, states that a certain Ubaru, had thus hired himself out for thirty days for half a shekel of silver, or 1s. 6d., but he had to offer a guarantee that he would not leave his master's service before the expiration of the month. In other cases it was a slave whose services were hired from his owner; thus, in a document from Sippara, of the same age as the preceding, we read: "Rimmon-bani hires Sumi-izitim as a laborer for his brother, for three months, at a wage of one shekel and a half, 3 measures of grain and 1½ _qa_ of oil. There shall be no withdrawal from the agreement. Ibni-A-murru and Sikni-Ea have confirmed it. Rimmon-bani hires the laborer in the presence of Abum-ilu (Abimael), the son of Ibni-Samas, Ilisu-ibni, the son of Igas-Rimmon, and Arad-Bel, the son of Akhuwam. (Dated) the first day of Sivan." The wages evidently went to the slave, so that he was practically in the position of a free laborer.

When we come down to a later period, we find in contract, dated at the end of the second year of a Cyrus, Bunene-sar-uzur, "the son of Sum-yukin," hired, as a servant for a year, "from the month Nisan to the month Adar," for 3 shekels of silver. These were paid beforehand to a third person, and the payment was duly witnessed and registered. Bunene-sar-uzur was not a slave, though 9 shillings does not seem much as wages for a whole year. However, three years later only 1 _pi_, or about 50 quarts of meal, were given for a month's supply of food to some men who were digging a canal. The hours of work doubtless lasted from sunrise to sunset, though we have a curious document of the Macedonian period, dated in the reign of Seleucus II., in which certain persons sell the wages they receive for work done in a temple during the "sixth part" of a day. The sum demanded was as much as 65 shekels.

The Aramean Bedâwin, who acted as shepherds, or cattle-drovers, probably received better wages than the native Babylonians. They were less numerous and were in more request; moreover, it was necessary that they should be trustworthy. The herds and flocks were left in their charge for weeks together, on the west bank of the Euphrates, out of sight of the cultivated fields of Babylonia and exposed to the attacks of marauders from the desert. Early Babylonian documents give long lists of the herdsmen and shepherds, and of the number of sheep or oxen for which they were responsible, and which were the property of some wealthy landowner. In the seventeenth year of Nabonidos, five of the shepherds received one shekel and a half of silver, as well as a _gur_, or about 250 quarts, of grain from the royal granary.

Some of the songs have been preserved to us with which the Babylonian laborer beguiled his work in the fields. They probably formed part of the treatise on agriculture which has already been described; at any rate, we owe their preservation to the educational text-books, in which they have been embodied, along with Semitic translations of the original Sumerian text. Here is one which the peasants sang to the oxen as they returned from the field:

My knees are marching,
My feet are not resting;
Taking no thought,
Drive me home.

In a similar strain the ploughman encouraged his team with the words:

A heifer am I,
To the mule I am yoked.
Where is the cart?
Go, look for grass;
It is high, it is high!

Or again, the oxen, while threshing, would be addressed with the refrain:

Before the oxen,
As they walk,
Thresh out the grain.

Ploughing, harrowing, sowing, reaping, and threshing constituted the chief events of the agricultural year. The winters were not cold, and the Babylonian peasant was consequently not obliged to spend a part of the year indoors shivering over a fire. In fact fuel was scarce in the country; few trees were grown in it except the palm, and the fruit of the palm was too valuable to allow it to be cut down. When the ordinary occupations of the farmer had come to an end, he was expected to look after his farm buildings and fences, to build walls and clean out the ditches.

The ditches, indeed, were more important in Babylonia than in most other parts of the world. Irrigation was as necessary as in Egypt, though for a different reason. The Chaldean plain had originally been a marsh, and it required constant supervision to prevent it from being once more inundated by the waters and made uninhabitable. The embankments which hindered the overflow of the Euphrates and Tigris and kept them within carefully regulated channels, the canals which carried off the surplus water and distributed it over the country, needed continual attention. Each year, after the rains of the winter, the banks had to be strengthened or re-made and the beds of the canals cleared out. The irrigator, moreover, was perpetually at work; the rainy season did not last long, and during the rest of the year the land was dependent on the water supplied by the rivers and canals. Irrigation, therefore, formed a large and important part of the farmers' work, and the bucket of the irrigator must have been constantly swinging. Without the irrigator the labors of the farmer would have been of little avail.

CHAPTER V. MANNERS AND CUSTOMS

Babylonia was a land of bricks. Stone was not found nearer than the mountains of Elam on the one side or the desert plains of Northern Arabia on the other. Clay, on the contrary, was plentiful, and the art of making bricks and building a house by means of them must have been invented by the first settlers in the country. The bricks were dried in the sun, the heat of which was sufficient to harden them. The clay was further bound together by being mixed with chopped reeds, though the use of the latter was not universal, at all events in the earlier times. In the later days of Babylonian history, however, they were generally employed, and we learn from the contracts that a bed of reeds grown for the sake of the brick-makers' trade was by no means an unprofitable investment. Either clay or bitumen took the place of mortar; the bitumen was procured from Hit or from the Kurdish hills, where there are still springs of naphtha; after the conquest of Canaan it may have been brought from the neighborhood of the Dead Sea. Some scholars have thought that this is referred to by Gudea, the priest-king of Lagas (2700 B.C.).

The employment of brick had a very direct effect upon the character of Babylonian architecture. Thick walls, supported by buttresses and devoid of sculpture, were necessitated by it. The buildings of Babylonia were externally plain and flat; masses of brick were piled up in the form of towers or else built into long lines of wall of unbroken monotony. The roofs were made of the stems of palm-trees, which rested on the stems of other palm-trees, where the space between one brick wall and another was too great to be safely spanned. The upright stems became columns, which were imitated first in brick and then in stone. Babylonia was thus the birthplace of columnar architecture, and in the course of centuries columns of almost every conceivable shape and kind came to be invented. Sometimes they were made to stand on the backs of animals, sometimes the animal formed the capital. The column which rested against the wall passed into a brick pilaster, and this again assumed various forms.

The monotony of the wall itself was disguised in different ways. The pilaster served to break it, and the walls of the early Chaldean temples are accordingly often broken up into a series of recessed panels, the sides of which are formed by square pilasters. Clay cones were also inserted in the wall and brilliantly colored, the colors being arranged in patterns. But the most common form of decoration was where the wall was covered with painted stucco. This, indeed, was the ordinary mode of ornamenting the internal walls of a building; a sort of dado ran round the lower part of them painted with the figures of men and animals, while the upper part was left in plain colors or decorated only with rosettes and similar designs. Ezekiel(6) refers to the figures of the Chaldeans portrayed in vermilion on the walls of their palaces, and the composite creatures of Babylonian mythology who were believed to represent the first imperfect attempts at creation were depicted on the walls of the temple of Bel.

Among the tablets which have been found at Tello are plans of the houses of the age of Sargon of Akkad. The plans are for the most part drawn to scale, and the length and breadth of the rooms and courts contained in them are given. The rooms opened one into the other, and along one side of a house there usually ran a passage. One of the houses, for example, of which we have a plan, contained five rooms on the ground floor, two of which were the length of the house. The dimensions of the second of these is described as being 8 cubits in breadth and 1 _gardu_ in length. The _gardu_ was probably equivalent to 18 cubits or about 30 feet. In another case the plan is that of the house of the high priest of Lagas, and at the back of it the number of slaves living in it is stated as well as the number of workmen employed to build it. It was built, we are told, in the year when Naram-Sin, the son of Sargon, made the pavement of the temples of Bel at Nippur and of Istar at Nin-unu.

The temple and house were alike erected on a platform of brick or earth. This was rendered necessary by the marshy soil of Babylonia and the inundations to which it was exposed. The houses, indeed, generally found the platform already prepared for them by the ruins of the buildings which had previously stood on the same spot. Sun-dried brick quickly disintegrates, and a deserted house soon became a mound of dirt. In this way the villages and towns of Babylonia gradually rose in height, forming a _tel_ or mound on which the houses of a later age could be erected.

In contrast to Babylonia the younger kingdom of Assyria was a land of stone. But the culture of Assyria was derived from Babylonia, and the architectural fashions of Babylonia were accordingly followed even when stone took the place of brick. The platform, which was as necessary in Babylonia as it was unnecessary in Assyria, was nevertheless servilely copied, and palaces and temples were piled upon it like those of the Babylonians. The ornamentation of the Babylonian walls was imitated in stone, the rooms being adorned with a sculptured dado, the bas-reliefs of which were painted in bright colors. Even the fantastic shapes of the Babylonian columns were reproduced in stone. Brick, too, was largely used; in fact, the stone served for the most part merely as a facing, to ornament rather than strengthen the walls.

The Babylonian princes had themselves set the example of employing stone for the sake of decoration. Stone was fetched for the purpose from the most distant regions, regardless of cost. Gudea, the priest-king of Lagas, imported limestone from the Lebanon and from Samalum, near the Gulf of Antioch, while the statues which adorned his palace, and are now in the Louvre, are carved out of diorite from the Peninsula of Sinai. The diorite doubtless came by sea, but the blocks of hewn stone that were brought from "the land of the Amorites" must have been conveyed overland.

Even more precious materials than stone were used for decorative purposes. Gold and silver, bronze and ivory, lapis-lazuli and colored glass, ornamented the cornices and other parts of the interior of the palace. Gudea tells us that he had sent to the deserts which bordered on Egypt for gold-dust and acacia-wood, to Arabia for copper, and to Mount Amanus for beams of cedar. The elephant was still hunted on the banks of the Euphrates near the city of Carchemish, and lapis-lazuli was furnished by the mountains of Persia.

A garden was planted by the side of the house. The Babylonians were an agricultural people, and even the cities were full of the gardens attached to the houses of all who could afford to have them. Originally the garden was little more than a grove of palms. But herbs and vegetables soon began to be grown in it, and as habits of luxury increased, exotic trees and shrubs were transplanted to it and flowers were cultivated for the sake of their scent. Tiglath-pileser I. of Assyria tells us how he had "taken and planted in the gardens of his country cedars" and other trees "from the lands he had conquered, which none of the kings his predecessors had ever planted before," and how he had "brought rare vines which did not exist in Assyria and had cultivated them in the land of Assyria." At a later date Sennacherib laid out a pleasure-garden or "paradise" by the side of the palace he erected, filling it with cypresses and other trees as well as fragrant plants, and digging a lake in the midst of it by means of which it could be watered. One of the bas-reliefs in the palace of Assur-bani-pal represents the King and Queen dining in the royal garden under the shadow of its palms, while an attendant drives away the insects with a fan. The Assyrians did but imitate their Babylonian neighbors, and in the gardens of Nineveh we must see many copies of the gardens that had been laid out in Babylonia long ages before. The very word "paradise," which in the Persian age came to signify a pleasure-park, was of Babylonian origin. It is given in the exercise-book of a Babylonian school-boy as the name of a mythical locality, and an etymological pun attempts to derive it from the name of the god Esu.

It was, of course, only the houses of the rich and noble which were artistically furnished or provided with a garden. The poorer classes lived in mud huts of conical form, which seldom contained more than one or two rooms. Air and light were admitted through the door or through small apertures in the walls. In the better class of houses, on the other hand, the windows were of large size, and were placed near the ceiling. The air was excluded by means of curtains which were drawn across them when the weather was cold or when it was necessary to keep out the sunlight. The houses, moreover, consisted of more than one story, the upper stories being approached by a flight of steps which were open to the air. They were usually built against one of the sides of a central court, around which the rooms were ranged, the rooms on the upper floors communicating with one another by means of a covered corridor, or else by doors leading from one chamber to the other. The apartments of the women were separate from those of the men, and the servants slept either on the ground-floor or in an outbuilding of their own.

The furniture, even of the palaces, was scanty from a modern point of view. The floor was covered with rugs, for the manufacture of which Babylonia was famous, and chairs, couches, and tables were placed here and there. The furniture was artistic in form; a seal-cylinder, of the age of Ur-Bau, King of Ur, the older contemporary of Gudea, represents a chair, the feet of which have been carved into the likeness of those of oxen. If we may judge from Egyptian analogies the material of which they were formed would have been ivory. The Assyrian furniture of later days doubtless followed older Babylonian models, and we can gain from it some idea of what they must have been like. The chairs were of various kinds. Some had backs and arms, some were mere stools. The seats of many were so high that a footstool was required by those who used them. The employment of the footstool must go back to a considerable antiquity, since we find some of the Tel-el-Amarna correspondents in the fourteenth century before our era comparing themselves to the footstool of the King. Chairs and stools alike were furnished with cushions which were covered with embroidered tapestries. So also were the couches and bedsteads used by the wealthier classes. The poor contented themselves with a single mattress laid upon the floor, and since everyone slept in the clothes he had worn during the day, rising in the morning was not a difficult task.

The tables had four legs, and the wood of which they were composed was often inlaid with ivory. Wood inlaid with ivory and other precious materials was also employed for the chairs and sofas. Tripods of bronze, moreover, stood in different parts of the room, and vases of water or wine were placed upon them. Fragments of some of them have been found in the ruins of Nineveh, and they are represented in early Babylonian seals. The feet of the tripod were artistically shaped to resemble the feet of oxen, the clinched human hand, or some similar design. At meals the tripod stood beside the table on which the dishes were laid. Those who eat sat on chairs in the earlier period, but in later times the fashion grew up, for the men at any rate, to recline on a couch. Assur-bani-pal, for example, is thus represented, while the Queen sits beside him on a lofty chair. Perhaps the difference in manners is an illustration of the greater conservatism of women who adhere to customs which have been discarded by the men.

Vases of stone and earthenware, of bronze, gold, and silver, were plentifully in use. A vase of silver mounted on a bronze pedestal with four feet, which was dedicated to his god by one of the high-priests of Lagas, has been found at Tello, and stone bowls, inscribed with the name of Gudea, and closely resembling similar bowls from the early Egyptian tombs, have also been disinterred there. A vase of Egyptian alabaster, discovered by the French excavators in Babylonia, but subsequently lost in the Tigris, bore upon it an inscription stating it to have been part of the spoil obtained by Naram-Sin, the son of Sargon of Akkad, from his conquest of the Sinaitic peninsula. In Assyrian days the vases were frequently of porcelain or glass; when these were first introduced is still unknown. Various articles of furniture are mentioned in the later contracts. Under Nabonidos, 7 shekels, or 21 shillings, were given for a copper kettle and cup, the kettle weighing 16 manehs (or 42 pounds troy) and the cup 2 manehs (5 pounds 7 ounces troy). These were left, it may be noted, in the safe-keeping of a slave, and were bought by a lady. At a later date, in the third year of Cambyses, as much as 4 manehs 9 shekels, or £36 7s., were paid for a large copper jug and _qulla_, which was probably of the same form as the _qullas_ of modern Egypt. The female slave who seems to have started an inn in the sixth year of Cambyses provided herself with five bedsteads, ten chairs, three dishes, one wardrobe (?), three shears, one iron shovel, one syphon, one wine-decanter, one chain (?), one brazier, and other objects which cannot as yet be identified. The brazier was probably a Babylonian invention. At all events we find it used in Judah after contact with Assyria had introduced the habits of the farther East among the Jews (Jer. xxxvi. 22), like the gnomon or sun-dial of Ahaz (Is. xxxviii. 8), which was also of Babylonian origin (Herod., ii., 109). The gnomon seems to have consisted of a column, the shadow of which was thrown on a flight of twelve steps representing the twelve double hours into which the diurnal revolutions of the earth were divided and which thus indicated the time of day.

What the chairs, tables, footstools, and couches were like may be seen from the Assyrian bas-reliefs. They were highly artistic in design and character, and were of various shapes. The tables or stands sometimes had the form of camp-stools, sometimes were three-legged, but more usually they were furnished with four legs, which occasionally were placed on a sort of platform or stand. At times they were provided with shelves. Special stands with shelves were also made for holding vases, though large jars were often made to stand on tripods.

If we may judge from the old lists of clothing that have come down to us, the Babylonians must have been fond of variety in dress. The names of an immense number of different kinds of dress are given, and the monuments show that fashions changed from time to time. Thus the earliest remains of Chaldean art exhibit three successive changes in the head-dress, and similar changes are to be noticed in the dress of the Assyrian kings as it is represented in the bas-reliefs.

To the last, however, the principal constituents of Babylonian dress remained the same. There were a hat or head-dress, a tunic or shirt, and a long robe which reached to the ankles, to which in cold weather was added a cloak. The hat or cap was made of some thick substance like felt and was sometimes quilted. The Babylonian King Merodach-nadin-akhi (1100 B.C.) is represented in a square cap which is ornamented with a row of feathers; below these is a band of rosettes. The Assyrian King generally wore a lofty tiara; this was a survival of the tiara of the early Babylonians. Above his head was carried a parasol to protect him from the sun; but the use of the parasol was confined to the upper classes, if not to the royal family alone.

The tunic was of linen, or more often of wool, which was manufactured in Babylonia on a large scale. It reached half-way down the knees and was fastened round the waist by a girdle. Under it a second tunic or vest was sometimes worn in cold weather. Drawers were seldom used, though in the time of the second Assyrian empire the cavalry and heavy-armed bowmen wore tightly fitting drawers of plaited leather, but the custom was probably introduced from the north. A bilingual vocabulary, however, gives a Sumerian word for this article of dress, which may therefore have been occasionally adopted in pre-Semitic days.

The long robe was usually sleeveless and ornamented with a fringe. It opened in front, and in walking allowed the left leg to be seen. The girdle was often tied around it instead of round the tunic. The Assyrian King is sometimes represented as wearing a sort of richly embroidered cape over the robe. The cape or cloak, however, was specially characteristic of the Babylonians, as the Assyrians found it inconvenient in war or active exercise, and accordingly preferred to discard it. Most of them wore it only on state occasions or when in full dress.

The feet were shod with sandals, though the Babylonians, as a rule, went barefoot. So also did the lower classes among the Assyrians, as well as a portion of the army. The sandals were attached to the foot by leather thongs, and the heel was protected by a cap. The boot, however, was introduced from the colder regions of the north before the twelfth century B.C. At all events, Merodach-nadin-akhi is depicted as wearing soft leather shoes, and Sennacherib adopted a similar foot-covering. This was laced in front like the high-laced boots with which the Assyrian cavalry were provided toward the end of the reign of Tiglath-pileser III.

The priest was distinguished by a curiously flounced dress, made perhaps of a species of muslin, which descended to the feet, and is often pictured on the early seals. Over his shoulders was flung a goat's skin, the symbol of his office, like the leopard's skin worn by the priests in Egypt.

In the early Babylonian period the dress of all classes was naturally much more simple than that of a later date. The poor were contented with a short kilt, the King and his family with a long one. One of the early rulers of Lagas, for instance, is represented as wearing only a skull-cap and a kilt which reaches nearly to the ankles. It was under the Semitic empire of Sargon of Akkad that the long robe seems first to have become common. But it was worn over the left shoulder only, and as the tunic was not yet introduced into ordinary use, the right shoulder was left bare. Even Naram-Sin, the conqueror of Sinai, is depicted as clad in this simple costume in a bas-relief found near Diarbekr. The robe is quilted, and on the King's head is a conical cap of felt. The statues of the age of Gudea also show no sign of the tunic. The development out of the kilt must belong to a later age.

The costume of the women does not appear to have differed much from that of the men. Both alike adopted the long robe. But representations of women are unfortunately rare. The Queen of Assur-bani-pal is dressed in a long, sleeveless robe, over which is a fringed frock reaching to the knees, and over this again a light cape, also fringed and embroidered with rosettes. This may, therefore, be regarded as the official dress of a grand lady in the closing days of the Assyrian empire.

Both men and women were fond of jewelry, and adorned themselves with rings, bracelets, ear-rings, and necklaces. The women also wore anklets, like many of the Oriental women of to-day. The men carried a stick in the street, and all who could afford it had a small engraved cylinder of stone attached to the wrist by a ring which passed through an orifice in the cylinder. The cylinder served the purpose of a seal, and was constantly required in business transactions. No deed was valid without the seal or mark of the contracting parties; when either of them was too poor to possess a seal, a nail-mark was impressed upon the clay of the contract tablet, and a note added stating to whom it was that the mark belonged.

The seal-cylinder was a Babylonian invention. In a land where there were no stones every pebble was of value, and the Babylonians accordingly became expert gem-cutters at a very early period. Gem-cutting, in fact, was a highly developed art among them, and the seal-cylinder of Ibni-sarru, the librarian of Sargon of Akkad, which is now in a private collection in Paris, is one of the most beautiful specimens of the art that has ever been produced. The pebble was cut in a cylindrical shape, and various figures were engraved upon it. The favorite design was that of a god or goddess to whom the owner of the seal is being introduced by a priest; sometimes the King takes the place of the deity, at other times it is the adventures of Gilgames, the hero of the great Chaldean Epic, that are represented upon the stone. The design is usually accompanied by a few lines of inscription, giving the name of the owner of the seal, as well as that of his father, and stating of what god or King he was "the servant." The seals were often kept in stock by their makers, a blank space being left for the inscription, which was to be engraved upon them as soon as they had found a purchaser. Hence it is that at times the names have never been filled in.

The style and pattern of the cylinder changed in the course of centuries, as well as the favorite materials of which it was made. Under the dynasty of Ur, which preceded that of Khammurabi, for instance, hæmatite was more especially in vogue; in the age of Nebuchadnezzar crystal became fashionable. At one period, moreover, or among the artists of a particular local school, the representation of a human sacrifice was common. Between the inscription on the cylinder, however, and the subjects engraved upon it there is seldom, if ever, any connection, except when a portrait is given of the god or King of whom the owner calls himself the servant.

A hole was drilled through the length of the cylinder, and through this a string was passed. Instead of the string a rod of metal or ivory was often employed; this was fixed in a frame of gold or bronze, and the cylinder was thus able to turn upon it. When the seal was used it was rolled over the soft clay, leaving an indelible impression behind. Among the objects found at Tello are balls of clay, which were attached to papyrus documents, like the seals of mediæval deeds, and sealed with the cylinders of the post-masters of Sargon and Naram-Sin. Above the seal comes the address, in one case to Naram-Sin, in another to the high-priest of Lagas. It is evident that a postal system had already been established between Lagas and Agade or Akkad, the capital of Sargon's empire. The impressions show that the seals must have been very beautiful specimens of workmanship. They all belonged to high officials; one to Dada, "the seer of the palace," another to the high-priest of Lagas himself.

Great attention was paid to the hair of the head and beard. But this was more especially the case among the Semites, who were a bearded race. The older Sumerian population had but little hair upon the face, and to the last the typical Babylonian was distinguished from the Assyrian by the greater absence of beard. The result was that while the Semite encouraged his hair to grow, the Sumerian shaved it except in the case of old men. Most of the Sumerian heads which have been discovered in the excavations of Tello have smooth faces and shorn heads. The figures represented on the so-called Stela of the Vultures, one of the earliest examples of Chaldean art, are without beards, and on the early seal-cylinders the gods alone, as a rule, are permitted to wear them. We are reminded of the Egyptian custom which forbade the beard except to the King and the god. The barber, in fact, occupied an important position in ancient Babylonia, and the old Sumerian code of laws enjoins that a son who denies his father shall be shorn and sold as a slave.

With the rise of Semitic supremacy, however, there is a great change. Naram-Sin, in the bas-relief of Diarbekr, wears beard and whiskers and mustache like the Assyrians of a later day, and like them also his hair is artificially curled, though to a lesser extent. The same long beard also distinguishes Khammurabi in a piece of sculpture in which he is entitled "the king of the land of the Amorites." The gods, too, now assume a mustache as well as a beard and take upon them a Semitic character.

The use of cosmetics must have become widely spread, and many of the small stone vases in which they were kept and which have been found on the sites of Babylonian cities were doubtless intended for the hair-dresser. The oil that was poured upon the hair made it bright and shining and it was worn long whether it grew on the head or on the face. The Babylonians had long been known as "the people of the black heads," perhaps in contrast to the fairer inhabitants of the Kurdish mountains to the north, and the black hair, frizzled and curled, was now allowed to be visible. The working classes bound it with a simple fillet; the wealthier members of society protected it with caps and tiaras. But all alike were proud of it; the days were past when a beardless race had held rule in Western Asia.

CHAPTER VI. TRADES, HOUSES, AND LAND; WAGES AND PRICES

Babylonia, as we have seen, was essentially an industrial country. In spite of its agricultural basis and the vast army of slaves with which it was filled, it was essentially a land of trades and manufactures. Its manufacturing fame was remembered into classical days. One of the rooms in the palace of Nero was hung with Babylonian tapestries, which had cost four millions of sesterces, or more than £32,000, and Cato, it is said, sold a Babylonian mantle because it was too costly and splendid for a Roman to wear. The wool of which the cloths and rugs of Babylonia were made was derived from the flocks which fed on the banks of the Euphrates, and a large body of artisans was employed in weaving it into tapestries and curtains, robes and carpets. They were woven in bright and vari-colored patterns; the figures of men and animals were depicted upon them and the bas-relief or fresco could be replaced upon the wall by a picture in tapestry. The dyes were mainly vegetable, though the kermes or cochineal-insect, out of which the precious scarlet dye was extracted, was brought from the neighborhood of the Indus. So at least Ktesias states in the age of the Persian empire; and since teak was found by Mr. Taylor among the ruins of Ur, it is probable that intercourse with the western coast of India went back to an early date. Indeed an old bilingual list of clothing gives _sindhu_ as the name of a material which is explained to be "vegetable wool;" in this we must see the cotton which in the classical epoch was imported from the island of Tylos, in the Persian Gulf, but which, as its name declares, must have originally been "the Indian" plant.

The looms and weavers of Babylonia are, as is natural, repeatedly referred to in the contracts, many of which, moreover, relate to the sale and purchase of wool. One of them even shows us Belshazzar, the son and heir-apparent of the King Nabonidos, as a wool-merchant on a considerable scale. "The sum of 20 manehs for wool," it says, "the property of Belshazzar, the son of the king, which has been handed over to Iddin-Merodach, the son of Basa, the son of Nur-Sin, through the agency of Nebo-zabit, the servant of the house of Belshazzar, the son of the king, and the secretaries of the son of the king. In the month Adar (February) of the eleventh year (of Nabonidos) the debtor shall pay the money, 20 manehs. The house of —— the Persian and all the property of Iddin-Merodach in town and country shall be the security of Belshazzar, the son of the king, until he shall pay in full the money aforesaid. The money which shall (meanwhile) accrue upon (the wool) he shall pay as interest." Then follow the names of five witnesses and a priest, as well as the date and the place of registration. This was Babylon, and the priest, Bel-akhi-iddin, who helped to witness the deed was a brother of Nabonidos and consequently the uncle of Belshazzar.

The weight of the wool that was sold is unfortunately not stated. But considering that 20 manehs, or £180, was paid for it, there must have been a considerable amount of it. In the reign of Cambyses the amount of wool needed for the robe of the image of the Sun-goddess Â was as much as 5 manehs 5 shekels in weight. Wealthy land-owners kept large flocks of sheep, chiefly for the sake of their wool. Their prices varied greatly. Thus in the fourth year of Nabonidos, 6 shekels, or 18s., were given for a sheep, while in the thirteenth year of the same King, 18 sheep fetched only 35 shekels, or less than 6s., each. In the first year of Cyrus, 6 lambs were sold for 8⅓ shekels, and 5 other lambs for 7⅔ shekels, while 1 sheep cost only one shekel and a quarter; in his sixth year the price of a single sheep had risen to 4 shekels (12s.). Under Cambyses we find sheep selling for 7 and 7⅓ shekels apiece. In the eighth year of Nabonidos, 100 sheep were sold for 50 shekels after they had been slaughtered; it is clear, therefore, that the dead animal was considered less valuable than the living one.

On the other hand, sheep cost a good deal to feed when the grazing season was over, and they had to be fed "in the stall." A document dated in the seventh year of Cyrus states that 32 sheep required each day 1 _pi_ 28 _qas_ (or about 95 quarts) of grain, while 160 full-grown animals consumed daily 4 _pi_ 16 _qas_, or more than 240 quarts. In the reign of Cambyses 1 _pi_ 4 _qas_ of fodder were needed daily for 20 old sheep, 100 _qas_ for 100 younger sheep, and the same amount also for 200 lambs. At this time 2 _pi_ of grain cost 6⅓ shekels; consequently the cost of keeping the 20 old sheep alone was about 10s 6d. a day. To this had to be added the wages of the shepherds, who were free Bedâwin. Hence, it is not wonderful that the owner demanded 7 shekels, or 21s., for the sheep he had to sell.

In the _Edin_ or "field," however, their keep came to but little. The pasturage was common property, and it was only the wages of the Aramean shepherds who looked after the flock which involved an outlay. The five shepherds who, in the tenth year of Nabonidos, were paid for their services by the overseer of the royal flocks in the town of Ruzabu received 30 shekels of silver and a _gur_ of grain. The _gur_ contained 180 _qas_, and since in the first year of Cyrus two men received 2 _pi_ 30 _qas_, or 102 _qas_, of grain for their support during a month of thirty days, we may, perhaps, infer that the wages were intended to cover the third part of a month. In this case each man would have been paid at the rate of 9 shekels, or 37s., a month. It is, however, possible that the wages were really intended for the full month. The ancient Greeks considered a quart of wheat a sufficient daily allowance for a grown man, and 180 _qas_ would mean about 1⅔ of a quart a day for each man.

We may gather from a contract dated the 5th of Sivan in the eighteenth year of Darius that it was not customary to pay for any sheep that were sold until they had been driven into the city, the cost of doing so being included in the price. The contract is as follows: "One hundred sheep of the house of Akhabtum, the mother of Sa-Bel-iddin, the servant of Bel-sunu, that have been sold to La-Bel, the son of Khabdiya, on the 10th day of the month Ab in the eighteenth year of Darius the king: The sheep, 200 in number, must be brought into Babylon and delivered to Supêsu, the servant of Sa-Bel-iddin. If 15 manehs of silver are not paid for the sheep on the 10th of Ab, they must be paid on 20th of the month. If the money, amounting to 15 manehs, is not paid, then interest shall be paid according to this agreement at the rate of one shekel for each maneh per month." Then come the names of eight witnesses and a priest, the date, and the place of registration, which was a town called Tsikhu.

The contract is interesting from several points of view. The sheep, it will be seen, belonged to a woman, and not to her son, who was "the servant" of a Babylonian gentleman and had another "servant" who acted as his agent at Babylon. The father of the purchaser of the sheep bears the Hebrew name of 'Abdî, which is transcribed into Babylonian in the usual fashion, and the name of the purchaser himself, which may be translated "(There is) no Bel," may imply that he was a Jew. Akhabtum and her son were doubtless Arameans, and it is noticeable that the latter is termed a "servant" and not a "slave."

Before entering the city an _octroi_ duty had to be paid upon the sheep as upon other produce of the country. The custom-house was at the gate, and the duty is accordingly called "gate-money" in the contracts. In front of the gate was an open space, the _rébit_, such as may still be seen at the entrance to an Oriental town, and which was used as a market-place. The _rébit_ of Nineveh lay on the north side of the city, in the direction where Sargon built his palace, the ruins of which are now known as Khorsabad. But besides the market-place outside the walls there were also open spaces inside them where markets could be held and sheep and cattle sold. Babylon, it would seem, was full of such public "squares," and so, too, was Nineveh. The _suqi_ or "streets" led into them, long, narrow lanes through which a chariot or cart could be driven with difficulty. Here and there, however, there were streets of a broader and better character, called _suli_, which originally denoted the raised and paved ascents which led to a temple. It was along these that the religious processions were conducted, and the King and his generals passed over them in triumph after a victory. One of these main streets, called Â-ibur-sabu, intersected Babylon; it was constructed of brick by Nebuchadnezzar, paved with large slabs of stone, and raised to a considerable height. It started from the principal gate of the city, and after passing Ê-Saggil, the great temple of Bel-Merodach, was carried as far as the sanctuary of Istar. When Assur-bani-pal's army captured Babylon, after a long siege, the "mercy-seats" of the gods and the paved roads were "cleansed" by order of the Assyrian King and the advice of "the prophets," while the ordinary streets and lanes were left to themselves.

It was in these latter streets, however, that the shops and bazaars were situated. Here the trade of the country was carried on in shops which possessed no windows, but were sheltered from the sun by awnings that were stretched across the street. Behind the shops were magazines and store-houses, as well as the rooms in which the larger industries, like that of weaving, were carried on. The scavengers of the streets were probably dogs. As early as the time of Khammurabi, however, there were officers termed _rabiani_, whose duty it was to look after “the city, the walls, and the streets.” The streets, moreover, had separate names.

Here and there “beer-houses” were to be found, answering to the public-houses of to-day, as well as regular inns. The beer-houses are not infrequently alluded to in the texts, and a deed relating to the purchase of a house in Sippara, of the age of Khammurabi, mentions one that was in a sort of underground cellar, like some of the beer-houses of modern Germany.

Sippara lay on both sides of the Euphrates, like Babylon, and its two halves were probably connected by a pontoon-bridge, as we know was the case at Babylon. Tolls were levied for passing over the latter, and probably also for passing under it in boats. At all events a document translated by Mr. Pinches shows that the quay-duties were paid into the same department of the government as the tolls derived from the bridge. The document, which is dated in the twenty-sixth year of Darius, is so interesting that it may be quoted in full: “The revenue derived from the bridge and the quays, and the guard-house, which is under the control of Guzanu, the captain of Babylon, of which Sirku, the son of Iddinâ, has charge, besides the amount derived from the tolls levied at the bridge of Guzanu, the captain of Babylon, of which Muranu, the son of Nebo-kin-abli, and Nebo-bullidhsu, the son of Guzanu, have charge: Kharitsanu and Iqubu (Jacob) and Nergal-ibni are the watchmen of the bridge. Sirku, the son of Iddinâ, the son of Egibi, and Muranu, the son of Nebo-kin-abli, the son of the watchman of the pontoon, have paid to Bel-asûa, the son of Nergal-yubal-lidh, the son of Mudammiq-Rimmon, and Ubaru, the son of Bel-akhi-erba, the son of the watchman of the pontoon, as dues for a month, 15 shekels of white silver, in one-shekel pieces and coined. Bel-asûa and Ubaru shall guard the ships which are moored under the bridge. Muranu and his trustees, Bel-asûa and Ubaru, shall not pay the money derived from the tolls levied at the bridge, which is due each month from Sirku in the absence of the latter. All the traffic over the bridge shall be reported by Bel-asûa and Ubaru to Sirku and the watchmen of the bridge.”

House-property was valuable, especially if it included shops. As far back as the reign of Eri-Aku, or Arioch, 2½ shekels were given for one which stood on a piece of ground only 1⅚ _sar_ in area, the _sar_, if Dr. Reisner is right, being the eighteen-hundredths part of the _feddan_ or acre. In the twentieth year of Assur-bani-pal, just after a war which had desolated Babylonia, a house was sold in the provincial town of Erech for 75 shekels (£11 5s.), and in the beginning of the reign of Nabonidos a carpenter’s shop in Borsippa, the suburb of Babylon, which was not more than 7 rods, 5 cubits, and 18 inches in length, was bought by the agent of the Syrian Ben-Hadad-nathan and his wife for 11½ manehs, or £103 10s. On the other hand, in the reign of Cambyses, we hear of smaller prices being given for houses in Babylon, 4½ manehs for a house with a piece of land attached to it, and 2 manehs for one that had been the joint property of a man and his wife; while in the ninth year of Nergal-sharezer a house was sold for only 52½ shekels.

Houses, however, were more frequently let than sold. Already, in the age of Khammurabi, we have the record of the lease of a house for eight years. At a later date contracts relating to the renting of houses are numerous. Thus in the sixth year of Cyrus a house was let at a yearly rent of 10 shekels, part of which was to be paid at the beginning of the year and the rest in the middle of it. The tenant was to renew the fences when necessary and repair all dilapidations. He was also expected to send a present to his landlord thrice a year in the months of Nisan, Tammuz, and Kisleu. Other houses in Babylon in the Persian age were let at yearly rents of 5 shekels, 5½ shekels, 7½ shekels, 9 shekels, 15 shekels, 20 shekels, 23 shekels, and 35 shekels, the leases running for two, three, five, and more years. The tenant usually undertook to keep the property in repair and to make good all dilapidations. Loss in case of fire or other accidents also fell upon him. Most of the houses seem to have been inhabited by single families; but there were tenements or flats as well, the rent of which was naturally lower than that of a whole house. Thus we find a woman paying only 2 shekels, or 6s., a year for a tenement in the reign of Cambyses.

Any violation of the lease involved a fine, the amount of which was stated in the contract. A house, for instance, was let at Babylon in the first year of Cambyses for 5 shekels a year, the rent to be paid in two halves “at the beginning and in the middle of the year.” In this case a breach of the contract was to be punished by a fine of 10 shekels, or double the amount of the rent. In other cases the fine was as much as a maneh of silver.

Occasionally the primitive custom was retained of paying the rent in kind instead of in coin. We even hear of “six overcoats” being taken in lieu of rent. The rent of a house might also take the place of interest upon a loan, and the property be handed over to the creditor as security for a debt. Thus in the second and last year of the reign of Evil-Merodach (560 B.C.), and on the fourth of the month Ab, the following agreement was drawn up at Babylon: “Four manehs of silver belonging to Nadin-akhi, the son of Nur-Ea, the son of Masdukku, received from Sapik-zeri, the son of Merodach-nazir, the son of Liu-Merodach. The house of Sapik-zeri, which is in the street Khuburru, and adjoins the houses of Rimut-Bel, the son of Zeriya, the son of the Egyptian, and of Zeriya, the son of Bel-edheru, shall be handed over as security to Nadin-akhi. No rent shall be paid for it, and no interest demanded for the debt. Sapik-zeri shall have it for three years. He must renew the fences and repair all injuries to the walls. At the end of the three years Sapik-zeri shall repay the money—namely, four manehs—to Nadin-akhi, and the latter shall vacate the house. The rent of the warehouse of the eunuch is included, of which Sapik-zeri enjoys the use. Whatever doors Nadin-akhi may have added to the house during his tenancy he shall take away.” Then come the names of three witnesses, one of them being the brother of the creditor, as well as of the clerk who drew up the document.

A few years later, in the fifth year of Nabonidos (551 B.C.), we find the heir-apparent, Belshazzar, receiving house-property on similar terms. “The house of Nebo-akhi-iddin, the son of Sula, the son of Egibi,” we read, “which adjoins the house of Bel-iddin, the son of Birrut, the son of the life-guardsman, is handed over for three years as security for a loan of 1½ manehs to Nebo-kin-akhi, the agent of Belshazzar, the son of the king, on the following conditions: no rent shall be paid for the house, and no interest paid on the debt. The tenant shall renew the fences and make good all dilapidations. At the end of three years the 1½ manehs shall be paid by Nebo-akhi-iddin to Nebo-kin-akhi, and Nebo-kin-akhi shall vacate the house of Nebo-akhi-iddin. Witnessed by Kab-tiya, the son of Talnea, the son of Egibi; by Sapik-zeri, the son of Nergal-yukin, the son of Sin-karab-seme; by Nebo-zer-ibni, the son of Ardia, and the clerk, Bel-akhi-iqisa, the son of Nebo-balasu-ikbi, at Babylon, the 21st day of Nisam (March) and the fifth year of Nabonidos, King of Babylon.”

This was not the only transaction of the kind in which Belshazzar appears, though it is true that his business was carried on by means of agents. Six years later we have another contract relating to his commercial dealings which has already been quoted above. It illustrates the intensely commercial spirit of the Babylonians, and we may form some idea of the high estimation in which trade was held when we see the eldest son of the reigning King acting as a wool merchant and carrying on business like an ordinary merchant.

An interesting document, drawn up in Babylonia in the eleventh year of Sargon (710 B.C.), shortly after the overthrow of Merodach-Baladan, contains an account of a lawsuit which resulted from the purchase of two “ruined houses” in Dur-ilu, a town on the frontier of Elam. They had been purchased by a certain Nebo-liu for 85 shekels, with the intention of pulling them down and erecting new buildings on the site. In order to pay the purchase money Nebo-liu demanded back from “Bel-usatu, the son of Ipunu,” the sum of 30 shekels which he claimed to have lent him. Bel-usatu at first denied the claim, and the matter was brought into court. There judgment was given in favor of the plaintiff, and the defendant was ordered to pay him 45 shekels, 15, or half the amount claimed, being for “costs.” Thereupon Bel-usatu proposed:

“ ‘Instead of the money, take my houses, which are in the town of Der.’ The title-deeds of these houses, the longer side of which was bounded to the east by the house of Bea, the son of Sulâ, and to the west by the entrance to a field which partly belonged to the property, while the shorter side was bounded to the north by the house of Ittabsi, and to the south by the house of Likimmâ, were signed and sealed by Nebo-usatu, who pledged himself not to retract the deed or make any subsequent claim, and they were then handed over to Nebo-liu.” The troubles of the latter, however, were not yet at an end. “Ilu-rabu-bel-sanât, Sennacherib, and Labasu, the sons of Rakhaz the [priest] of the great god, said to Nebo-liu: ‘Seventy-three shekels of your money you have received from our father. Give us, therefore, 50 shekels and we will deliver to you the house and its garden which belonged to our father.’ The house, which was fit only to be pulled down and rebuilt, along with a grove of forty date-bearing palms, was situated on the bank of the canal of Dûtu in Dur-ilu, its longer side adjoining on the north the house of Edheru, the son of Baniya, the priest of Â, and on the south the canal of Dûtu, while its shorter side was bounded on the east by the house of Nergal-epus, and on the west by the street Mutaqutu. Nebo-liu agreed, and looked out and gave Rakhaz and his sons 50 shekels of silver, together with an overcoat and two shekels by way of a _bakshish_ to bind the bargain, the whole amounting to 52 shekels, paid in full.” The custom of adding a _bakshish_ or “present” to the purchase-money at the conclusion of a bargain is still characteristic of the East. Other examples of it are met with in the Babylonian contracts, and prove how immemorially old it is. Thus in the second year of Darius, when the three sons of a “smith” sold a house near the Gate of Zamama, at Babylon, to the grandson of another “smith,” besides the purchase money for the house, which amounted to 67½ shekels, the buyer gave in addition a _bakshish_ of 2½ shekels (7s. 6d.) as well as “a dress for the lady of the house.” Three shekels were further given as “a present” for sealing the deed. So too, the negotiations for the sale of some land in the second year of Evil-Merodach were accompanied by a _bakshish_ of 5 shekels.

Lawsuits connected with the sale or lease of houses do not seem to have been uncommon. One of the documents which have come down to us from the ancient records of Babylon is a list of “the judges before whom Sapik-zeri, the son of Zirutu, and Baladhu, the son of Nasikatum, the slave of the secretary for the Marshlands,” were called upon to appear in a suit relating to “the house and deed which Zirutu, the father of Sapik-zeri, had sealed and given to Baladhu,” who had afterward handed both of them over to Sapik-zeri. Among the judges we find the governor of the Marshlands, who acted as president, the sub-governor, the mayor of Erech, the priest of Ur, and one of the governors of the district “beyond” the Euphrates. The list is dated the 6th of Nisan or March, in the seventeenth year of Nebuchadnezzar.

The value of land was proportionate to that of house-property. In the early days of Babylonia its value was fixed by the amount of grain that could be grown upon it, and it was accordingly in grain that the owner was paid by the purchaser or lessee. Gradually, however, a metal currency took the place of the grain, and in the later age of Babylonian history even the rent was but rarely paid in kind. We learn from a lawsuit decided in the reign of Samsu-iluna, the son of Khammurabi, that it was customary for an estate to be “paced round” by the _rabianum_ or “magistrates” of the city. The ceremony was equivalent to “beating the bounds” of a parish in modern England, and it is probable that it was performed every year. Such at least is the custom in Egypt, where the limits of a piece of property are measured and fixed annually. The Babylonian document in which the custom is referred to relates to a dispute about a plantation of acacias which grew in the neighborhood of the modern Tel Sifr. The magistrates, before whom it was brought, are described as looking after not only the city but also “the walls and streets,” from which we may gather that municipal commissioners already existed in the Babylonian towns. The plaintiff made oath before them over the copper libation-bowl of the god of Boundaries, which thus took the place of the Bible in an English court of law.

A few years later, in the reign of Ammi-zadok, three men rented a field for three years on terms of partnership, agreeing to give the owner during the first two years 1 _gur_ of grain upon each _feddan_ or acre. The whole of the third harvest was to go to the lessees, and the partners were to divide the crop in equal shares “on the day of the harvest.”

When we come to the twelfth century B.C., however, the maneh and shekel have been substituted for the crops of the field. Thus we hear of 704 shekels and a fraction being paid for a field which was calculated to produce 3 _gur_ of corn, and of 110 shekels being given for another estate which contained a grove of date-palms and on which 2 _gur_ of grain were sown. How much grain could be grown on a piece of land we can gather from the official reports of the cadastral survey. In the sixth year of Cyrus, for example, the following report was drawn up of the “measurement of a corn-field and of the corn in the ear” belonging to a Babylonian taxpayer:

Length of the field on its longer side.	Length of the field on its narrower side.	Amount of crop.	Value in grain.	Tenant.
1020	395	13 _gur_, 18 _qa_, of which 1 _gur_, 18 _qa_, are destroyed.	Each 25 _gur_ is worth 300 _gur_ of grain.	Nadbanu.
540	550	10 _gur_, 2 _pi_, 29 _qa_, of which 3 _gur_ are destroyed.	Each 20 _gur_ is worth 130 _gur_.	Arad-Bel.

The cadastral survey for purposes of taxation went back to an early period of Babylonian history. It was already at work in the age of Sargon of Akkad. The survey of the district or principality of Lagas (now Tello) which was drawn up in that remote epoch of history is in our hands, and is interesting on account of its reference to a “governor” of the land of the Amorites, or Canaan, who bears the Canaanitish name of Urimelech. The survey states that the district in question contained 39,694 acres, 1,325 _sar_, as well as 17 large towns and 8 subdivisions.

Another cadastral survey from Lagas, but of the period of Khammurabi, which has recently been published by Dr. Scheil, tells us that the towns on the lower banks of “the canal of Lagas” had to pay the treasury each year 35⅚ shekels of silver according to the assessment of the tax-collector Sin-mustal. One of the towns was that of the Aramean tribe of Pekod. Another is called the town of the Brewers, and another is described as “the Copper-Foundry.” Most of the towns were assessed at half a shekel, though there were some which had to pay a shekel and more. Among the latter was the town of Ninâ, which gave its name to the more famous Nineveh on the Tigris. The surveyor, it should be added, was an important personage in Babylonian society, and the contract tablets of the second Babylonian empire not unfrequently mention him.

Assyria, like Babylonia, has yielded us a good many deeds relating to the sale and lease of houses and landed estate. We can estimate from them the average value of house-property in Nineveh in the time of the second Assyrian empire, when the wealth of the Eastern world was being poured into it and the Assyrian kings were striving to divert the trade of Phœnicia into their own hands. Thus, in 694 B.C., a house with two doors was sold for 3 manehs 20 shekels, and two years subsequently another which adjoined it was purchased for 1 maneh “according to the royal standard.” The contract for the sale is a good example of what an Assyrian deed of sale in such a case was like. “The nail-marks of Sar-ludari, Akhassuru, and Amat-Suhla, the wife of Bel-suri, the official, the son of the priest, and owner of the house which is sold. The house, which is in thorough repair, with its woodwork, doors, and court, situated in the city of Nineveh and adjoining the houses of Mannu-ki-akhi and Ilu-ittiya and the street _Sipru_, has been negotiated for by Zil-Assur, the Egyptian secretary. He has bought it for 1 maneh of silver according to the royal standard from Sar-ludari, Akhassuru, and Amat-Suhla, the wife of Bel-duri. The money has been paid in full, and the house received as bought. Withdrawal from the contract, lawsuits, and claims are hereby excluded. Whoever hereafter at any time, whether these men or others, shall bring an action and claims against Zil-Assur, shall be fined 10 manehs of silver. Witnessed by Susanqu-khatna-nis, Murmaza the official, Rasuh the sailor, Nebo-dur-uzur the champion, Murmaza the naval captain, Sin-sar-uzur, and Zidqa (Zedekiah). The sixteenth of Sivan during the year of office of Zaza, the governor of Arpad (692 B.C.).” It is noticeable that the first witness has a Syrian name.

One of the characteristics of the Assyrian deeds is that so few of the parties who appear in them are able to write their names. Nail-marks take the place of seals even in the case of persons who hold official positions and who are shown by the contracts to have been men of property. In this respect Assyria offers a striking contrast to Babylonia, where “the nail-mark” seldom makes its appearance. Closely connected with this inability to write is the absence of the seal-cylinder, which was part of the ordinary dress of the Babylonian gentleman. In the Assyrian contracts, on the other hand, it is conspicuous by its absence. The use of it in Assyria was an imitation of Babylonian manners, and was confined for the most part to the scribes and higher official class, who had received a literary education.

Land in Assyria was measured by homers rather than by _feddans_ or acres as in Babylonia. In 674 B.C. an estate of 35 homers, in the town of Sairi, was sold for 5 manehs, any infringement of the contract being punished by a fine of 10 manehs of silver or one of gold, to be paid into the treasury of the temple of Istar. We learn incidentally from this that the value of gold to silver at the time was as one to ten. Five years previously 6 homers of land in another small Assyrian town had been let at an annual rent of 1 maneh of silver “according to the standard of Carchemish.” In the reign of Assur-bani-pal a homer of corn-land was rented for six years for 10 shekels a year. The land was calculated to produce 9 _qas_ of grain, and at the end of the first three years it was stipulated that there should be a rotation of crops. About the same time two fields, enclosing an area of 3⅔ homers, were leased by a certain Rimu-ana-Bel of Beth-Abimelech, whose father’s name, Yatanael, shows that he was of Syrian origin. The steward of “the son of a king” took them for six years at an annual rent of 12 shekels. One of the fields contained a well, and yielded 15 _qas_ of grain to each homer. It is stated in the contract that the fields had no mortgage upon them, and that the lessee had a right to the whole of the crop which they produced.

It was not in Assyria only that plots of ground could be leased and sold in accordance with the provisions of Assyrian law. Conquest had brought landed property into the hands of Assyrians in other parts of the Eastern world, and it could be put up to auction at Nineveh, where the proprietors lived. About 660 B.C., for instance, a considerable estate was thus sold in the oasis of Singara, in the centre of Mesopotamia. It lay within the precincts of the temple of Istar, and contained a grove of 1,000 young palms. It included, moreover, a field of 2 homers planted with terebinths, house-property extending over 6 homers, a house with a corn-field attached to it, and another house which stood in the grove of Yarkhu, the Moon-god. The whole was sold for 4 shekels of silver “according to the standard of Carchemish,” and the penalty for any infringement of the contract was again to be the payment of a maneh of gold (£90) to the treasury of the goddess Istar. When one of the parties to the contract was of Aramean descent, it was usual to add an explanatory docket in Aramaic to the deed of sale. Indeed, this seems to have been sometimes done even where there were no Arameans in the case, so thoroughly had Aramaic become the common language of trade. Thus in the year of Sennacherib’s office as eponym (687 B.C.) we hear of the sale of three shops in Nineveh on the part of a certain Dain-kurban, whose name is written in Aramaic letters on the outer envelope of the deed of sale. Thirty shekels were paid for them, and a fine of 10 manehs imposed upon anyone who should attempt to invalidate the sale. The shops seem to have been situated in the Syrian quarter of the city, as we are told that they were opposite the tenement of Nakharau, “the man of Nahor.”

It will have been noticed how frequently it is stated that a “plantation” or grove of palms is attached to the house or field which is rented and sold. In Babylonia, in fact, an estate was not considered complete without its garden, which almost invariably included a clump of palms. The date-palm was the staple of the country. It was almost the only tree which grew there, and it grew in marvellous abundance. Stem, leaves, and fruit were all alike turned to use. The columns and roofing-beams of the temples and houses were made of its stem, which was also employed for bonding the brick walls of the cities. Its fibres were twisted into ropes, its leaves woven into baskets. The fruit it bore was utilized in many ways. Sometimes the dates were eaten fresh, at other times they were dried and exported to foreign lands; out of some of them wine was made, out of others a rich and luscious sugar. It was little wonder that the Babylonian regarded the palm as the best gift that Nature had bestowed upon him. Palm-land necessarily fetched a higher price than corn-land, and we may conclude, from a contract of the third year of Cyrus, that its valuation was seven and one-half times greater.

Trade partnerships were common, and even commercial companies were not unknown. The great banking and money-lending firm which was known in Babylonia under the name of its founder, Egibi, and from which so many of the contract-tablets have been derived, was an example of the latter. It lasted through several generations and seems to have been but little affected by the political revolutions and changes which took place at Babylon. It saw the rise and fall of the empire of Nebuchadnezzar, and flourished quite as much under the Persian as under the native kings.

As far back as the reign of Samsu-iluna we find women entering into partnership with men for business purposes on a footing of absolute equality. A certain Amat-Samas, for instance, a devotee of the Sun-god, did so with two men in order to trade with a maneh of silver which had been borrowed from the treasury of the god. It was stipulated in the deed which was indentured when the partnership was made that in case of disagreement the capital and interest accruing from it were to be divided in equal shares among the three partners.

In the later Babylonian period the contract was drawn up in much the same form, though with a little more detail. In the report of a trial dated the eighth day of Sebat or January, in the eighteenth year of Nebuchadnezzar II., we have the following reference to one that had been made twenty-one years before: “A partnership was entered into between Nebo-yukin-abla and his son Nebo-bel-sunu on the one side and Musezib-Bel on the other, which lasted from the eighteenth year of Nabopolassar, King of Babylon, to the eighteenth year of Nebuchadnezzar. The contract was produced before the judge of the judges. Fifty shekels of silver were adjudged to Nebo-bel-sunu and his father Nebo-yukin-abla. No further agreement or partnership exists between the two parties.… They have ended their contract with one another. All former obligations in their names are rescinded.”

One of the latest Babylonian deeds of partnership that have come down to us is dated in the fifth year of Xerxes. It begins with the statement that “Bel-edheru, son of Nergal-edheru and Ribâta, son of Kasmani, have entered into partnership with one another, contributing severally toward it 2½ manehs of silver in stamped shekel-pieces and half a maneh of silver, also in stamped shekel-pieces. Whatever profits Ribâta shall make on the capital—namely, the 3 manehs in stamped shekel-pieces—whether in town or country, [he shall divide with] Bel-edheru proportionally to the share of the latter in the business. When the partnership is dissolved he shall repay to Bel-edheru the [2½] manehs contributed by him. Ribâta, son of Kasmani, undertakes all responsibility for the money.” Then come the names of six witnesses.

Money, however, was not the only subject of a deed of partnership. Houses and other property could be bought and sold and traded with in common. Thus we hear of Itti-Merodach-baladh, the grandson of “the Egyptian,” and Merodach-sapik-zeri starting as partners with a capital of 5 manehs of silver and 130 empty barrels, two slaves acting as agents, and on another occasion we find it stipulated that “200 barrels full of good beer, 20 empty barrels, 10 cups and saucers, 90 _gur_ of dates in the storehouse, 15 _gur_ of chickpease (?), and 14 sheep, besides the profits from the shop and whatever else Bel-sunu has accumulated, shall be shared between him” and his partner.

The partners usually contributed in equal parts to the business, and the profits were divided equally among them. Where this was not the case, provision was made for a proportionate distribution of profit and loss. All profits were included, whether made, to use the language of Babylonian law, “in town or country.” The partnership was generally entered into for a fixed term of years, but could be terminated sooner by death or by agreement. One of the partners could be represented by an agent, who was often a slave; in some instances we hear of the wife taking the place of her husband or other relation during his absence from home. Thus in a deed dated in the second year of Nergal-sharezer (559 B.C.) we read: “As long as Pani-Nebo-dhemi, the brother of Ili-qanua, does not return from his travels, Burasu, the wife of Ili-qanua, shall share in the business of Ili-qanua, in the place of Pani-Nebo-dhemi. When Pani-Nebo-dhemi returns she shall leave Ili-qanua and hand over the share to Pani-Nebo-dhemi.” As one of the witnesses to the document is a “minister of the king” who bears the Syrian name of Salammanu, or Solomon the son of Baal-tammuh, it is possible that Pani-Nebo-dhemi was a Syrian merchant whose business obliged him to reside in a foreign country.

That partnerships in Babylonia were originally made for the sake of foreign trade seems probable from the name given to them. This is _kharran_, which properly means a “road” or “caravan.” The earliest partners in trade would have been the members of a caravan, who clubbed together to travel and traffic in foreign lands and to defend themselves in common from the perils of the journey.

The products of the Babylonian looms must have been among the first objects which were thus sent abroad. We have already described the extensive industry which brought wealth into Babylonia and made it from the earliest ages the centre of the trade in rugs and tapestries, cloths and clothing. A large part of the industrial population of the country must have been employed in the factories and shops where the woven and embroidered fabrics were produced and made ready for sale. Long lists exist giving the names of the various articles of dress which were thus manufactured. The goodly “Babylonish garment” carried off by Achan from the sack of Jericho was but one of the many which found their way each year to the shores of the Mediterranean.

The trades of the dyer and the fuller flourished by the side of that of the cloth-maker. So, too, did the trade of the tanner, leather being much used and finely worked. The shoes of the Babylonian ladies were famous; and the saddles of the horses were made with elaborate care.

The smith, too, occupied an honorable position. In the earlier period of Babylonian history, gold, silver, copper, and bronze were the metals which he manufactured into arms, utensils, and ornaments. At a later date, however, iron also came to be extensively used, though probably not before the sixteenth century B.C. The use of bronze, moreover, does not seem to go back much beyond the age of Sargon of Akkad; at all events, the oldest metal tools and weapons found at Tello are of copper, without any admixture of tin. Most of the copper came from the mines of the Sinaitic Peninsula, though the metal was also found in Cyprus, to which reference appears to be made in the annals of Sargon. The tin was brought from a much greater distance. Indeed, it would seem that the nearest sources for it—at any rate in sufficient quantities for the bronze of the Oriental world—were India and the Malayan Peninsula on the one hand, and the southern extremity of Cornwall on the other. It is not surprising, therefore, that it should have been rare and expensive, and that consequently it was long before copper was superseded by the harder bronze. Means, however, were found for hardening the copper when it was used, and copper tools were employed to cut even the hardest of stones.

The metal, after being melted, was run into moulds of stone or clay. It was in this way that most of the gold and silver ornaments were manufactured which we see represented in the sculptures. Stone moulds for ear-rings have been found on the site of Nineveh, and the inscriptions contain many references to jewelry. The gold was also worked by the hand into beaded patterns, or incised like the silver seals, some of which have come down to us. Most of the gold was originally brought from the north; in the fifteenth century before our era the gold mines in the desert on the eastern side of Egypt provided the precious metal for the nations of Western Asia.

A document found among the records of the trading firm of Murasu at Nippur, in the fifth century B.C., shows that the goldsmith was required to warrant the excellence of his work before handing it over to the customer, and it may be presumed that the same rule held good for other trades also. The document in question is a guarantee that an emerald has been so well set in a ring as not to drop out for twenty years, and has been translated as follows by Professor Hilprecht: “Bel-akh-iddina and Bel-sunu, the sons of Bel, and Khatin, the son of Bazuzu, have made the following declaration to Bel-nadin-sumu, the son of Murasu: As to the gold ring set with an emerald, we guarantee that for twenty years the emerald will not fall out of the ring. If it should fall out before the end of twenty years, Bel-akh-iddina [and the two others] shall pay Bel-nadin-sumu an indemnity of ten manehs of silver.” Then come the names of seven witnesses and of the clerk who drew up the deed, and the artisans add their nail-marks in place of seals.

Many of the articles of daily use in the houses of the people, such as knives, tools of all kinds, bowls, dishes, and the like, were made of copper or bronze. They were, however, somewhat expensive, and as late as the reign of Cambyses we find that a copper libation-bowl and cup cost as much as 4 manehs 9 shekels, (£37 7s.), and about the same time 22 shekels (£3 3s.) were paid for two copper bowls 7½ manehs in weight. If the weight in this case were equivalent to that of the silver maneh the cost would have been nearly 4d. per ounce. It must be remembered that, as in the modern East, the workman expected the metal to be furnished by his customer; and accordingly we hear of 3 manehs of iron being given to a smith to be made into rods for bows. Three manehs of iron were also considered sufficient for the manufacture of six swords, two oboe-rings, and two bolts. All this, of course, belongs to the age of the second Babylonian empire, when iron had taken the place of bronze.

The carpenter’s trade is another handicraft to which there is frequent allusion in the texts. Already, before the days of Sargon of Akkad, beams of wood were fetched from distant lands for the temples and palaces of Chaldea. Cedar was brought from the mountains of Amanus and Lebanon, and other trees from Elam. The palm could be used for purely architectural purposes, for boarding the crude bricks of the walls together, or to serve as the rafters of the roof, but it was unsuitable for doors or for the wooden panels with which the chambers of the temple or palace were often lined. For such purposes the cedar was considered best, and burnt panels of it have been found in the sanctuary of Ingurisa at Tello. Down to the latest days panels of wood were valuable in Babylonia, and we find it stipulated in the leases of houses that the lessee shall be allowed to remove the doors he has put up at his own expense.

But the carpenter’s trade was not confined to inartistic work. From the earliest age of Babylonian history he was skilled in making household furniture, which was often of a highly artistic description. On a seal-cylinder, now in the British Museum, the King is represented as seated on a chair which, like those of ancient Egypt, rested on the feet of oxen, and similarly artistic couches and chests, inlaid with ivory or gold, were often to be met with in the houses of the rich. The Assyrian sculptures show to what perfection the art of the joiner had attained at the time when Nineveh was the mistress of the civilized world.

The art of the stone-cutter had attained an even higher perfection at a very remote date. Indeed, the seal-cylinders of the time of Sargon of Akkad display a degree of excellence and finish which was never surpassed at any subsequent time. The same may be said of the bas-relief of Naram-Sin discovered at Diarbekr. The combination of realism and artistic finish displayed in it was never equalled even by the bas-reliefs of Assyria, admirable as they are from many points of view.

The early stone-cutters of Chaldea tried their skill upon the hardest materials, and engraved upon them the minutest and most delicate designs. Hæmatite was a favorite material for the seal-cylinder; the statues of Tello are carved out of diorite, which was brought from the Sinaitic Peninsula, and stones of similar hardness were manufactured into vases. That such work should have been attempted in an age when iron and steel were as yet unknown seems to us astonishing. Even bronze was scarce, and the majority of the tools employed by the workmen were made of copper, which was artificially hardened when in use. Emery powder or sand was also used, and the lathe had long been known. When iron was first introduced into the workshops of Babylonia is doubtful. That the metal had been recognized at a very early period is clear from the fact that in the primitive picture-writing of the country, out of which the cuneiform syllabary developed, it was denoted by two characters, representing respectively “heaven” and “metal.” It would seem, therefore, that the first iron with which the inhabitants of the Babylonian plain were acquainted was of meteoric origin.

In the age of the Egyptian empire in Asia, at the beginning of the seventeenth century B.C., iron was passing into general use. Objects of iron are referred to in the inscriptions, and a couple of centuries later we hear of iron chariots among the Canaanites, and of ironsmiths in Palestine, who repair the shattered vehicles of Egyptian travellers in that country. It must have been at this time that the bronzesmith in Babylonia became transformed into an ironsmith.

Carving in ivory was another trade followed in Babylonia and Assyria. The carved ivories found on the site of Nineveh are of great beauty, and from a very early epoch ivory was used for the handles of sceptres, or for the inlaid work of wooden furniture. The “ivory couches” of Babylonia made their way to the West along with the other products of Babylonian culture, and Amos (vi. 4) denounces the wealthy nobles of Israel who “lie upon beds of ivory.” Thothmes III. of Egypt, in the sixteenth century B.C., hunted the elephant on the banks of the Euphrates, not far from Carchemish, and, as late as about 1100 B.C., Tiglath-pileser I. of Assyria speaks of doing the same. In the older period of Babylonian history, therefore, the elephant would have lived on the northern frontier of Babylonian domination, and its tusks would have been carried down the Euphrates along with other articles of northern trade.

Quite as old as the trade of the carver in ivory was that of the porcelain-maker. The walls of the palaces and temples of Babylonia and Assyria were adorned with glazed and enamelled tiles on which figures and other designs were drawn in brilliant colors; they were then covered with a metallic glaze and fired. Babylonia, in fact, seems to have been the original home of the enamelled tile and therewith of the manufacture of porcelain. It was a land of clay and not of stone, and while it thus became necessary to ornament the plain mud wall of the house, the clay brick itself, when painted and protected by a glaze, was made into the best and most enduring of ornaments. The enamelled bricks of Chaldea and Assyria are among the most beautiful relics of Babylonian civilization that have survived to us, and those which adorned the Persian palace of Susa, and are now in the Museum of the Louvre, are unsurpassed by the most elaborate productions of modern skill.

Our enumeration of Babylonian trades would not be complete without mention being made of that of the brick-maker. The manufacture of bricks was indeed one of the chief industries of the country, and the brick-maker took the position which would be taken by the mason elsewhere. He erected all the buildings of Babylonia. The walls of the temples themselves were of brick. Even in Assyria the slavish imitation of Babylonian models caused brick to remain the chief building material of a kingdom where stone was plentiful and clay comparatively scarce. The brick-yards stood on the outskirts of the cities, where the ground was low and where a thick bed of reeds grew in a pond or marsh. These reeds were an important requisite for the brick-maker’s art; when dried they formed a bed on which the bricks rested while they were being baked by the sun; cut into small pieces they were mixed with the clay in order to bind it together; and if the bricks were burnt in a kiln the reeds were used as fuel. They were accordingly artificially cultivated, and fetched high prices. Thus, in the fourteenth year of Nabonidos, we hear of 2 shekels being given for 200 bundles of reeds for building a bridge across a canal, and a shekel for 100 bundles to be made into torches. At the same time 55 shekels were paid for 8,000 loads of brick. The possession of a bed of reeds added to the value of an estate, and it is, therefore, always specified in deeds relating to the sale of property. One, situated at Sippara, was owned by a scribe, Arad-Bel, who has drawn up several contracts, as we learn incidentally from a document dated in the seventh year of Cyrus, in which Ardi, the grandson of “the brick-maker,” agrees to pay two-thirds of the bricks he makes to Arad-Bel, on condition of being allowed to manufacture them in the reed-bed of the latter. This is described as adjoining “the reed-bed of Bel-baladan and the plantation of the Sun-god.”

The brick-maker was also a potter, and the manifold products of the potter’s skill, for which Babylonia was celebrated, were manufactured in the corner of the brick-field. Here also were made the tablets, which were handed to the professional scribe or the ordinary citizen to be written upon, and so take the place of the papyrus of ancient Egypt or the paper of to-day. The brick-maker was thus not only a potter, but the provider of literary materials as well. He might even be compared with the printer of the modern world, since texts were occasionally cut in wood and so impressed upon moulds of clay, which, after being hardened, were used as stamps, by means of which the texts could be multiplied, impressions of them being mechanically reproduced on other tablets or cylinders of clay.

Another Babylonian trade which must be noticed was that of the vintner. Wine was made from dates as well as from grapes, while beer, called _sikaru_, was also manufactured, probably from some cereal grain. Mention is found of a “wine” that was made from sesame. The vine was not a native of Babylonia, but must have been introduced into it from the highlands of Armenia at a very early date, as it was known there long before the days of Sargon of Akkad. Large quantities of wine and beer were drunk in both Babylonia and Assyria, and reference has already been made to the bas-relief in which the Assyrian King, Assur-bani-pal, and his Queen are depicted drinking wine in the gardens of his palace, while the head of his vanquished foe, the King of Elam, hangs from the branch of a neighboring tree. A receipt, dated the eleventh day of Iyyar, in the first year of Nabonidos, is for the conveyance of “75 _qas_ of meal and 63 _qas_ of beer for the sustenance of the artisans;” and in the thirty-eighth year of Nebuchadnezzar 20 shekels were paid for “beer,” the amount of which, however, is unfortunately not stated. But two “large” casks of new wine cost 11 shekels, and five other smaller casks 10 shekels. Moreover, the inventory of goods to be handed over to the slave Khunnatu, in the sixth year of Cambyses, includes fifty casks of “good beer,” which, together with the cup with which it was drawn, was valued at 60 shekels (£9).

Whether any grape-wine was made in Babylonia itself was questionable; at any rate, the greater part of that which was drunk there was imported from abroad, more especially from Armenia and Syria. The wines of the Lebanon were specially prized, the wine of Khilbunu, or Helbon, holding a chief place among them. The wines, some of which were described as “white,” were distinguished by the names of the localities where they were made or in which the vines were grown, and Nebuchadnezzar gives the following list of them: The wine of Izalla, in Armenia; of Tuhimmu, of Zimmini, of Helbon, of Amabanu, of the Shuhites, of Bit-Kubati, in Elam; of Opis and of Bitati, in Armenia. To these another list adds: “The wine reserved for the king’s drinking,” and the wines of Nazahzê, of Lahû, and of the Khabur.

The wine was kept in wine-cellars, and among the Assyrian letters that have come down to us are some from the cellarers of the King. In one of them it is stated that the wine received in the month Tebet had been bottled, and that there was no room in the royal cellars in which it could be stored. The King is therefore asked to allow new cellars to be made.

The various trades formed guilds or corporations, and those who wished to enter one of these had to be apprenticed for a fixed number of years in order to learn the craft. As we have seen, slaves could be thus apprenticed by their owners and in this way become members of a guild. What the exact relation was between the slave and the free members of a trading guild we do not know, but it is probable that the slave was regarded as the representative of his master or mistress, who accordingly became, instead of himself, the real member of the corporation. We perhaps have a parallel in modern England, where a person can be elected a member of one of the “city companies,” or trade guilds, without being in any way connected with the trade himself. Since women in Babylonia were able to carry on a business, there would be no obstacle to a slave being apprenticed to a trade by his mistress. Hence it is that we find a Babylonian lady named Nubtâ, in the second year of Cyrus, apprenticing a slave to a weaver for five years. Nubtâ engaged to provide the apprentice with clothing and 1 _qa_ (nearly 2 quarts) of grain each day. As in ancient Greece a quart of grain was considered a sufficient daily allowance for a man, the slave’s allowance would seem to have been ample. The teacher was to be heavily fined if he failed to teach the trade, or overworked the apprentice and so made him unable to learn it, the fine being fixed at 6 _qas_ (about 10 quarts) _per diem_. Any infringement of the contract on either side was further to be visited with a penalty of 30 shekels of silver.

As 30 shekels of silver were equivalent to £4 10s., 6 _qas_ of wheat at the time when the contract was drawn up would have cost about 1s. 3d. Under Nebuchadnezzar we find 12 _qas_, or the third part of an ardeb, of sesame sold for half a shekel, which would make the cost of a single quart a little more than a penny. In the twelfth year of Nabonidos 60 shekels, or £9, were paid for 6 _gur_ of sesame, and since the _gur_ contained 5 ardebs, according to Dr. Oppert’s calculation, the quart of sesame would have been a little less than 1½d. When we come to the reign of Cambyses we hear of 6½ shekels being paid for 2 ardebs, or about 100 quarts, of wheat; that would give 2½d. as the approximate value of a single _qa_. It would therefore have cost Nubtâ about 2½d. a day to feed a slave.

It must, however, be remembered that the price of grain varied from year to year. In years of scarcity the price rose; when the crops were plentiful it necessarily fell. To a certain extent the annual value was equalized by the large exportation of grain to foreign countries, to which reference is made in many of the contract-tablets; the institution of royal or public store-houses, moreover, called _sutummê_, tended to keep the price of it steady and uniform. Nevertheless, bad seasons sometimes occurred, and there were consequent fluctuations in prices. This was more especially the case as regards the second staple of Babylonian food and standard of value—dates. These seem to have been mostly consumed in Babylonia itself, and, though large quantities of them were accumulated in the royal storehouses, it was upon a smaller scale than in the case of the grain. Hence we need not be surprised if we find that while in the seventh year of Nebuchadnezzar a shekel was paid for 1-1/3 ardebs of dates, or about a halfpenny a quart, in the thirtieth year of the same reign the price had fallen to one-twenty-fifth of a penny per quart. A little later, in the first year of Cambyses, 100 _gur_ of dates was valued at 2½ shekels (7s. 6d.), the _gur_ containing 180 _qas_, which gives 2d. per each _qa_, and in the second year of Cyrus a receipt for the payment of “the workmen of the overseer” states that the following amount of dates had been given from “the royal store-house” for their “food” during the month Tebet: “Fifty _gur_ for the 50 workmen, 10 _gur_ for 10 shield-bearers, 2 _gur_ for the overseer, 1 _gur_ for the chief overseer; in all, 63 _gurs_ of dates.” It was consequently calculated that a workman would consume a _gur_ of dates a month, the month consisting of thirty days.

About the same period, in the first year of Cyrus, after his conquest of Babylon, we hear of two men receiving 2 _pi_ 30 _qas_ (102 _qas_) of grain for the month Tammuz. Each man accordingly received a little over a _qa_ a day, the wage being practically the same as that paid by Nubtâ to the slave. On the other hand, a receipt dated in the fifteenth year of Nabonidos is for 2 _pi_ (72 _qas_) of grain, and 54 _qas_ of dates were paid to the captain of a boat for the conveyance of mortar, to serve as “food” during the month Tebet. As “salt and vegetables” were also added, it is probable that the captain was expected to share the food with his crew. A week previously 8 shekels had been given for 91 _gur_ of dates owed by the city of Pallukkatum, on the Pallacopas canal, to the temple of Uru at Sippara, but the money was probably paid for porterage only. At all events, five years earlier a shekel and a quarter had been paid for the hire of a boat which conveyed three oxen and twenty-four sheep, the offering made by Belshazzar “in the month Nisan to Samas and the gods of Sippara,” while 60 _qas_ of dates were assigned to the two boatmen for food. This would have been a _qa_ of dates _per diem_ for each boatman, supposing the voyage was intended to last a month. In the ninth year of Nabonidos 2 _gur_ of dates were given to a man as his nourishment for two months, which would have been at the rate of 6 _qas_ a day. In the thirty-second year of the same reign 36 _qas_ of dates were valued at a shekel, or a penny a _qa_.

In the older period of Babylonian history prices were reckoned in grain, and, as might be expected, payment was made in kind rather than in coin. In the reign of Ammi-zadok, for instance, 3 homers 24⅔ _qas_ of oil, though valued at 20⅔ shekels of silver, were actually bought with “white Kurdish slaves,” it being stipulated that if the slaves were not forthcoming the purchaser would have to pay for the oil in cash. A thousand years later, under Merodach-nadin-akhi, cash had become the necessary medium of exchange. A cart and harness were sold for 100 shekels, six riding-horses for 300 shekels, one “ass from the West” for 130 shekels, one steer for 30 shekels, 34 _gur_ 56 _qas_ of grain for 137 shekels, 2 homers 40 _qas_ of oil for 16 shekels, two long-sleeved robes for 12 shekels, and nine shawls for 18 shekels.

From this time forward we hear no more of payment in kind, except where wages were paid in food, or where tithes and other offerings were made to the temples. Though the current price of wheat continued to fix the market standard of value, business was conducted by means of stamped money. The shekel and the maneh were the only medium of exchange.

There are numerous materials for ascertaining the average prices of commodities in the later days of Babylonian history. We have already seen what prices were given for sheep and wool, as well as the cost of some of the articles of household use. In the thirty-eighth year of Nebuchadnezzar 100 _gur_ of wheat were valued at only 1 maneh—that is to say, the _qa_ of wheat was worth only the hundredth part of a shilling—while at the same time the price of dates was exactly one-half that amount. On the other hand, in the fourth year of Cambyses 72 _qas_ of sesame were sold at Sippara for 6½ shekels, or 19s. 6d. This would make the cereal worth approximately 1½d. a quart, the same price as that at which it was sold in the twelfth year of Nabonidos. In the second year of Nergal-sharezer twenty-one strings of onions fetched as much as 10 shekels, and a year later 96 shekels were given for onion bulbs for planting. Sheep in the reign of Cambyses fetched 7 and 7½ shekels each, while 10 shekels were given for an ox, and 22½ shekels for a steer two years old. In the twenty-fourth year of Nebuchadnezzar 13 shekels had been paid for a full-grown ox, and as much as 67 shekels in the fourth year of Nabonidos, while in the first year of Evil-Merodach a cow was sold for 15 shekels. The ass was in more request, especially if it was of “Western” breed. In the reign of Merodach-nadin-akhi, it will be remembered, as much as 130 shekels had been paid for one of these, as compared with 30 shekels given for an ox, and though at a subsequent period the prices were lower, the animal was still valued highly. In the year of the death of Cyrus a Babylonian gentleman bought “a mouse-colored ass, eight years old, without blemish,” for 50 shekels (£7 10s.), and shortly afterward another was purchased for 32 shekels. At the same time, however, an ass of inferior quality went for only 13 shekels. When we consider that only three years later a shekel was considered sufficient wages for a butcher for a month’s work, we can better estimate what these prices signify. Nevertheless, the value of the ass seems to have been steadily going down in Babylonia; at all events, in the fourth year of Nabonidos, 1 maneh, or 60 shekels, was demanded for one, and the animal does not seem to have been in any way superior to another which was sold for 50 shekels a few years afterward.

Clothes and woven stuffs were naturally of all prices. In the time of Nebuchadnezzar a cloak or overcoat used by the mountaineers cost only 4½ shekels, though under Cambyses we hear of 58 shekels being charged for eight of the same articles of dress, which were supplied to the “bowmen” of the army. Three years earlier 7½ shekels had been paid for two of these cloaks. About the same time ten sleeved gowns cost 35 shekels.

Metal was more expensive. As has already been noticed, a copper libation-bowl and cup were sold for 4 manehs 9 shekels (£37 7s.), and two copper dishes, weighing 7½ manehs (19 pounds 8 ounces. troy), were valued at 22 shekels. The skilled labor expended upon the work was the least part of the cost. The workman was supplied with his materials by the customer, and received only the value of his labor. What this was can be gathered from a receipt dated the 11th day of Chisleu, in the fourteenth year of Nabonidos, recording the payment of 4 shekels to “the ironsmith,” Suqâ, for making certain objects out of 3⅚ manehs of iron which had been handed over to him.

The cost of bricks and reeds has already been described. Bitumen was more valuable. In the fourteenth year of Nabonidos a contract was made to supply five hundred loads of it for 50 shekels, while at the same time the wooden handle of an ax was estimated at one shekel. Five years previously only 2 shekels had been given for three hundred wooden handles, but they were doubtless intended for knives. In the sixth year of Nabonidos the grandson of the priest of Sippara undertook to supply “bricks, reeds, beams, doors, and chopped straw for building the house of Rimut” for 12 manehs of silver, or £108. The wages of the workmen were not included in the contract.

With these prices it is instructive to compare those recorded on contract-tablets of the age of the third dynasty of Ur, which preceded that under which Abraham was born. These tablets, though very numerous, have as yet been but little examined, and the system of weights and measures which they contain is still but imperfectly known. We learn from them that bitumen could be purchased at the time at the rate of half a shekel of silver for each talent of 60 manehs, and that logs of wood imported from abroad were sold at the rate of eight, ten, twelve, and sixty logs a shekel, the price varying according to the nature of the wood. Prices, however, as might be expected, are usually calculated in grain, oil, and the like, and the exact relation of these to the shekel and maneh has still to be determined.

The average wages of the workmen can be more easily fixed. Contracts dated in the reign of Khammurabi, the Amraphel of Genesis, and found at Sippara, show that it was at the rate of about 4 shekels a year, the laborer’s food being usually thrown in as well. Thus in one of these contracts we read: “Rimmon-bani has hired Sumi-izzitim for his brother, as a laborer, for three months, his wages to be one shekel and a half of silver, three measures of flour, and 1 _qa_ and a half of oil. There shall be no withdrawal from the agreement. Ibni-amurru and Sikni-Anunit have endorsed it. Rimmon-bani has hired the laborer in the presence of Abum-ilu (Abimael), the son of Ibni-samas, of Ili-su-ibni, the son of Igas-Rimmon; and Arad-Bel, the son of Akhuwam.”(7) Then follows the date. Another contract of the same age is of much the same tenor. “Nur-Rimmon has taken Idiyatum, the son of Ili-kamma, from Naram-bani, to work for him for a year at a yearly wage of 4½ shekels of silver. At the beginning of the month Sebat, Idiyatum shall enter upon his service, and in the month Iyyar it shall come to an end and he shall quit it. Witnessed by Beltani, the daughter of Araz-za; by Beltani, the daughter of Mudadum; by Amat-Samas, the daughter of Asarid-ili; by Arad-izzitim, the son of Samas-mutasi; and by Amat-Bau, the priestess (?); the year when the Temple of the Abundance of Rimmon (was built by Khammurabi).” It will be noticed that with one exception the witnesses to this document are all women.

There was but little rise in wages in subsequent centuries. A butcher was paid only 1 shekel for a month’s work in the third year of Cambyses, as has been noticed above, and even skilled labor was not much better remunerated. In the first year of Cambyses, for instance, only half a shekel was paid for painting the stucco of a wall, though in the same year 67 shekels (£10 1s.) were given to a seal-cutter for a month’s labor. Slavery prevented wages from rising by flooding the labor market, and the free artisan had to compete with a vast body of slaves. Hence it was that unskilled work was still so commonly paid in kind rather than in coin, and that the workman was content if his employer provided him with food. Thus in the second year of Nabonidos we are told that the “coppersmith,” Libludh, received 7 _qas_ (about 8½ quarts) of flour for overlaying a chariot with copper, and in the seventeenth year of the same reign half a shekel of silver and 1 _gur_ of wheat from the royal storehouse were paid to five men who had brought a flock of sheep to the King’s administrator in the city of Ruzabu. The following laconic letter also tells the same tale: “Letter from Tabik-zeri to Gula-ibni, my brother. Give 54 _qas_ of meal to the men who have dug the canal. The 9th of Nisan, fifth year of Cyrus, King of Eridu, King of the World.” The employer had a right to the workman’s labor so long as he furnished him with food and clothing.

CHAPTER VII. THE MONEY-LENDER AND BANKER

Among the professions of ancient Babylonia, money-lending held a foremost place. It was, in fact, one of the most lucrative of professions, and was followed by all classes of the population, the highest as well the lowest. Members of the royal family did not disdain to lend money at high rates of interest, receiving as security for it various kinds of property. It is true that in such cases the business was managed by an agent; but the lender of the money, and not the agent, was legally responsible for all the consequences of his action, and it was to him that all the profits went.

The money-lender was the banker of antiquity. In a trading community like that of Babylonia, where actual coin was comparatively scarce, and the gigantic system of credit which prevails in the modern world had not as yet come into existence, it was impossible to do without him. The taxes had to be paid in cash, which was required by the government for the payment of a standing army, and a large body of officials. The same causes which have thrown the fellahin of modern Egypt into the hands of Greek usurers were at work in ancient Babylonia.

In some instances the money-lender founded a business which lasted for a number of generations and brought a large part of the property of the country into the possession of the firm. This was notably the case with the great firm of Egibi, established at Babylon before the time of Sennacherib, which in the age of the Babylonian empire and Persian conquest became the Rothschilds of the ancient world. It lent money to the state as well as to individuals, it undertook agencies for private persons, and eventually absorbed a good deal of what was properly attorney’s business. Deeds and other legal documents belonging to others as well as to members of the firm were lodged for security in its record-chambers, stored in the great earthenware jars which served as safes. The larger part of the contract-tablets from which our knowledge of the social life of later Babylonia is derived has come from the offices of the firm.

In the early days of Babylonia the interest upon a loan was paid in kind.

But the introduction of a circulating medium goes back to an ancient date, and it was not long before payment in grain or other crops was replaced by its equivalent in cash. Already before the days of Amraphel and Abraham, we find contracts stipulating for the payment of so many silver shekels per month upon each maneh lent to the borrower. Thus we have one written in Semitic-Babylonian which reads: “Kis-nunu, the son of Imur-Sin, has received one maneh and a half of silver from Zikilum, on which he will pay 12 shekels of silver (a month). The capital and interest are to be paid on the day of the harvest as guaranteed. Dated the year when Immerum dug the Asukhi canal.” Then follow the names of three witnesses.

The obligation to repay the loan on “the day of the harvest” is a survival from the time when all payments were in kind, and the creditor had a right to the first-fruits of the debtor’s property. A contract dated in the reign of Khammurabi, or Amraphel, similarly stipulates that interest on a loan made to a certain Arad-ilisu by one of the female devotees of the Sun-god, should be paid into the treasury of the temple of Samas “on the day of the harvest.” The interest was reckoned at so much a month, as in the East to-day; originally it had to be paid at the end of each month, according to the literal terms of the agreement, but as time went on it became usual to reserve the payment to the end of six months or a year. It was only where the debtor was not considered trustworthy or the security was insufficient that the literal interpretation of the agreement was insisted on.

The rate of interest, as was natural, tended to be lower with the lapse of time and the growth of wealth. In the age of the Babylonian empire and the Persian conquest the normal rate was, however, still as high as 1 shekel a month upon each maneh, or twenty per cent. But we have a contract dated in the fifth year of Nebuchadnezzar in which a talent of silver is lent, and the interest charged upon it is not more than half a shekel per month on the maneh, or ten per cent. Three years later, in another contract, the rate of interest is stated to be five-sixths of a shekel, or sixteen and two-thirds per cent, while in the fifteenth year of Samas-sum-yukin the interest upon a loan of 16 shekels is only a quarter of a shekel. At this time Babylonia was suffering from the results of its revolt from Assyria, which may explain the lowness of the rate of interest. At all events, six years earlier, Remut, one of the members of the Egibi firm, lent a sum of money to a man and his wife without charging any interest at all upon it, and stipulating only that the money should be repaid when the land was again prosperous.

At times, however, money was lent upon the understanding that interest would be charged upon it only if it were not repaid by a specified date. Thus in the ninth year of Samas-sum-yukin half a maneh was lent by Suma to Tukubenu on the fourth of Marchesvan, or October, upon which no interest was to be paid up to the end of the following Tisri, or September, which corresponded with “the day of the harvest” of the older contracts; but after that, if the money were still unpaid, interest at the rate of half a shekel a month, or ten per cent., would be charged. At other times the interest was paid by the year, as with us, and not by the month; in this case it was at a lower rate than the normal twenty per cent. In the fourteenth year of Nabopolassar, for example, a maneh of silver was lent at the rate of 7 shekels on each maneh per annum—that is to say, at eleven and two-thirds per cent.—and under Nebuchadnezzar money was borrowed at annual interest of 8 shekels for each maneh, or thirteen and one-third per cent.

Full security was taken for a loan, and the contract relating to it was attested by a number of witnesses. Thus the following contract was drawn up in the third year of Nabonidos, a loan of a maneh of silver having been made by one of the members of the Egibi firm to a man and his wife: “One maneh of silver, the property of Nadin-Merodach, the son of Iqisa-bel, the son of Nur-sin, has been received by Nebo-baladan, the son of Nadin-sumi, and Bau-ed-herat, the daughter of Samas-ebus. In the month Tisri (September) they shall repay the money and the interest upon it. Their upper field, which adjoins that of Sum-yukin, the son of Sa-Nebo-sû, as well as the lower field, which forms the boundary of the house of the Seer, and is planted with palm-trees and grass, is the security of Nadin-Merodach, to which (in case of insolvency) he shall have the first claim. No other creditor shall take possession of it until Nadin-Merodach has received in full the capital and interest. In the month Tisri the dates which are then ripe upon the palms shall be valued, and according to the current price of them at the time in the town of Sakhrin, Nadin-Merodach shall accept them instead of interest at the rate of thirty-six _qas_ (fifty quarts) the shekel (3s.). The money is intended to pay the tax for providing the soldiers of the king of Babylon with arms. Witnessed by Nebo-bel-sunu, the son of Bau-akhi, the son of Dahik; Nebo-dîni-ebus, the son of Kinenunâ; Nebo-zira-usabsi, the son, Samas-ibni Bazuzu, the son of Samas-ibni; Merodach-erba, the son of Nadin; and the scribe Bel-iddin, the son of Bel-yupakhkhir, the son of Dabibu. Dated at Sakhrinni, the 28th day of Iyyar (April), the third year of Nabonidos, King of Babylon.”

In Assyria the rate of interest was a good deal higher than it was in Babylonia. It is true that in a contract dated 667 B.C., one of the parties to which was the son of the secretary of the municipality of Dur-Sargon, the modern Khorsabad, it is twenty per cent., as in Babylonia, but this is almost the only case in which it is so. Elsewhere, in deeds dated 684 B.C., 656, and later, the rate is as much as twenty-five per cent., while in one instance—a deed dated 711 B.C.—it rises to thirty-three and a third per cent. Among the witnesses to the last-mentioned deed are two “smiths,” one of whom is described as a “coppersmith,” and the other bears the Armenian name of Sihduri or Sarduris. The money is usually reckoned according to the standard of Carchemish. That the rate of interest should have been higher in Assyria than in Babylonia is not surprising. Commerce was less developed there, and the attention of the population was devoted rather to war and agriculture than to trade. It seems to have been the conquest of Western Asia, the subjugation of the Phœnician cities, and above all the incorporation of Babylonia in the empire, which introduced a commercial spirit into Nineveh, and made it in the latter days of its existence an important centre of trade. Indeed, one of the objects of the Assyrian campaigns in Syria was to divert the trade of the Mediterranean into Assyrian hands; the fall of Carchemish made Assyria mistress of the caravan-road which led across the Euphrates, and of the commerce which had flowed from Asia Minor, while the ruin of Tyre and Sidon meant prosperity to the merchants of Nineveh. Nevertheless, the native population of Assyria was slow to avail itself of the commercial advantages which had fallen to it, and a large part of its trading classes were Arameans or other foreigners who had settled in the country. So large, indeed, was the share in Assyrian trade which the Arameans absorbed that Aramaic became the _lingua panca_, the common medium of intercommunication, in the commercial world of the second Assyrian empire, and, as has been already stated, many of the Assyrian contract-tablets are provided with Aramaic dockets, which give a brief abstract of their contents.

A memorandum signed by “Basia, the son of Rikhi,” furnishes us with the relative value of gold and silver in the age of Nebuchadnezzar. “Two shekels and a quarter of gold for twenty-five shekels and three-quarters of silver, one shekel worn and deficient in weight for seven shekels of silver, two and a quarter shekels, also worn, for twenty-two and three-quarters shekels of silver; in all five and a half shekels of gold for fifty-five and a half shekels of silver.” Gold, therefore, at this time would have been worth about eleven times more than silver. A few years later, however, in the eleventh year of Nabonidos, the proportion had risen and was twelve to one. We learn this from a statement that the goldsmith Nebo-edhernapisti had received in that year, on the 10th day of Ab, 1 shekel of gold, in 5-shekel pieces, for 12 shekels of silver. The coinage, if we may use such a term, was the same in both metals, the talent being divided into 60 manehs and the maneh into 60 shekels. There seems also to have been a bronze coinage, at all events in the later age of Assyria and Babylonia, but the references to it are very scanty, and silver was the ordinary medium of exchange. One of the contract-tablets, however, which have come from Assyria and is dated in the year 676 B.C., relates to the loan of 2 talents of bronze from the treasury of Istar at Arbela, which were to be repaid two months afterward. Failing this, interest was to be charged upon them at the rate of thirty-three and a third per cent., and it is implied that the payment was to be in bronze.

The talent, maneh, and shekel were originally weights, and had been adopted by the Semites from their Sumerian predecessors. They form part of that sexagesimal system of numeration which lay at the root of Babylonian mathematics and was as old as the invention of writing. So thoroughly was sixty regarded as the unit of calculation that it was denoted by the same single wedge or upright line as that which stood for “one.” Wherever the sexagesimal system of notation prevailed we may see an evidence of the influence of Babylonian culture.

It was the maneh, however, and not the talent, which was adopted as the standard. The talent, in fact, was too heavy for such a purpose; it implied too considerable an amount of precious metal and was too seldom employed in the daily business of life. The Babylonian, accordingly, counted up from the maneh to the talent and down to the shekel.

The standard weight of the maneh, which continued in use up to the latest days of Babylonian history, had been fixed by Dungi, of the dynasty of Ur, about 2700 B.C. An inscription on a large cone of dark-green stone, now in the British Museum, tells us that the cone represents “one maneh standard weight, the property of Merodach-sar-ilani, and a duplicate of the weight which Nebuchadnezzar, king of Babylon, the son of Nabopolassar, king of Babylon, had made in exact imitation of the standard weight established by the deified Dungi, an earlier king.” The stone now weighs 978.309 grammes, which, making the requisite deductions for the wear and tear of time, would give 980 grammes, or rather more than 2 pounds 2 ounces avoirdupois. The Babylonian maneh, as fixed by Dungi and Nebuchadnezzar, thus agrees in weight rather with the Hebrew maneh of gold than with the “royal” maneh, which was equivalent to 2 pounds 7⅕ ounces.

It was not, however, the only maneh in use in Babylonia. Besides the “heavy” or “royal” maneh there was also a “light” maneh, like the Hebrew silver maneh of 1 pound 11 ounces, while the Assyrian contract-tablets make mention of “the maneh of Carchemish,” which was introduced into Assyria after the conquest of the Hittite capital in 717 B.C. Mr. Barclay V. Head has pointed out that this latter maneh was known in Asia Minor as far as the shores of the Ægean, and that the “tongues” or bars of silver found by Dr. Schliemann on the site of Troy are shekels made in accordance with it.(8)

A similar “tongue” of gold “of fifty shekels weight” is referred to in Josh. vii. 21, in connection with that “goodly Babylonish garment” which was carried away by Achan from among the spoils of Jericho. It is probable that the shekels and manehs of Babylonia were originally cast in the same tongue-like form. In Egypt they were in the shape of rings and spirals, but there is no evidence that the use of the latter extended beyond the valley of the Nile. In Western Asia it was rather bars of metal that were employed.

At first the value of the bar had to be determined by its being weighed each time that it changed hands. But it soon came to be stamped with an official indication of its weight and value. A Cappadocian tablet found near Kaisariyeh, which is at least as early as the age of the Exodus and may go back to that of Abraham, speaks of “three shekels of sealed” or “stamped silver.” In that distant colony of Babylonian civilization, therefore, an official seal was already put upon some of the money in circulation. In the time of Nebuchadnezzar the coinage was still more advanced. There were “single shekel” pieces, pieces of “five shekels” and the like, all implying that coins were issued representing different fractions of the maneh. The maneh itself was divided into pieces of five-sixths, two-thirds, one-third, one-half, one-quarter, and three-quarters. It is often specified whether a sum of money is to be paid in single shekel pieces or in 5-shekel pieces, and the word “stamped” is sometimes added. The invention of a regular coinage is generally ascribed to the Lydians; but it was more probably due to the Babylonians, from whom both Lydians and Greeks derived their system of weights as well as the term _mina_ or maneh.

The Egibi firm was not the only great banking or trading establishment of which we know in ancient Babylonia. The American excavators at Niffer have brought to light the records of another firm, that of Murasu, which, although established in a provincial town and not in the capital, rose to a position of great wealth and influence under the Persian kings Artaxerxes I. (464-424 B.C.) and Darius II. (424-405 B.C.). The tablets found at Tello also indicate the existence of similarly important trading firms in the Babylonia of 2700 B.C., though at this period trade was chiefly confined to home products, cattle and sheep, wool and grain, dates and bitumen.

The learned professions were well represented. The scribes were a large and powerful body, and in Assyria, where education was less widely diffused than in Babylonia, they formed a considerable part of the governing bureaucracy. In Babylonia they acted as librarians, authors, and publishers, multiplying copies of older books and adding to them new works of their own. They served also as clerks and secretaries; they drew up documents of state as well as legal contracts and deeds. They were accordingly responsible for the forms of legal procedure, and so to some extent occupied the place of the barristers and attorneys of to-day. The Babylonian seems usually, if not always, to have pleaded his own case; but his statement of it was thrown into shape by the scribe or clerk like the final decision of the judges themselves. Under Nebuchadnezzar and his successors such clerks were called “the scribes of the king,” and were probably paid out of the public revenues. Thus in the second year of Evil-Merodach it is said of the claimants to an inheritance that “they shall speak to the scribes of the king and seal the deed,” and the seller of some land has to take the deed of quittance “to the scribes of the king,” who “shall supervise and seal it in the city.” Many of the scribes were priests; and it is not uncommon to find the clerk who draws up a contract and appears as a witness to be described as “the priest” of some deity.

The physician is mentioned at a very early date. Thus we hear of “Ilu-bani, the physician of Gudea,” the High-priest of Lagas (2700 B.C.), and a treatise on medicine, of which fragments exist in the British Museum, was compiled long before the days of Abraham. It continued to be regarded as a standard work on the subject even in the time of the second Assyrian empire, though its prescriptions are mixed up with charms and incantations. But an attempt was made in it to classify and describe various diseases, and to enumerate the remedies that had been proposed for them. The remedies are often a compound of the most heterogeneous drugs, some of which are of a very unsavory nature. However, the patient, or his doctor, is generally given a choice of the remedies he might adopt. Thus for an attack of spleen he was told either to “slice the seed of a reed and dates in palm-wine,” or to “mix calves’ milk and bitters in palm-wine,” or to “drink garlic and bitters in palm-wine.” “For an aching tooth,” it is laid down, “the plant of human destiny (perhaps the mandrake) is the remedy; it must be placed upon the tooth. The fruit of the yellow snakewort is another remedy for an aching tooth; it must be placed upon the tooth.… The roots of a thorn which does not see the sun when growing is another remedy for an aching tooth; it must be placed upon the tooth.” Unfortunately it is still impossible to assign a precise signification to most of the drugs that are named, or to identify the various herbs contained in the Babylonian pharmacopœia.

As time passed on, the charms and other superstitious practices which had at first played so large a part in Babylonian medicine fell into the background and were abandoned to the more uneducated classes of society. The conquest of Western Asia by the Egyptian Pharaohs of the eighteenth dynasty brought Babylonia into contact with Egypt, where the art of medicine was already far advanced. It is probable that from this time forward Babylonian medicine also became more strictly scientific. We have indeed evidence that the medical system and practice of Egypt had been introduced into Asia. When the great Egyptian treatise on medicine, known as the Papyrus Ebers, was written in the sixteenth century B.C., one of the most fashionable oculists of the day was a “Syrian” of Gebal, and as the study of the disease of the eye was peculiarly Egyptian, we must assume that his science had been derived from the valley of the Nile. It must not be supposed, however, that the superstitious beliefs and practices of the past were altogether abandoned, even by the most distinguished practitioners, any more than they were by the physicians of Europe in the early part of the last century. But they were invoked only when the ordinary remedies had failed, and when no resource seemed left except the aid of spiritual powers. Otherwise the doctor depended upon his diagnosis of the disease and the prescriptions which had been accumulated by the experience of past generations.

At the head of the profession stood the court-physician, the Rab-mugi or Rab-mag as he was called in Babylonia. In Assyria there was more than one doctor attached to the royal person, but letters have come down to us from which we learn that the royal physicians were at times permitted to attend private individuals when they were sick. Thus we have a letter of thanks to the Assyrian King from one of his subjects full of gratitude to the King for sending his own doctor to the writer, who had accordingly been cured of a dangerous disease. “May Istar of Erech,” he says, “and Nana (of Bit-Anu) grant long life to the king my lord, for he has sent Basa, the royal physician, to save my life, and he has cured me; may the great gods of heaven and earth be therefore gracious to the king my lord, and may they establish the throne of the king my lord in heaven for ever, since I was dead and the king has restored me to life.” Another letter contains a petition that one of the royal physicians should be allowed to visit a lady who was ill. “To the king my lord,” we read, “thy servant, Saul-miti-yuballidh, sends salutation to the king my lord: may Nebo and Merodach be gracious to the king my lord for ever and ever. Bau-gamilat, the handmaid of the king, is constantly ill; she cannot eat a morsel of food. Let the king send orders that some physician may go and see her.” In this case, however, it is possible that the lady, who seems to have been suffering from consumption, belonged to the harim of the monarch, and it was consequently needful to obtain the royal permission for a stranger to visit her, even though he came professionally.

We can hardly reckon among Babylonian professions that of the poet. It is true that a sort of poet-laureate existed at the court, and that we hear of a piece of land being given by the King to one of them for some verses which he had composed in honor of the sovereign. But poetry was not a separate profession, and the poet must be included in the class of scribes, or among those educated country gentlemen who possessed estates of their own. He was, however, fully appreciated in Babylonia. The names of the chief poets of the country were never forgotten, and the poems they had written passed through edition after edition down to the later days of Babylonian history. Sin-liqi-unnini, the author of the “Epic of Gilgames,” Nis-Sin, the author of the “Adventures of Etana,” and many others, never passed out of literary remembrance. There was a large reading public, and the literary language of Babylonia changed but little from century to century.

It was otherwise with the musicians. They formed a class to themselves, though whether as a trade or as a profession it is difficult to say. We must, however, distinguish between the composer and the performer. The latter was frequently a slave or captive, and occupied but an humble place in society. He is frequently depicted in the Assyrian bas-reliefs, and in one instance is represented as wearing a cap of great height and shaped like a fish. Musical instruments were numerous and various. We find among them drums and tambourines, trumpets and horns, lyres and guitars, harps and zithers, pipes and cymbals. Even the speaking-trumpet was employed. In a sculpture which represents the transport of a colossal bull from the quarries of Balad to the palace of Sennacherib, an overseer is made to stand on the body of the bull and issue orders through a trumpet to the workmen.

Besides single musicians, there were bands of performers, and at times the music was accompanied by dancing or by clapping the hands. The bands were under the conduct of leaders, who kept time with a double rod. In one instance the Assyrian artist has represented three captives playing on a lyre, an interesting illustration of the complaint of the Jewish exiles in Babylonia that their conquerors required from them “a song.”

The artist fared no better than the musical performer. The painter of the figures and scenes on the walls of the chamber, the sculptor of the bas-reliefs which adorned an Assyrian palace, or of the statues which stood in the temples of Babylonia, the engraver of the gems and seals, some of which show such high artistic talent, were all alike skilled artisans and nothing more. We have already seen what wages they received, and what consequently must have been the social admiration in which they were held. Behind the workman, however, stood the original artist, who conceived and drew the first designs, and to whom the artistic inspiration was primarily due. Of him we still know nothing. Probably he belonged in general to the class of priests or scribes, and would have disdained to receive remuneration for his art. As yet the texts have thrown no light upon him, and it may be that they never will do so. The Babylonians were a practical and not an artistic people, and the skilled artisan gave them all that they demanded in the matter of art.

CHAPTER VIII. THE GOVERNMENT AND THE ARMY

The conception of the state in Babylonia was intensely theocratic. The kings had been preceded by high-priests, and up to the last they performed priestly functions, and represented the religious as well as the civil power. At Babylon the real sovereign was Bel Merodach, the true “lord” of the city, and it was only when the King had been adopted by the god as his son that he possessed any right to rule. Before he had “taken the hands” of Bel, and thereby become the adopted son of the deity, he had no legitimate title to the throne. He was, in fact, the vicegerent and representative of Bel upon earth; it was Bel who gave him his authority and watched over him as a father over a son.

The Babylonian sovereign was thus quite as much a pontiff as he was a king. The fact was acknowledged in the titles he bore, as well as in the ceremony which legitimized his accession to the throne. Two views prevailed, however, as to his relation to the god. According to one of these, sonship conferred upon him actual divinity; he was not merely the representative of a god, but a god himself. This was the view which prevailed in the earlier days of Semitic supremacy. Sargon of Akkad and his son Naram-Sin are entitled “gods;” temples and priests were dedicated to them during their lifetime, and festivals were observed in their honor. Their successors claimed and received the same attributes of divinity. Under the third dynasty of Ur even the local prince, Gudea, the high-priest of Tello, was similarly deified. It was not until Babylonia had been conquered by the foreign Kassite dynasty from the mountains of Elam that a new conception of the King was introduced. He ceased to be a god himself, and became, instead, the delegate and representative of the god of whom he was the adopted son. His relation to the god was that of a son during the lifetime of his father, who can act for his father, but cannot actually take the father’s place so long as the latter is alive.

Some of the earlier Chaldean monarchs call themselves sons of the goddesses who were worshipped in the cities over which they held sway. They thus claimed to be of divine descent, not by adoption, but by actual birth. The divinity that was in them was inherited; it was not merely communicated by a later and artificial process. The “divine right,” by grace of which they ruled, was the right of divine birth.

At the outset, therefore, the Babylonian King was a pontiff because he was also a god. In him the deities of heaven were incarnated on earth. He shared their essence and their secrets; he knew how their favor could be gained or their enmity averted, and so mediated between god and man. This deification of the King, however, cannot be traced beyond the period when Semitic rule was firmly established in Chaldea. It is true that Sumerian princes, like Gudea of Lagas, were also deified; but this was long after the rise of Semitic supremacy, and the age of Sargon of Akkad, and when Sumerian culture was deeply interpenetrated by Semitic ideas. So far as we know at present the apotheosis of the King was of Semitic origin.

It is paralleled by the apotheosis of the King in ancient Egypt. There, too, the Pharaoh was regarded as an incarnation of divinity, to whom shrines were erected, priests ordained, and sacrifices offered. In early times he was, moreover, declared to be the son of the goddess of the city in which he dwelt; it was not till the rise of the fifth historical dynasty that he became the “Son of the Sun-god” of Heliopolis, rather than Horus, the Sun-god, himself. This curious parallelism is one of many facts which point to intercourse between Babylonia and Egypt in the prehistoric age; whether the deification of the King originated first on the banks of the Euphrates or of the Nile must be left to the future to decide.

Naram-Sin is addressed as “the god of Agadê,” or Akkad, the capital of his dynasty, and long lists have been found of the offerings that were made, month by month, to the deified Dungi, King of Ur, and his vassal, Gudea of Lagas. Here, for example, are Dr. Scheil’s translations of some of them: “I. Half a measure of good beer and 5 _gin_ of sesame oil on the new moon, the 15th day, for the god Dungi; half a measure of good beer and half a measure of herbs for Gudea the High-priest, during the month Tammuz. II. Half a measure of the king’s good beer, half a measure of herbs, on the new moon, the 15th day, for Gudea the High-priest. One measure of good wort beer, 5 _qas_ of ground flour, 3 _qas_ of cones (?), for the planet Mercury: during the month of the festival of the god Dungi. III.… Half a measure of good beer, half a measure of herbs, on the new moon, the 15th day, for the god Gudea the High-priest: during the month Elul, the first year of Gimil-Sin, king [of Ur].”

The conception of the King as a visible god upon earth was unable to survive the conquest of Babylonia by the half-civilized mountaineers of Elam and the substitution of foreigners for the Semitic or Semitized Sumerian rulers of the country. As the doctrine of the divine right of kings passed away in England with the rise of the Hanoverian dynasty, so, too, in Babylonia the deified King disappeared with the Kassite conquest. But he continued to be supreme pontiff to the adopted son of the god of Babylon. Babylon had become the capital of the kingdom, and Merodach, its patron-deity, was, accordingly, supreme over the other gods of Chaldea. He alone could confer the royal powers that the god of every city which was the centre of a principality had once been qualified to grant. By “taking his hands” the King became his adopted son, and so received a legitimate right to the throne.

It was the throne not only of Babylonia, but of the Babylonian empire as well. It was never forgotten that Babylonia had once been the mistress of Western Asia, and it was, accordingly, the sceptre of Western Asia that was conferred by Bel Merodach upon his adopted sons. Like the Holy Roman Empire in the Middle Ages, Babylonian sovereignty brought with it a legal, though shadowy, right to rule over the civilized kingdoms of the world. It was this which made the Assyrian conquerors of the second Assyrian empire so anxious to secure possession of Babylon and there “take the hands of Bel.” Tiglath-pileser III., Shalmaneser IV., and Sargon were all alike usurpers, who governed by right of the sword. It was only when they had made themselves masters of Babylon and been recognized by Bel and his priesthood that their title to govern became legitimate and unchallenged.

Cyrus and Cambyses continued the tradition of the native kings. They, too, claimed to be the successors of those who had ruled over Western Asia, and Bel, of his own free choice, it was alleged, had rejected the unworthy Nabonidos and put Cyrus in his place. Cyrus ruled, not by right of conquest, but because he had been called to the crown by the god of Babylon. It was not until the Zoroastrean Darius and Xerxes had taken Babylon by storm and destroyed the temple of Bel that the old tradition was finally thrust aside. The new rulers of Persia had no belief in the god of Babylon; his priesthood was hostile to them, and Babylon was deposed from the position it had so long occupied as the capital of the world.

In Assyria, in contrast to Babylonia, the government rested on a military basis. It is true that the kings of Assyria had once been the high-priests of the city of Assur, and that they carried with them some part of their priestly functions when they were invested with royal power. But it is no less true that they were never looked upon as incarnations of the deity or even as his representative upon earth. The rise of the Assyrian kingdom seems to have been due to a military revolt; at any rate, its history is that of a succession of rebellious generals, some of whom succeeded in founding dynasties, while others failed to hand down their power to their posterity. There was no religious ceremony at their coronation like that of “taking the hands of Bel.” When Esar-haddon was made King he was simply acclaimed sovereign by the army. It was the army and not the priesthood to whom he owed his title to reign.

The conception of the supreme god himself differed in Assyria and Babylonia. In Babylonia, Bel-Merodach was “lord” of the city; in Assyria, Assur was the deified city itself. In the one case, therefore, the King was appointed vicegerent of the god over the city which he governed and preserved; in the other case the god represented the state, and, in so far as the King was a servant of the god, he was a servant also of the state.

In both countries there was an aristocracy of birth based originally on the possession of land. But in Babylonia it tended at an early period to be absorbed by the mercantile and priestly classes, and in later days it is difficult to find traces even of its existence. The nobles of the age of Nebuchadnezzar were either wealthy trading families or officers of the Crown. The temples, and the priests who lived upon their revenues, had swallowed up a considerable part of the landed and other property of the country, which had thus become what in modern Turkey would be called _wakf_. In Assyria many of the great princes of the realm still belonged to the old feudal aristocracy, but here again the tendency was to replace them by a bureaucracy which owed its position and authority to the direct favor of the King. Under Tiglath-pileser III. this tendency became part of the policy of the government; the older aristocracy disappeared, and instead of it we find military officers and civil officials, all of whom were appointed by the Crown.

While, accordingly, Babylonia became an industrial and priestly state, Assyria developed into a great military and bureaucratic organization. It taught the world how to organize and administer an empire. Tiglath-pileser III. inaugurated a course of policy which his successors did their best to carry out. He aimed at reviving the ancient empire of Sargon of Akkad, of uniting the civilized world of Western Asia under one head, but upon new principles and in a more permanent way. The campaigns which his predecessors had carried on for the sake of booty and military fame were now conducted with a set purpose and method. The raid was replaced by a carefully planned scheme of conquest. The vanquished territories were organized into provinces under governors appointed by the Assyrian King and responsible to him alone. By the side of the civil governor was a military commander, who kept watch upon the other’s actions, while under them was a large army of administrators. Assyrian colonies were planted in the newly acquired districts, where they served as a garrison, and the native inhabitants were transported to other parts of the Assyrian empire. In this way an attempt was made to break the old ties of patriotism and local feeling, and to substitute for them fidelity to the Assyrian government and the god Assur, in whose name its conquests were made.

The taxes of the empire were carefully regulated. A cadastral survey was an institution which had long been in existence; it had been borrowed from Babylonia, where, as we have seen, it was already known at a very early epoch. The amount to be paid into the treasury by each town and province was fixed, and the governor was called upon to transmit it each year to Nineveh. Thus in the time of Sennacherib the annual tribute of Carchemish was 100 talents, that of Arpad 30, and that of Megiddo 15, while, at home, Nineveh was assessed at 30 talents, and the district of Assur at 20, which were expended on the maintenance of the fleet, the whole amount of revenue raised from Assyria being 274 talents. Besides this direct taxation, there was also indirect taxation, as well as municipal rates. Thus a tax was laid upon the brick-fields, which in Babylonia were economically of considerable importance, and there was an _octroi_ duty upon all goods, cattle, and country produce which entered a town. Similar tolls were exacted from the ships which moored at the quays, as well as from those who made use of the pontoon-bridges which spanned the Euphrates or passed under them in boats.

Long lists of officials have been preserved. Certain of the governors or satraps were allowed to share with the King the privilege of giving a name to the year. It was an ingenious system of reckoning time which had been in use in Assyria from an early period and was introduced into Cappadocia by Assyrian colonists. From Asia Minor it probably spread to Greece; at all events, the eponymous archons at Athens, after whom the several years were named, corresponded exactly with the Assyrian _limmi_ or eponyms. Each year in succession received its name from the eponym or officer who held office during the course of it, and as lists of these officers were carefully handed down it was easy to determine the date of an event which had taken place in the year of office of a given eponym. The system was of Assyrian invention and never prevailed in Babylonia. There time was dated by the chief occurrences of a king’s reign, and at the end of the reign a list of them was drawn up beginning with his accession to the throne and ending with his death and the name of his successor. These lists went back to an early period of Babylonian history and provided the future historian with an accurate chronology.

Immediately attached to the person of the Assyrian monarch was the Rab-saki, “the chief of the princes,” or vizier. He is called the Rab-shakeh in the Old Testament, by the side of whom stood the Rab-saris, the Assyrian Rab-sa-risi, or “chief of the heads” of departments. They were both civil officers. The army was under the command of the Tartannu, or “Commander-in-Chief,” the Biblical Tartan, who, in the absence of the King, led the troops to battle and conducted a campaign. When Shalmaneser II., for example, became too old to take the field himself, his armies were led by the Tartan Daian-Assur, and under the second Assyrian empire the Tartan appears frequently, sometimes in command of a portion of the forces, while the King is employing the rest elsewhere, sometimes in place of the King, who prefers to remain at home. In earlier days there had been two Tartans, one of whom stood on the right hand side of the King and the other on his left. In order of precedence both of them were regarded as of higher rank than the Rab-shakeh.

The army was divided into companies of a thousand, a hundred, fifty, and ten, and we hear of captains of fifty and captains of ten. Under Tiglath-pileser III. and his successors it became an irresistible engine of attack. No pains were spared to make it as effective as possible; its discipline was raised to the highest pitch of perfection, and its arms and accoutrements constantly underwent improvements. As long as a supply of men lasted, no enemy could stand against it, and the great military empire of Nineveh was safe.

It contained cavalry as well as foot-soldiers. The cavalry had grown out of a corps of chariot-drivers, which was retained, though shrunken in size and importance, long after the more serviceable horsemen had taken its place. The chariot held a driver and a warrior. When the latter was the King he was accompanied by one or two armed attendants. They all rode standing and carried bows and spears. The chariot itself ran upon two wheels, a pair of horses being harnessed to its pole. Another horse was often attached to it in case of accidents.

The chariots were of little good when the fighting had to be done in a mountainous country. In the level parts of Western Asia, where good roads had existed for untold centuries, they were a powerful arm of offence, but the Assyrians were constantly called upon to attack the tribes of the Kurdish and Armenian mountains who harassed their positions, and in such trackless districts the chariots were an incumbrance and not a help. Trees had to be cut down and rocks removed in order to make roads along which they might pass. The Assyrian engineers indeed were skilled in the construction of roads of the kind, and the inscriptions not infrequently boast of their success in carrying them through the most inaccessible regions, but the necessity for making them suitable for the passage of chariots was a serious drawback, and we hear at times how the wheels of the cars had to be taken off and the chariots conveyed on the backs of mules or horses. It was not wonderful, therefore, that the Assyrian kings, who were practical military men, soon saw the advantage of imitating the custom of the northern and eastern mountaineers, who used the horse for riding purposes rather than for drawing a chariot. The chariot continued to be employed in the Assyrian army, but rather as a luxury than as an effective instrument of war.

At first the cavalry were little more than mounted horsemen. Their only weapons were the bow and arrow, and they rode without saddles and with bare legs. At a later period part of the cavalry was armed with spears, saddles were introduced, and the groom who had run by the side of the horse disappeared. At the same time, under Tiglath-pileser III., the rider’s legs were protected by leathern drawers over which high boots were drawn, laced in front. This was an importation from the north, and it is possible that many of the horsemen were brought from the same quarter. Sennacherib still further improved the dress by adding to it a closely fitting coat of mail.

The infantry outnumbered the cavalry by about ten to one, and were divided into heavy-armed and light-armed. Their usual dress, at all events, up to the foundation of the second Assyrian empire, consisted of a peaked helmet and a tunic which descended half-way down the thighs, and was fastened round the waist by a girdle. From the reign of Sargon onward they were divided into two bodies, one of archers, the other of spearmen, the archers being partly light-armed and partly heavy-armed. The heavy-armed were again divided into two classes, one of them wearing sandals and a coat-of-mail over the tunic, while the other was dressed in a long, fringed robe reaching to the feet, over which a cuirass was worn. They also carried a short sword, and had sandals of the same shape as those used by the other class. Each had an attendant waiting upon him with a long, rectangular shield of wicker-work, covered with leather. The light-armed archers were encumbered with but little clothing, consisting only of a kilt and a fillet round the head. The spearmen, on the contrary, were protected by a crested helmet and circular shield, though their legs and face were usually bare.

Changes were introduced by Sennacherib, who abolished the inconveniently long robe of the second class of heavy-armed archers, and gave them leather greaves and boots. The first class, on the other hand, are now generally represented without sandals, and with an embroidered turban with lappets on the head. Sennacherib also established a corps of slingers, who were clad in helmet and breastplate, leather drawers, and short boots, as well as a company of pioneers, armed with double-headed axes, and clothed with conical helmets, greaves, and boots. These pioneers were especially needed for engineering the way through the pathless defiles and rugged ground over which the extension of the empire more and more required the Assyrian army to make its way.

The heads of the spears and arrows were of metal, usually of bronze, more rarely of iron. The helmets also were of bronze or iron, a leather cap being worn underneath them, and the coats-of-mail were formed of bronze scales sewn to a leather shirt. Many of the shields, moreover, were of metal, though wicker-work covered with leather seems to have been preferred. Battering-rams and other engines for attacking a city were carried on the march.

Baggage wagons were also carried, as well as standards and tents. The tents of the officers were divided into two partitions, one of which was used as a dining-room, while the royal tent was accompanied by a kitchen. Tables, chairs, couches, and various utensils formed part of its furniture. One of these chairs was a sort of palanquin in the shape of an arm-chair with a footstool, which was borne on the shoulders of attendants.

The Assyrian army was originally recruited from the native peasantry, who returned to their fields at the end of a campaign with the spoil that had been taken from the enemy. Under the second Assyrian empire, however, it became a standing army, a part of which was composed of mercenaries, while another part consisted of troops drafted from the conquered populations. Certain of the soldiers were selected to serve as the body-guard of the King; they had a commander of their own and doubtless possessed special privileges. The army was recruited by conscription, the obligation to serve in it being part of the burdens which had to be borne by the peasantry. They could be relieved of it by the special favor of the government just as they could be relieved of the necessity of paying taxes.

The Babylonian army of Nebuchadnezzar and his successors was modelled on that of the Assyrians. We can gather from the receipts for the provisions and accoutrements furnished to it how the army of Tiglath-pileser or Sennacherib must have been fed and paid. Thus in the first year of Nabonidos, 75 _qas_ of flour and 63 _qas_ (nearly 100 quarts) of beer were provided for the troops in the camp near Sippara, and in the second year of the same King 54 _qas_ of beer were sent on the 29th of Nisan for “the soldiers who had marched from Babylon.” Similarly in the tenth year of the same reign we have a receipt for the despatch of 116 _qas_ of food on the 14th of Iyyar for “the troops which had marched [to Sippara] from Babylon,” as well as for 18 _qas_ of “provisions” provided each day for the same purpose from the 15th to the 18th of the same month. In the first year of Nabonidos 3 _gur_ of sesame had been ordered for the archers during the first two months of the year, and as in his thirteenth year 5 _gur_ of wheat were provided for fifteen soldiers, we may calculate that rather more than two and one-half bushels were allotted to each man. It may be added that at the beginning of Nebuchadnezzar’s reign we find a contractor guaranteeing “the excellence of the beer” that had been furnished for the “army that had entered Babylon,” though it is possible that here artisans rather than soldiers are meant.

A register of the soldiers was kept, but it would seem that those who were in charge of it sometimes forgot to strike off the names of those who were dead or discharged, and pocketed their pay. At any rate, the following official document has come down to us:—“(The names) of the deserters and dead soldiers which have been overlooked in the paymaster’s account, the 8th day of Nisan, the eighth year of Cyrus, king of Babylon and of the world: Samas-akhi-iddin, son of Samas-ana-bitisu, deserted; Muse-zib-Samas, son of the Usian, _ditto_; Itti-Samas-eneya junior, of the family of Samas-kin-abli, _ditto_; Itti-Samas-baladhu, son of Samas-erba _ditto_; Taddannu, son of Rimut, _ditto_; Samas-yuballidh, his brother, _ditto_; Kalbâ, son of Samas-kin-abli, son of the painter(?), _ditto_; in all seven deserters. Libludh, son of Samas-edher, dead; Nebo-tuktê-tirri, _ditto_; Samas-mupakhkhiranni, _ditto_; Samas-akhi-erba, son of Samas-ana-bitisu, _ditto_; in all four dead. Altogether eleven soldiers who have deserted or are dead.”

If Babylonia copied Assyria in military arrangements, the converse was the case as regards a fleet. “The cry of the Chaldeans,” according to the Old Testament, was “in their ships,” and in the earliest age of Babylonian history, Eridu, which then stood on the sea-coast, was already a sea-port. But Assyria was too far distant from the sea for its inhabitants to become sailors, and the rapid current of the Tigris made even river navigation difficult. In fact, the rafts on which the heavy monuments were transported, and which could float only down stream, or the small, round boats, resembling the _kufas_ that are still in use, were almost the only means employed for crossing the water. When the Assyrian army had to pass a river, either pontoons were thrown across it, or the soldiers swam across the streams with the help of inflated skins. The _kufa_ was made of rushes daubed with bitumen, and sometimes covered with a skin.

So little accustomed were the Assyrians to navigation that, when Sennacherib determined to pursue the followers of Merodach-baladan across the Persian Gulf to the coast of Elam, he was obliged to have recourse to the Phœnician boat-builders and sailors. Two fleets were built for him by Phœnician and Syrian workmen, one at Tel-Barsip, near Carchemish, on the Euphrates, the other at Nineveh on the Tigris; these he manned with Syrian, Sidonian, and Ionian sailors, and after pouring out a libation to Ea, the god of the sea, set sail from the mouth of the Euphrates. It was probably for the support of this fleet that the 20 talents (£10,800) annually levied on the district of Assur were intended. The Phœnician ships employed by the Assyrians were biremes, with two tiers of oars.

Of the Babylonian fleet we know but little. It does not seem to have taken part in the defence of the country at the time of the invasion of Cyrus. But the sailors who manned it were furnished with food, like the soldiers of the army, from the royal storehouse or granary. Thus in the sixteenth year of Nabonidos we have a memorandum to the effect that 210 _qas_ of dates were sent from the storehouse in the month Tammuz “for the maintenance of the sailors.” The King also kept a state-barge on the Euphrates, like the dahabias of Egypt. In the twenty-fourth year of Darius, for instance, a new barge was made for the monarch, two contractors undertaking to work upon it from the beginning of Iyyar, or April, to the end of Tisri, or September, and to use in its construction a particular kind of wood.

While we hear but little about the fleet, cargo and ferry-boats are frequently mentioned in letters and contracts. Reference has already been made to the shekel and a quarter paid by the agent of Belshazzar for the hire of a boat which conveyed three oxen and twenty-four sheep to the temple of the Sun-god at Sippara, in order that they might be sacrificed at the festival of the new year. Sixty _qas_ of dates were at the same time given to the boatmen. In the reign of Nebuchadnezzar, 3 shekels were paid for the hire of a grain-boat, and in the thirty-sixth year of the same King 4½ shekels were given for the hire of another boat for the transport of wool.

Some documents translated by Mr. Pinches throw light on the building and cost of the ships. One of them is as follows: “A ship of six by the cubit beam, twenty by the cubit the seat of its waters, which Nebo-baladan, the son of Labasi, the son of Nur-Papsukal, has sold to Sirikki, the son of Iddinâ, the son of Egibi, for four manehs, ten shekels of silver, in one-shekel pieces, which are not standard, and are in the shape of a bird’s tail (?). Nebo-baladan takes the responsibility for the management (?) of the ship. Nebo-baladan has received the money, four manehs ten shekels of white (silver), the price of his ship, from the hands of Sirikki.” The contract, which was signed by six witnesses, one of whom was “the King’s captain,” was dated at Babylon in the twenty-sixth year of Darius. Another contract relates to one of the boats of the pontoon-bridge which ran across the Euphrates and connected the two parts of Babylon together: “[Two] manehs ten shekels of white (silver), coined in one-shekel pieces, not standard, from Musezib, the son of Pisaram, to Sisku, the son of Iddinâ, the son of Egibi. Musezibtum and Narum, his female slaves—the wrist of Musezibtum is tattooed with the name of Iddinâ, the father of Sisku, and the wrist of Narum is tattooed with the name of Sisku—are the security of Musezib. There is no hire paid for the slaves or interest on the money. Another possessor shall not have power over them until Musezib receives the money, two manehs ten shekels of white silver, in one-shekel pieces. Sisku, the son of Iddinâ, takes the responsibility for the non-escape of Musezibtum and Narum. The day when Musezibtum and Narum go elsewhere Sisku shall pay Musezib half a measure of grain a day by way of hire. The money, which is for a ship for the bridge, has been given to Sisku.” This contract is also dated in the twenty-sixth year of Darius.

A letter written in the time of Khammurabi, or Amraphel, throws some light on the profits that were made by conveying passengers. There were ships which conveyed foreign merchants to Babylon if they were furnished with passports allowing them to travel and trade in the dominions of the Babylonian King. They took their goods and commodities along with them; on one occasion, we are told, the boat in which some of them travelled had been used for the conveyance of 10 talents of lead. It must, therefore, have been of considerable size and draught.

That the army and navy should have been recruited from abroad was in accordance with that spirit of liberality toward the foreigner which had distinguished the Babylonians from an early period. It was partly due to the mixed character of the race, partly to the early foundation of an empire which embraced the greater portion of Western Asia, partly, and more especially, to the commercial instincts of the people. We find among them none of that jealous exclusiveness which characterized most of the nations of antiquity. They were ready to receive into their midst both the foreigner and his gods. Among Assyrian and Babylonian officials we meet with many who bear foreign names, and among the gods whose statues found a place in the national temples of Assyria were Khaldis of Armenia, and the divinities of the Bedâwin. The policy of deporting a conquered nation was dictated by the same readiness to admit the stranger to the rights and privileges of a home-born native. The restrictions placed upon Babylonian and Assyrian citizenship seem to have been but slight.

When Abraham was born at Ur of the Chaldees, Babylonia was governed by a dynasty of South Arabian origin whose names had to be translated into the Babylonian language. Throughout the country there were colonies of “Amorites,” from Syria and Canaan, doubtless established there for the purposes of trade, who enjoyed the same rights as the native Babylonians. They could hold and bequeath land and other property, could buy and sell freely, could act as witnesses in a case where natives alone were concerned, and could claim the full protection of Babylonian law.

One of these colonies, known as “the district of the Amorites,” was just outside the walls of Sippara. In the reign of Ammi-zadok, the fourth successor of Khammurabi, a dispute arose about the title to some land included within it, and the matter was tried before the four royal judges. The following record of the judgment was drawn up by the clerk of the court: “Twenty acres by thirteen of land in the district of the Amorites which was purchased by Ibni-Hadad, the merchant. Arad-Sin, the son of Edirum, has pleaded as follows before the judges: The building land, along with the house of my father, he did not buy; Ibku-Anunit and Dhab-Istar, the sons of Samas-nazir, sold (it) for money to Ibni-Hadad, the merchant. Iddatum and Mazitum, the sons of Ibni-Hadad the merchant, appeared before the judges; they lifted up (their hands) and swore that it had been put up for sale; it had been bought by Edirum and Sin-nadni-sû who handed it over to Samas-nazir and Ibku-Anunit, selling it to them for money. The estate, consisting of twenty-two acres of land enclosed by thirty other acres, as well as eleven trees [and] a house, in the district of the Amorites, bounded at the upper end by the estate of ——, and at the lower end by the river Bukai (?), is contracted in width, and is of the aforesaid nature. Judgment has been given for Arad-Sin, the son of Edirum, as follows: At the entrance to Sippara the property is situated (?), and after being put up for sale was bought by Samas-nazir and Ibku-Anunit, to whom it was handed over; power of redemption is allowed (?) to Arad-Sin; the estate is there, let him take it. Before Uruki-mansum the judge, Sin-ismeani the judge, Ibku-Anunit the judge, and Ibku-ilisu the judge. The 6th day of the month Tammuz, the year when Ammi-zadok the king constructed the very great aqueduct (?) for the mountain and its fountain (?) for the house of Life.”

If we may argue from the names, Arad-Sin, who brought the action, was of Babylonian descent; and in this case native Babylonians as well as foreigners could hold land in the district in which the Amorites had settled. At any rate, in the eyes of the law, the native and the foreign settler must have been upon an equal footing; they were tried before the same judges, and the law which applied to the one applied equally to the other. It is clear, moreover, that the foreigner had as much right as the native to buy, sell, or bequeath the soil of Babylonia.

Whether or not this right was restricted to particular districts, we do not know. In Syria, in later days, “streets,” or rows of shops in a city, could be assigned to the members of another nationality by special treaty, as we learn from I Kings xx. 34, and at the end of the Egyptian eighteenth dynasty we hear of a quarter at Memphis being given to a colony of Hittite merchants, but such special assignments of land may not have been the custom in ancient Chaldea. The Amorites of Canaan may have been allowed to settle wherever they liked, and the origin of the title “district of the Amorites” may have simply been due to the tendency of foreign settlers to establish themselves in the same locality. The fact that Arad-Sin seems to have been a Babylonian, and that his action was brought before Babylonian judges, is in favor of the view that such was the case.

Moreover, as Mr. Pinches has pointed out, Amorites could rise to the highest offices of state. Not only could they serve as witnesses to a deed, to which all the other parties were native Babylonians, they could also hold civil and military appointments. On the one hand we find the son of Abi-ramu, or Abram, who is described as “the father of the Amorite,” acting as a witness to a contract dated in the reign of the grandfather of Khammurabi, or Amraphel; on the other hand, “an Amorite” has the same title of “servant” of the King as the royal judge Ibku-Anunit, and among the Assyrians of the second empire, who were slavish imitators of Babylonian custom and law, we meet with more than one example of a foreigner in the service of the Assyrian government. Thus, in the reign of Sargon, thirteen years after the fall of Samaria, the Israelites, Pekah and Nadabiah, who appear as witnesses to the sale of some slaves, are described, the one as “the governor of the city,” the other as a departmental secretary. The founder, again, of one of the leading commercial families at Babylon under Nebuchadnezzar and his successors is entitled “the Egyptian,” and the clerk who draws up a contract in the first year of Cambyses is the grandson of a Jew, Bel-Yahu, “Bel is Yahveh,” while his father’s name, Ae-nahid, “Ae is exalted,” implies that the Israelitish Yahveh had been identified with the Babylonian Ae. Hebrew and Canaanite names appear in legal and commercial documents of the age of Khammurabi and earlier by the side of names of purely native stamp; Jacob-el and Joseph-el, for instance, Abdiel and Ishmael, come before us with all the rights and privileges of Babylonian citizens. The name of Ishmael, indeed, is already met with on a marble slab from Sippara, which is as early as about 4,000 B.C. In the time of Sargon of Akkad the Babylonian “governor” of Syria and Canaan bears the Canaanitish name of Uru-Malik, or Urimelech, and under the later Assyrian empire, the “tartan” of Comagene, with the Hittite name of Mar-lara, was an eponym, who gave his name to the year.

Mr. Pinches is probably right in seeing the name “Israel” itself in that of a high-priest who lived in the district of the Amorites outside Sippara in the reign of Ammi-zadok. His name is written Sar-ilu, and it was by his order that nine acres of ground “in the district of the Amorites” were leased for a year from two nuns, who were devotees of the Sun-god, and their nieces. Six measures of grain on every ten acres were to be paid to the Sun-god at the gate of Malgia, the women themselves receiving a shekel of silver as rent, and the field was to be handed back to them at harvest-time, the end of the agricultural year. That the women in the Amorite settlements enjoyed the same freedom and powers as the women of Babylonia is shown by two documents, one dated in the reign of the second King of the dynasty to which Khammurabi belonged, the other in the reign of Khammurabi’s great-grandfather. In the first, Kuryatum, the daughter of an Amorite, receives a field of more than four acres of which she had been wrongfully deprived; in the second, the same Kuryatum and her brother Sumu-rah are sued by the three children of an Amorite, one of whom is a woman, for the recovery of a field, house, slaves, and date-palms. The case was brought before “the judges of Bit-Samas,” “the Temple of the (Babylonian) Sun-god,” who rejected the claim.

At a very early period of Babylonian history the Syrian god Hadad, or Rimmon, had been, as it were, domesticated in Babylonia, where he was known as Amurru, “the Amorite.” He had come with the Amorite merchants and settlers, and was naturally their patron-deity. His wife, Asratu, or Asherah, was called, by the Sumerians, Nin-Marki, “the mistress of the Amorite land,” and was identified with their own Gubarra. Nin-Marki, or Asherah, presided over the Syrian settlements, the part of the city where the foreigners resided being under her protection like the gate which led to “the district of the Amorites” beyond the walls. The following lawsuit which came before the courts in the reign of Khammurabi shows that there were special judges for cases in which Amorites were concerned and that they sat at “the gate of Nin-Marki.” “Concerning the garden of Sin-magir which Nahid-Amurri bought for money. Ilu-bani claimed it for the royal stables, and accordingly they went to the judges, and the judges sent them to the gate of Nin-Marki and the judges of the gate of Nin-Marki. In the gate of Nin-Marki Ilu-bani pleaded as follows: I am the son of Sin-magir; he adopted me as his son, and the seal of the document has never been broken. He further pleaded that ever since the reign of the deified Rim-Sin (Arioch) the garden and house had been adjudged to Ilu-bani. Then came Sin-mubalidh and claimed the garden of Ilu-bani, and they went to the judges and the judges pronounced that 'to us and the elders they have been sent and in the gate of the gods Merodach, Sussa, Nannar, Khusa, and Nin-Marki, the daughter of Merodach, in the judgment-hall, the disputants (?) have stood, and the elders before whom Nahid-Amurri first appeared in the gate of Nin-Marki have heard the declaration of Ilu-bani.' Accordingly they adjudged the garden and house to Ilu-bani, forbidding Sin-mubalidh to return and claim it. Oaths have been taken in the name of the Moon-god, the Sun-god, Merodach, and Khammurabi, the king. Before Sin-imguranni the president, Edilka-Sin, Amil-izzitim, Ubarrum, Zanbil-arad-Sin, Ak-hiya, Kabdu-gumi, Samas-bani, the son of Abia-rak-has, Zanik-pisu, Izkur-Ea the steward, and Bauila. The seals of the parties are attached. The fourth day of Tammuz, the year when Khammurabi the king offered up prayer to Tasmit."

While a portion of the land was thus owned by foreigners, there was a considerable part of it which belonged to the temples. Another part consisted of royal domains, the revenue of which went to the privy purse of the King. The King could make grants of this to his favorites, or as a reward for services to the state. The Babylonian King Nebo-baladan, for example, gave one of his officials a field large enough, it was calculated, to be sown with 3 _gur_ of seed, and Assur-bani-pal of Assyria made his vizier, Nebo-sar-uzur, the gift of a considerable estate on account of his loyalty from the time that the King was a boy. All the vizier's lands, including the serfs upon them, were declared free from taxation and every kind of burden, the men upon them were not to be impressed as soldiers, nor the cattle and flocks to be carried away. It was also ordered that Nebo-sar-uzur, on his decease, should be buried where he chose, and not in the common cemetery outside the walls of the city. Like the monarch, he might have his tomb in the royal palace or in his own house, and imprecations were called down on the head of anyone who wished to disturb his final resting-place. The deed of gift and privilege was sealed, we are told, with the King's own "signet-ring."

A grant of immunity from taxation and other burdens could be made to the inhabitants of a whole district. A deed exists, signed by a large number of witnesses, in which Nebuchadnezzar I. of Babylon (about 1200 B.C.) makes a grant of the kind to the district of Bit-Karziyabku in the mountains of Namri to the east of Babylonia. We read in it that, throughout the whole district, neither the royal messengers nor the governor of Namri shall have any jurisdiction, no horses, foals, mares, asses, oxen, or sheep shall be carried off by the tax-gatherers, no stallions shall be sent to the royal stables, and no taxes of grain and fruit shall be paid to the Babylonian treasury. Nor shall any of the inhabitants be impressed for military service. It speaks volumes for the commercial spirit of the Babylonians that a royal decree of this character should have been thrown into legal form, and that the names of witnesses should have been attached to it, just as if it had been a contract between two private persons. The contrast is striking with the decree issued by the Assyrian King, Assur-bani-pal, to his faithful servant Nebo-sar-uzur. All that was needed where the King of Assyria was concerned was his signet-seal and royal command. But Assur-bani-pal was an autocrat at the head of a military state. The Babylonian sovereign governed a commercial community and owed his authority to the priests of Bel.

CHAPTER IX. THE LAW

Babylonian law was of early growth. Among the oldest records of the country are legal cases, abstracts of which have been transcribed for future use. The first law-book, in fact, was ascribed to Ea, the god of culture, and it was told how he had enacted that the King should deal uprightly and administer justice to his people. "If he regard not justice," it was said, "Ea, the god of destiny, shall change his fortune and replace him by another.… But if he have regard to the injunction of Ea, the great gods shall establish him in wisdom and the knowledge of righteousness."

The Ea of the cuneiform text seems to be the Oannes of the Chaldean historian Berossos, who was said to have risen out of the waters of the Persian Gulf, bringing with him the elements of civilization and the code of laws which were henceforth to prevail in Babylonia. The code of Oannes has perished, but fragments of another and more historical one have been preserved to us in a reading-book which was intended to teach the Semitic pupil the ancient language of the Sumerians. The original Sumerian text is given with its Semitic equivalent, as well as a list of technical legal terms. "If a son," it is said, "denies his father, his hair shall be cut, he shall be put into chains and sold for silver. If he denies his mother, his hair also shall be cut, city and land shall collect together and put him in prison.… If the wife hates her husband and denies him, they shall throw her into the river. If the husband divorces his wife, he must pay her fifty shekels of silver. If a man hires a servant, and kills, wounds, beats, or ill-uses him or makes him ill, he must with his own hand measure out for him each day half a measure of grain."

We have already seen that the last regulation was in force up to the latest period of Babylonian history. It betrays a humane spirit in the early legislation and shows that the slave was regarded as something more than a mere chattel. It provided against his being over-worked; as soon as the slave was rendered unfit for labor by his hirer's fault, the latter was fined, and the fine was exacted as long as the slave continued ill or maimed. The law which pronounced sentence of death by drowning upon the unfaithful wife was observed as late as the age of Khammurabi. Such at least is the evidence of some curious documents, from which we learn that a certain Arad-Samas married first a daughter of Uttatu and subsequently a half-sister of his wife. In the contract of marriage it is stipulated that unfaithfulness to the husband on the part of both the wives would be punished with drowning, on the part of the second only with slavery. On the other hand he could divorce them on payment of a maneh of silver—that is to say, of 30 shekels apiece. Under Nebuchadnezzar the old power of putting the wife to death in case of adultery was still possessed by the husband, where the wife was of lower rank than himself and little better than a concubine. It was a survival of the _patria potestas_ which had once belonged to him. The wife who came from a wealthy and respectable family, however, stood on a footing of equality with her husband, and he could not venture to put in force against her the provisions of the ancient Sumerian law.

Babylonian law resembled that of England in being founded upon precedents. The code which was supposed to have been revealed by Ea, or Oannes, belonged to the infancy of Chaldean society and contained only a rudimentary system of legislation. The actual law of the country was a complicated structure which had been slowly built up by the labors of generations. An abstract was made of every important case that came before the judges and of the decision given in regard to it; these abstracts were carefully preserved, and formed the basis of future judgments.

The judges before whom the cases were brought were appointed by the King, and acted in his place. They sat under a president, and were usually four or five in number. They had to sign their names at the end of their judgments, after which the date of the document was added. It is probable that they went on circuit like Samuel in Israel and the "royal judges" of Persia.

Where foreigners were involved the case was first tried before special judges, who probably belonged to the same nationality as the parties to the suit; if one of the latter, however, was a Babylonian it was afterward brought again before a native tribunal. Sometimes in such cases the primitive custom was retained of allowing "the elders" of the city to sit along with the judges and pronounce upon the question in dispute. They thus represented to a certain extent an English jury. Whether they appeared in cases in which Babylonians alone were engaged is doubtful. We hear of them only where one at least of the litigants is an Amorite from Canaan, and it is therefore possible that their appearance was a concession to Syrian custom. In Babylonia they had long been superseded by the judges, the royal power having been greater there from the outset than in the more democratic West, and consequently there would have been but little need for their services. If, however, the foreign settlers had been accustomed at home to have their disputes determined by a council of elders, we can understand why they were still allowed in Babylonia to plead before a similar tribunal, though it could do little more than second the decisions of the judges.

Plaintiff and defendant pleaded their own causes, which were drawn up in legal form by the clerks of the court. Witnesses were called and examined and oaths were taken in the names of the gods and of the King.

The King, it must be remembered, was in earlier times himself a god. In later days the oaths were usually dropped, and the evidence alone considered sufficient. Perhaps experience had taught the bench that perjury was not a preventable crime.

Each case was tried by a select number of judges, who were especially appointed to inquire into it, as we may gather from a document dated at Babylon the 6th day of Nisan in the seventeenth year of Nebuchadnezzar. "[These are] the judges," it runs, "before whom Sapik-zeri, the son of Zirutu, [and] Baladhu, the son of Nasikatum, the servant of the secretary of the Marshlands, have appeared in their suit regarding a house. The house and deed had been duly sealed by Zirutu, the father of Sapik-zeri, and given to Baladhu. Baladhu, however, had come to terms with Sapik-zeri and handed the house over to him and had taken the deed (from the record-office) and had given it to Sapik-zeri. Nebo-edher-napisti, the prefect of the Marshlands; Nebo-suzzizanni, the sub-prefect of the Marshlands; Merodach-erba, the mayor of Erech; Imbi-ilu, the priest of Ur, Bel-yuballidh, the son of Merodach-sum-ibni, the prefect of the western bank; Abtâ, the son of Suzubu, the son of Babutu; Musezib-Bel, the son of Nadin-akhi, the son of the adopted one; Baniya, the son of Abtâ, the priest of the temple of Sadu-rabu; and Sa-mas-ibni, the priest of Sadu-rabu." The list of judges shows that the civil governors could act as judges and that the priests were also eligible for the post. Neither the one class nor the other, however, is usually named, and we must conclude, therefore, that, though the governor of a province or the mayor of a town had a right to sit on the judicial bench, he did not often avail himself of it.

The charge was drawn up in the technical form and attested by witnesses before it was presented to the court. We have an example of this dated at Sippara, the 28th day of Adar in the eighth year of Cyrus as King of Babylon: "Nebo-akhi-bullidh, the son of Su—, the governor of Sakhrin, on the 28th of Adar, the eighth year of Cyrus, king of Babylon and of the world, has brought the following charge against Bel-yuballidh, the priest of Sippara: I have taken Nanâ-iddin, son of Bau-eres, into my house because I am your father's brother and the governor of the city. Why, then, have you lifted up your hand against me? Rimmon-sar-uzur, the son of Nebo-yusezib; Nargiya and Erba, his brothers; Kutkah-ilu, the son of Bau-eres; Bel-yuballidh, the son of Barachiel; Bel-akhi-uzur, the son of Rimmon-yusallim; and Iqisa-abbu, the son of Samas-sar-uzur, have committed a crime by breaking through my door, entering into my house, and leaving it again after carrying away a maneh of silver." Then come the names of five witnesses and the clerk.

A suit might be compromised by the litigants before it came into court. In the reign of Nebuchadnezzar a certain Imliya brought witnesses to the door of the house of an official called Bel-iddin, and accused Arrali, the superintendent of the works, of having stolen an overcoat and a loin-cloth belonging to himself. But it was agreed that there would be no need on the part of the plaintiff to summon witnesses; the stolen goods were returned without recourse to the law.

The care taken not to convict without sufficient evidence, and the thoroughness with which each case was investigated, is one of the most striking features in the records of the Babylonian lawsuits which have come down to us. Mention has already been made of the case of the runaway slave Barachiel, who pretended to be a free citizen and the adopted son of a Babylonian gentleman. Every effort seems to have been made to get at the truth, and some of the higher officials were associated with the judges before whom the matter was brought. Eventually cross-examination compelled Barachiel to confess the actual facts. It is noticeable that no torture was used to compel confession, even though the defendant was not a free citizen. No allusion, in fact, is ever made to torture, whether by the bastinado or otherwise; the evidence of witnesses and the results of cross-examination are alone depended upon for arriving at the truth. In this respect the legal procedure of Babylonia offers an honorable contrast to that of ancient Greece or Rome, or even of Europe down to the middle of the last century.

Two cases which were pleaded before the courts in the reign of Nabonidos illustrate the carefulness with which the evidence was examined. One of them was a case of false witness. Beli-litu, the daughter of Bel-yusezib, the wine merchant (?), "gave the following testimony before the judges of Nabonidos, king of Babylon: In the month Ab, the first year of Nergal-sharezer, king of Babylon, I sold my slave Bazuzu for thirty-five shekels of silver to Nebo-akhi-iddin, the son of Sula of the family of Egibi, but he now asserts that I owed him a debt and so has not paid me the money. The judges heard the charge, and caused Nebo-akhi-iddin to be summoned and to appear before them. Nebo-akhi-iddin produced the contract which he had made with Beli-litu; he proved that she had received the money, and convinced the judges. And Ziriya, Nebo-suma-lisir, and Edillu gave further testimony before the judges that Beli-litu, their mother, had received the silver." The judges deliberated and condemned Beli-litu to a fine of 55 shekels, the highest fine that could be inflicted on her, and then gave it to Nebo-akhi-iddin. It is possible that the prejudice which has always existed against the money-lender may have encouraged Beli-litu to commit her act of dishonesty and perjury. That the judges should have handed over the fine to the defendant, instead of paying it to the court or putting it into their own pockets, is somewhat remarkable in the history of law.

The second case is that of some Syrians who had settled in Babylonia and there been naturalized. The official abstract of it is as follows: "Bunanitum, the daughter of the Kharisian, brought the following complaint before the judges of Nabonidos, king of Babylon: Ben-Hadad-nathan, the son of Nikbaduh, married me and received three and one-half manehs of silver as my dowry, and I bore him a daughter. I and Ben-Hadad-nathan, my husband, traded with the money of my dowry, and we bought together a house standing on eight roods of ground, in the district on the west side of the Euphrates in the suburb of Borsippa, for nine and one-third manehs of silver, as well as an additional two and one-half manehs, which we received on loan without interest from Iddin-Merodach, the son of Iqisa-ablu, the son of Nur-Sin, and we invested it all in this house. In the fourth year of Nabonidos, king of Babylon, I claimed my dowry from my husband Ben-Hadad-nathan, and he of his own free will gave me, under deed and seal, the house in Borsippa and the eight roods on which it stood, and assigned it to me for ever, stating in the deed he gave me that the two and one-half manehs which Ben-Hadad-nathan and Bunanitum had received from Iddin-Merodach and laid out in buying this house had been their joint property. This deed he sealed and called down in it the curse of the great gods (upon whoever should violate it). In the fifth year of Nabonidos, king of Babylon, I and my husband, Ben-Hadad-nathan, adopted Ben-Hadad-amara as our son and subscribed to the deed of adoption, and at the same time we assigned two manehs ten shekels of silver and the furniture of the house as a dowry for my daughter Nubtâ. My husband died, and now Aqabi-ilu (Jacob-el), the son of my father-in-law, has raised a claim to the house and property which was willed and assigned to me, as well as (a claim) to Nebo-nur-ilani, whom we bought for money through the agency of Nebo-akhi-iddin.

"I have brought him before you; pass judgment. The judges heard their pleas; they read the deeds and contracts which Bunanitum produced in court, and disallowed the claim of Aqabi-ilu to the house in Borsippa, which had been assigned to Bunanitum in lieu of her dowry, as well as to Nebo-nur-ilani, whom she and her husband had bought, and to the rest of the property of Ben-Hadad-nathan; they confirmed Bunanitum and Ben-Hadad-amara in their titles. (It was further added that) Iddin-Merodach should receive in full the sum of two and one-half manehs which he had given toward the purchase of the house, and that then Bunanitum should take in full three and one-half manehs, the amount of her dowry, and that part of the property (which had not been bequeathed to Nubtâ). Nebo-nur-ilani was to be given to Nubtâ in accordance with the will of her father. The following judges were present at the delivery of this judgment: Nergal-banunu the judge, the son of the architect; Nebo-akhi-iddin the judge, the son of Egibi; Nebo-sum-ukin the judge, the son of Irani; Bel-akhi-iddin the judge, the son of ——; Nebo-balasu-iqbi the judge, the son of ——; and the clerks Nadin and Nebo-sum-iskun. Babylon, the 29th day of Elul, the ninth year of Nabonidos, king of Babylon."

The term used in reference to the loan made by Iddin-Merodach implies that the lender accepted a share in the property that was bought instead of demanding interest for his money. Hence it was that, when the estate came to be settled after the death of Ben-Hadad-nathan, it was necessary to pay him off. What the grounds were upon which Aqabi-ilu laid claim to the property we are not told, and the _dossier_ in which it was set forth has not been found. His name, however, is interesting, as it proves that the old Western Semitic name of Jacob-el, of which the Biblical Jacob is a shortened form, still survived in a slightly changed shape among the Syrian settlers in Babylonia. Indeed, Iqubu, or Jacob itself, is found in a contract of the tenth year of Nabonidos as the name of a coppersmith at Babylon. Two thousand years before there had been other Semitic settlers in Babylonia from Western Asia who had also taken part in the legal transactions of the country, and among whom the name of Ya'qub-ilu was known. The name had even spread to the Assyrian colonists near Kaisariyeh, in Cappadocia, who have left us inscriptions in uniform characters, and among them it appears as Iqib-ilu. Iqib-ilu and Aqabi-ilu are alike kindred forms of Ya'qub-ilu (or Yaqub-ilu), the Jacob-el of Canaan.

Death, more especially with "an iron sword," was the punishment of the more serious offences; imprisonment and scourging of lighter ones. Imprisonment might be accompanied by chains or the stock, but the prisoner might also be left unfettered and be allowed to range freely through the court or cell of the prison. Whether the penalty of imprisonment with hard labor was ever inflicted is questionable; in a country where slavery existed and the _corvée_ was in force there would have been but little need for it.

The prisoner could be released on bail, his surety being responsible for his appearance when it was required. Thus in the seventh year of Cyrus one of the officials of the temple of the Sun-god at Sippara was put into "iron fetters" by the chief priest of the god, but was afterward released, bail being given for him by another official of the temple. The latter undertook to do the work of the prisoner if he absconded. The bail was offered and accepted before "the priests and elders of the city," and the registration of the fact was duly dated and attested by witnesses. At a later date a citizen of Nippur was allowed to become surety for the release of his nephew from prison on condition that the latter did not leave the city without permission. The prison is called _bit-karê_, or "House of Walls."(9)

There was another _bit-karê_, which had a very different meaning and was used for a very different purpose. This was "the House of Cereals," the storehouse or barn in which were stored such tithes of the temples as were paid in grain. The name is also sometimes applied to the _sutumme_, or royal storehouses, where the grain and dates collected by the tax-gatherers were deposited, and from which the army and the civil servants were provided with food. The superintendent of these storehouses was an important personage; he was the paymaster of the state officials, in so far as they received their salaries in kind, and the loyalty of the standing army could be trusted only so long as it could be fed. Similar storehouses existed in Egypt, from the age of the eighteenth dynasty downward, and it is probable that the adoption of them was due to Babylonian influence. They gave the King a powerful hold upon his subjects, by enabling him to supply them with grain in the years of scarcity, or to withhold it except upon such terms as he chose to make with them.

The exportation of the grain, moreover, was a yearly source of wealth and revenue which flowed into the royal exchequer. In Babylonia, as in Egypt, the controller of the granaries was master of the destinies of the people.

CHAPTER X. LETTER-WRITING

We are apt to look upon letter-writing as a modern invention, some of us, perhaps, as a modern plague. But as a matter of fact it is an invention almost as old as civilization itself. As soon as man began to invent characters by means of which he could communicate his thoughts to others, he began to use them for holding intercourse with his absent friends. They took the place of the oral message, which was neither so confidential nor so safe. Classical scholars have long been familiar with the fact that letter-writing was one of the accomplishments of an educated Greek and Roman. The letters of Cicero and Pliny are famous, and the letters of Plato and Aristotle have been studied by a select few. Even Homer, who seems to avoid all reference to the art of writing as if it were an unclean thing, tells us of "the baleful characters" written on folded tablets, and sent by Prœtos to the King of Lycia. Criticism, it is true, not so long ago doubted the facts of the story and tried to resolve the characters and the tablets into a child's drawings on the slate. But archæology has come to the rescue of Prœtos, and while we now know that letters passed freely backward and forward in the world in which he is supposed to have moved, Mr. Arthur Evans has discovered the very symbols which he is likely to have used. Even the Lycians, to whom the letter was sent, have been found, not only on the Egyptian monuments, but also in the tablets of Tel-el-Amarna.

Letter-writing in the East goes back to a remote antiquity. In the book of Chronicles it is stated that the messages that passed between Hiram and Solomon were in writing, but the age of Solomon was modern when compared with that to which some of the letters we now possess actually belong. Centuries earlier the words "message" and "letter" had become synonymous terms, and in Hebrew the word which had originally signified a "message" had come to mean a "book." Not only is a message conceived of as always written, but even the idea of a book is taken from that of a letter. Nothing can show more plainly the important place occupied by literary correspondence in the ancient Oriental world or the antiquity to which the art of the letter-writer reaches back.

While in Egypt the letter was usually written upon papyrus, in Western Asia the ordinary writing material was clay. Babylonia had been the nurse and mother of its culture, and the writing material of Babylonia was clay. Originally pictorial hieroglyphics had been drawn upon the clay, but just as in Egypt the hieratic or running-hand of the scribe developed out of the primitive pictographs, so too in Babylonia the pictures degenerated into cuneiform characters which corresponded with the hieratic characters of the Egyptian script. What we call cuneiform is essentially a cursive hand.

As for books, so also for letters the clay tablet was employed. It may seem to us indeed a somewhat cumbrous mode of sending a letter; but it had the advantage of being solid and less likely to be injured or destroyed than other writing materials. The characters upon it could not be obliterated by a shower of rain, and there was no danger of its being torn. Moreover, it must be remembered that the tablet was usually of small size. The cuneiform system of writing allows a large number of words to be compressed into a small space, and the writing is generally so minute as to try the eyes of the modern decipherer.

Some of the letters which have been discovered during the last few years go back to the early days of the Babylonian monarchy. Many of them are dated in the reign of Khammurabi, or Amraphel, among them being several that were written by the King himself. That we should possess the autograph letters of a contemporary of Abraham is one of the romances of historical science, for it must be remembered that the letters are not copies, but the original documents themselves. What would not classical scholars give for the autograph originals of the letters of Cicero, or theologians for the actual manuscripts that were written by the Evangelists? And yet here we have the private correspondence of a prince who took part in the campaign against Sodom and Gomorrah!

One of the letters which has found a resting-place in the Museum of Constantinople refers to another of the actors in the campaign against the cities of the cunei-plain. This was the King of Elam, Chedor-laomer, whose name is written Kudur-Loghghamar in the form. The Elamites had invaded Babylonia and made it subject and tributary. Sin-idinnam, the King of Larsa, called Ellasar in the book of Genesis, had been compelled to fly from his ancestral kingdom in the south of Chaldea, and take refuge in Babylon at the court of Khammurabi. Eri-Aku, or Arioch, the son of an Elamite prince, was placed on the throne of Larsa, while Khammurabi also had to acknowledge himself a vassal of the Elamite King. But a time came when Khammurabi believed himself strong enough to shake off the Elamite yoke, and though the war at first seemed to go against him, he ultimately succeeded in making himself independent. Arioch and his Elamite allies were driven from Larsa, and Babylon became the capital of a united monarchy. It was after the overthrow of the Elamites that the letter was written in which mention is made of Chedor-laomer. Its discoverer, Père Scheil, gives the following translation of it: "To Sin-idinnam, Khammurabi says: I send you as a present (the images of) the goddesses of the land of Emutalum as a reward for your valor on the day of (the defeat of) Chedor-laomer. If (the enemy) annoy you, destroy their forces with the troops at your disposal, and let the images be restored in safety to their old habitations."(10)

The letter was found at Senkereh, the ancient Larsa, where, doubtless, it had been treasured in the archive-chamber of the palace. Two other letters of Khammurabi, which are now at Constantinople, have also been translated by Dr. Scheil. One of them is as follows: "To Sin-idinnam, Khammurabi says: When you have seen this letter you will understand in regard to Amil-Samas and Nur-Nintu, the sons of Gis-dubba, that if they are in Larsa, or in the territory of Larsa, you will order them to be sent away, and that one of your servants, on whom you can depend, shall take them and bring them to Babylon." The second letter relates to some officials about whom, it would seem, the King of Larsa had complained to his suzerain lord: "To Sin-idinnam, Khammurabi says: As to the officials who have resisted you in the accomplishment of their work, do not impose upon them any additional task, but oblige them to do what they ought to have performed, and then remove them from the influence of him who has brought them."

Long before the age of Khammurabi a royal post had been established in Babylon for the conveyance of letters. Fragments of clay had been found at Tello, bearing the impressions of seals belonging to the officials of Sargon of Akkad and his successor, and addressed to the viceroy of Lagas, to King Naram-Sin and other personages. They were, in fact, the envelopes of letters and despatches which passed between Lagas and Agadê, or Akkad, the capital of the dynasty.

Sometimes, however, the clay fragment has the form of a ball, and must then have been attached by a string to the missive like the seals of mediæval deeds. In either case the seal of the functionary from whom the missive came was imprinted upon it as well as the address of the person for whom it was intended. Thousands of letters seem to have passed to and fro in this manner, making it clear that the postal service of Babylonia was already well organized in the time of Sargon and Naram-Sin. The Tel-el-Amarna letters show that in the fifteenth century before our era a similar postal service was established throughout the Eastern world, from the banks of the Euphrates to those of the Nile. To what an antiquity it reached back it is at present impossible to say.

At all events, when Khammurabi was King, letters were frequent and common among the educated classes of the population. Most of those which have been preserved are from private individuals to one another, and consequently, though they tell us nothing about the political events of the time, they illustrate the social life of the period and prove how like it was to our own. One of them, for instance, describes the writer's journey to Elam and Arrapakhitis, while another relates to a ferry-boat and the boat-house in which it was kept. The boat-house, we are told, had fallen into decay in the reign of Khammurabi, and was sadly in want of repair, while the chief duty of the writer, who seems to have been the captain of the boat, was to convey the merchants who brought various commodities to Babylon. If the merchant, the letter states, was furnished with a royal passport, "we carried him across" the river; if he had no passport, he was not allowed to go to Babylon. Among other purposes for which the vessel had been used was the conveyance of lead, and it was capable of taking as much as 10 talents of the metal. We further gather from the letter that it was the custom to employ Bedâwin as messengers.

Among the early Babylonian documents found at Sippara, and now in the Museum at Constantinople, which have been published by Dr. Scheil, are two private letters of the same age and similar character. The first is as follows: "To my father, thus says Zimri-eram: May the Sun-god and Merodach grant thee everlasting life! May your health be good! I write to ask you how you are; send me back news of your health. I am at present at Dur-Sin on the canal of Bit-Sikir. In the place where I am living there is nothing to be had for food. So I am sealing up and sending you three-quarters of a silver shekel. In return for the money, send some good fish and other provisions for me to eat." The second letter was despatched from Babylon, and runs thus: "To the lady Kasbeya thus says Gimil-Merodach: May the Sun-god and Merodach for my sake grant thee everlasting life! I am writing to enquire after your health; please send me news of it. I am living at Babylon, but have not seen you, which troubles me greatly. Send me news of your coming to me, so that I may be happy. Come in the month of Marchesvan (October). May you live for ever for my sake!"

It is plain that the writer was in love with his correspondent, and had grown impatient to see her again. Both belonged to what we should call the professional classes, and nothing can better illustrate how like in the matter of correspondence the age of Abraham was to our own. The old Babylonian's letter might easily have been written to-day, apart from the references to Merodach and the Sun-god. It must be noticed, moreover, that the lady to whom the letter is addressed is expected to reply to it. It is taken for granted that the ladies of Babylon could read and write as well as the men. This, however, is only what might have been concluded from the other facts of Babylonian social life, and the footing of equality with the man upon which the woman was placed in all matters of business. The fact that she could hold and bequeath property, and trade with it independently, implies that she was expected to know how to read and write. Even among the Tel-el-Amarna we find one or two from a lady who seems to have taken an active part in the politics of the day. "To the king my lord," she writes in one of them, "my gods, my Sun-god, thus says Nin, thy handmaid, the dust of thy feet. At the feet of the king my lord, my gods, my Sun-god, seven times seven I prostrate myself. Let the king my lord wrest his country from the hand of the Bedâwin, in order that they may not rob it. The city of Zaphon has been captured. This is for the information of the king my lord."

The letters of Tel-el-Amarna bridge over the gulf that separates the early Babylonia of Khammurabi from the later Assyria of Tiglath-pileser III. and his successors. The inner life of the intervening period is still known to us but imperfectly. No library or large collection of tablets belonging to it has as yet been discovered, and until this is the case we must remain less intimately acquainted with it than we are with the age of Khammurabi on the one hand, or that of the second Assyrian empire on the other.

It is true that the library of Nineveh, of which Assur-bani-pal was such a munificent patron, has preserved copies of some of the earlier epistolary literature of the country. Thus we have from it a fragment of a letter written by a King of Babylonia to two kings of Assyria, at a time when Assyria still acknowledged the supremacy of Babylon. But such documents are very rare, and apart from the Tel-el-Amarna tablets we have to descend to the days of the second Assyrian empire before we find again a collection of letters.

These are the letters addressed to the Assyrian government, or more generally to the King, in the reigns of Tiglath-pileser III., Shalmaneser IV., Sargon, Sennacherib, Esar-haddon, and Assur-bani-pal. They were preserved in the royal library of Nineveh, principally on account of their political and diplomatic importance, and are now in the British Museum. As might have been expected from their character, they throw more light on the politics of the day than on the social condition of the people. A few of them, however, are private communications to the King on other than political matters, and we also find among them reports in the form of letters from the royal astronomers, as well as upon such subjects as the importation of horses from Asia Minor for the royal stud. The letters have been copied by Professor R. F. Harper, who is now publishing them in a series of volumes. How numerous the letters are may be gathered from the fact that no less than 1,575 of them (including fragments) have come from that part of the library alone which was excavated by Sir A. H. Layard, and was the first to be brought to England.

Many of them are despatches from generals in the field or from the governors of frontier towns who write to inform the Assyrian government of the movements of the enemy or of the political events in their own neighborhood. It is from these letters, for example, that we learn the name of the King of Ararat who was the antagonist of Sennacherib and the predecessor of the King Erimenas, to whom his murderers fled for protection. The details, again, of the long Elamite war, which eventually laid Susa at the feet of Assyria, have been given us by them. It is needless, therefore, to insist upon the value they possess for the historian.

Among them, however, as has been already said, are some of a more private character. Here, for instance, is one which reminds us that human nature is much the same in all ages of the world: "To the king my lord, thy servant, Saul-miti-yuballidh: Salutation to the king my lord; may Nebo and Merodach for ever and ever be gracious to the king my lord. Bau-gamilat, the handmaid of the king, is constantly ill; she cannot eat a morsel of food; let the king send orders that some physician may go and see her." In another letter the writer expresses his gratitude to the King for his kindness in sending him his own doctor, who had cured him of a serious disease. "May Istar of Erech," he says, "and Nana (of Bit-Ana) grant long life to the king my lord, for he sent Basa the physician of the king my lord to save my life and he has cured me; therefore may the great gods of heaven and earth be gracious to the king my lord, and may they establish the throne of the king my lord in heaven for ever; since I was dead, and the king has restored me to life." In fact there are a good many letters which relate to medical matters. Thus Dr. Johnston gives the following translation of a letter from a certain Arad-Nana, who seems to have been a consulting physician, to Esar-haddon about a friend of the prince who had suffered from violent bleeding of the nose: "As regards the patient who has a bleeding from the nose, the Rab-Mag (or chief physician) reports: 'Yesterday, toward evening, there was a good deal of hæmorrhage.' The dressings have not been properly applied. They have been placed outside the nostrils, oppressing the breathing and coming off when there is hæmorrhage. Let them be put inside the nostrils and then the air will be excluded and the hæmorrhage stopped. If it is agreeable to my lord the king I will go to-morrow and give instructions; (meanwhile) let me know how the patient is." Another letter from Arad-Nana translated by the same Assyriologist is as follows: "To the king my lord, thy servant Arad-Nana: May there be peace for ever and ever to the king my lord. May Ninip and Gula grant health of soul and body to the king my lord. All is going on well with the poor fellow whose eyes are diseased. I had applied a dressing covering the face. Yesterday, toward evening, undoing the bandage which held it (in place), I removed the dressing. There was pus upon the dressing, the size of the tip of the little finger. If any of your gods set his hand thereto, let him say so. Salutation for ever! Let the heart of the king my lord be rejoiced. Within seven or eight days the patient will recover."

The doctors were not alone in writing to the Assyrian King. Besides the reports which they were bound to make, the astronomers also sent letters to him on the results of their observations. Among the letters published by Professor Harper is an interesting one—unfortunately defaced and imperfect—which was sent to Nineveh from one of the observatories in Babylonia. After the ordinary compliments the writer, Abil-Istar, says: "As for the eclipse of the moon about which the king my lord has written to me, a watch was kept for it in the cities of Akkad, Borsippa, and Nippur. We observed it ourselves in the city of Akkad." Abil-Istar then goes on to describe the progress of the eclipse, but the lines are so broken as to be untranslatable, and when the text becomes perfect again we find him saying that he had written an exact report of the whole occurrence and sent it in a letter to the King. "And whereas the king my lord ordered me to observe also the eclipse of the sun, I watched to see whether it took place or not, and what passed before my eyes I now report to the king my lord. It was an eclipse of the moon that took place.… It was total over Syria and the shadow fell on the land of the Amorites, the land of the Hittites, and in part on the land of the Chaldees." We gather from this letter that there were no less than three observatories in Northern Babylonia: one at Akkad, near Sippara; one at Nippur, now Niffer; and one at Borsippa, within sight of Babylon. As Borsippa possessed a university, it was natural that one of the three observatories should be established there.

As nothing is said about the eclipse of the sun which the astronomers at the Assyrian court had led the King to expect, it is probable that it did not take place, or at all events that it did not occur so soon as was anticipated. The expression "the land of the Amorites (and) the land of the Hittites" is noteworthy on account of its biblical ring; in the mind of the Assyrian, however, it merely denoted Palestine and Northern Syria. The Babylonians at an early age called Palestine "the land of the Amorites," the Assyrians termed it "the land of the Hittites," and it would appear that in the days of the second Assyrian empire, when Babylonia had become a province of its Assyrian rival, the two names were combined together in order to denote what we should entitle "Syria."

Letters, however, were written to the King by all sorts of people, and upon all sorts of business. Thus we find Assur-bani, the captain of a river-barge, writing about the conveyance of some of those figures of colossal bulls which adorned the entrance to the palace of Sennacherib. The letter is short and to the point: "To the king my lord, thy servant Assur-bani: Salutation to the king my lord. Assur-mukin has ordered me to transport in boats the colossal bulls and cherubim of stone. The boats are not strong enough, and are not ready. But if a present be kindly made to us, we will see that they _are_ got ready and ascend the river." The unblushing way in which _bakshish_ is here demanded shows that in this respect, at all events, the East has changed but little.

Of quite a different character is a letter about some wine that was sent to the royal cellars. The writer says in it: "As for the wine about which the king my lord has written to me, there are two homers of it for keeping, as well as plenty of the best oil." Later on, in the same letter, reference is made to a _targu-manu,_ or "dragoman," who was sent along with the wine, which probably came from the Armenian highlands. It may be noted that in another letter mention is made of a "master of languages," who was employed in deciphering the despatches from Ararat.

A letter from the cellarers of the palace has been translated as follows by Dr. Johnston: "To the king our lord, thy servants … Bel-iqisa and Babi-lû: Salutation to the king our lord! May Assur, … Bel, and Nebo grant long life and everlasting years to the king our lord! Let the king our lord know that the wine received during the month Tebet has been bottled, but that there is no room for it, so we must make (new) cellars for the king our lord. Let the king our lord give orders that a (place for) the cellars be shown to us, and we shall be relieved from our embarrassment (?). The wine that has come for the king our lord is very considerable. Where shall we put it?"

A good deal of the correspondence relates to the importation of horses from Eastern Asia Minor for the stables of the Assyrian King. The following is a specimen of what they are like: "To the king my lord, thy servant Nebo-sum-iddin: Salutation to the king my lord; for ever and ever may Nebo and Merodach be gracious to the king my lord. Thirteen horses from the land of Kusa, 3 foals from the land of Kusa—in all 16 draught-horses; 14 stallions; altogether 30 horses and 9 mules—in all 39 from the city of Qornê: 6 horses from the land of Kusa; 3 foals from Kusa—in all 9 draught-horses; 14 stallions; altogether 23 horses and 9 mules—in all 28 from the city of Dâna (Tyana): 19 horses of Kusa and 39 stallions—altogether 57 from the city of Kullania (Calneh); 25 stallions and 6 mules—in all 31 from the city of Arpad. All are gelded. Thirteen stallions and 10 mules—altogether 23 from the city of Isana. In all 54 horses from Kusa and 104 stallions, making 148 horses and 30 mules—altogether 177 have been imported. (Dated) the second day of Sivan."

The land of Kusa is elsewhere associated with the land of Mesa, which must also have lain to the north-west of Syria among the valleys of the Taurus. Kullania, which is mentioned as a city of Kusa, is the Calneh of the Old Testament, which Isaiah couples with Carchemish, and of which Amos says that it lay on the road to Hamath. The whole of this country, including the plains of Cilicia, has always been famous for horse-breeding, and one of the letters to the Assyrian King specially mentions Melid, the modern Malatiyeh, as exporting them to Nineveh.

Here the writer, after stating that he had "inscribed in a register the number of horses" that had just arrived from Arrapakhitis, goes on to say: "What are the orders of the king about the horses which have arrived this very day before the king? Shall they be stabled in the garden-palace, or shall they be put out to grass? Let the king my lord send word whether they shall be put out to grass or whether they are to be stabled?"

As is natural, several of the letters are upon religious matters. Among those which have been translated by Dr. Johnston there is one which throws light on the religious processions which were held in honor of the gods. "To the son of the king my lord, thy servant Nebo-sum-iddina: salutation to the son of the king my lord for ever and ever! May Nebo and Merodach be gracious unto the son of the king my lord! On the third day of the month Iyyar the city of Calah will consecrate the couch of Nebo, and the god will enter the bed-chamber. On the fourth day Nebo will return. The son of the king my lord has (now) received the news. I am the governor of the temple of Nebo thy god, and will (therefore) go. At Calah the God will come forth from the interior of the palace, (and) from the interior of the palace will go to the grove. A sacrifice will be offered. The charioteer of the gods will go from the stable of the gods, will take the god out of it, will carry him in procession and bring him back. This is the course of the procession. Of the vase-bearers, whoever has a sacrifice to make will offer it. Whoever offers up one _qa_ of his food may enter the temple of Nebo. May the offerers fully accomplish the ordinances of the gods, to the life and health of the son of the king my lord. What (commands) has the son of the king my lord to send me? May Bel and Nebo, who granted help in the month Sebat, protect the life of the son of the king my lord, and cause thy sovereignty to continue to the end of time!"

There is another letter in which, if Dr. Johnston's rendering is correct, reference is made to the inscriptions that were written on the walls of the temples like the texts which the book of Deuteronomy orders to be inscribed on the door-posts and gates (Deut. vi. 9, and xi. 20). "To the king my lord, thy servant Istar-Turi: salutation to the king my lord! I am sending Nebo-sum-iddina and Nebo-erba, the physicians of whom I spoke to the king, [with] my messenger to the presence of the king my lord. Let them be admitted to the presence of the king my lord; let the king my lord converse with them. I have not disclosed to them the real facts, and tell them nothing. As the king my lord commands, so is it done. Samas-bel-utsur sends word from the city of Der that 'there are no inscriptions which we can place on the walls of the Beth-el.' I send accordingly to the king my lord in order that an inscription may be written and despatched, (and) that the rest may be soon written and placed on the walls of the Beth-el. There has been a great deal of rain, (but) the harvest is gathered. May the heart of the king my lord rejoice!"

While the letters which have been found on the site of Nineveh come from the royal archives and are therefore with few exceptions addressed to the King, those which have been discovered in Babylonia have more usually been sent by one private individual to another. They represent for the most part the private correspondence of the country, and prove how widely education must have been diffused there. Most of them, moreover, belong to the age of Khammurabi or that of the kings of Ur who preceded the dynasty to which he belonged, and thus cast an unexpected light on the life of the Babylonian community in the times of Abraham. Here, for example, is one that was written by a tenant to his landlord: "To my lord says Ibgatum, your servant. As, my lord, you have heard, an enemy has carried away my oxen. Though I never before wrote to you, my lord, now I send this letter (_literally_ tablet). O my lord, send me a cow! I will lie up five shekels of silver and send them to my lord, even to you. O my lord, by the command of Merodach you determine whatever place you prefer (to be in); no one can hinder you, my lord. O my lord, as I will send you by night the five shekels of silver which I am tying up, so do you put them away at night. O my lord, grant my request and do glorify my head, and in the sight of my brethren my head shall not be humbled. As to what I send you, O my lord, my lord will not be angry (?). I am your servant; your wishes, O my lord, I have performed superabundantly; therefore entrust me with the cow which you, my lord, shall send, and in the town of Uru-Batsu your name, O my lord, shall be celebrated for ever. If you, my lord, will grant me this favor, send [the cow] with Ili-ikisam my brother, and let it come, and I will work diligently at the business of my lord, if he will send the cow. I am tying up the five shekels of silver and am sending them in all haste to you, my lord."

Ibgatum was evidently the lessee of a farm, and he does his best to get a cow out of his landlord in order to make up for the loss of his oxen. The 5 shekels probably represented the rent due to the landlord, and his promptitude in sending them was one of the arguments he used to get the cow. The word rendered "tie up" means literally "to yoke," so that the shekels would appear to have been in the form of rings rather than bars of metal.

A letter in the collection of Sir Henry Peck, which has been translated by Mr. Pinches, is addressed to the landlord by his agent or factor, whose duty it was to look after his country estates. It runs as follows: "Letter from Daian-bel-ussur to Sirku my lord. I pray to-day to Bel and Nebo for the preservation of the life of my lord. As regards the oxen which my lord has sent, Bel and Nebo know that there is an ox [among them] for them from thee. I have made the irrigation-channel and wall. I have seen thy servant with the sheep, and thy servant with the oxen; order also that an ox may be brought up thence [as an offering?] unto Nebo, for I have not purchased a single ox for money. I saw fifty-six of them on the 20th day, when I offered sacrifice to Samas. I have caused twenty head to be sent from his hands to my lord. As for the garlic, which my lord bought from the governor, the owner of the field took possession of it when [the sellers] had gone away, and the governor of the district sold it for silver; so the plantations also I am guarding there [?], and my lord has asked: Why hast thou not sent my messenger and [why] hast thou measured the ground? about this also I send thee word. Let a messenger take and deliver [?] thy message."

Another letter of the same age is interesting as showing that the name of the national God of Israel, Yahum or Yahveh, was known in Babylonia at a much earlier date than has hitherto been suspected: "To Igas-Nin-sagh thus says Yahum-ilu: As thou knowest, Adâ-ilu has obtained for me the money … for the maid-servant Khisam-ezib. Mida [?] the merchant has settled the price with me [?]. Now let the notary of Babylon send Arad-Istar in …, the three shekels of silver which you have in hand and the two shekels which you have put out at interest, and I will straightway bring the money [and] Arad-Istar. Do not hinder Arad-Istar and I will straightway bring him to the government."

Yahum-ilu is the Joel of the Old Testament, with the final _m_ which distinguished the languages of early Babylonia and Southern Arabia, and the name probably belonged to one of those "Amorites" or natives of Syria and Palestine who were settled in Babylonia. Yahum-ilu, however, might also have been a native of Southern Arabia. The important fact is the occurrence of the name at so early a date.

That the clay tablet should ever have been used for epistolary purposes seems strange to us who are accustomed to paper and envelopes. But it occupied no more space than many modern official letters, and was lighter to carry than most of the packages that pass through the parcel-post. Now and then it was enveloped in an outer covering of clay, on which the address and the chief contents of it were noted; but the public were usually prevented from knowing what it contained in another way. Before it was handed over to the messenger or postman it was "sealed," which generally appears to mean that it was deposited in some receptacle, perhaps of leather or linen, which was then tied up and sealed. In fact, Babylonian and Assyrian letters were treated much as ours are when they are put into a post-bag to which the seals of the post-office are attached. There were excellent roads all over Western Asia, with post-stations at intervals where relays of horses could be procured. Along these all letters to or from the King and the government were carried by royal messengers. It is probable that the letters of private individuals were also carried by the same hands.

The letters of Tel-el-Amarna give us some idea of the wide extension of the postal system and the ease with which letters were constantly being conveyed from one part of the East to another. The foreign correspondence of the Pharaoh was carried on with Babylonia and Assyria in the east, Mesopotamia and Cappadocia in the north, and Palestine and Syria in the west. The civilized and Oriental world was thus bound together by a network of postal routes over which literary intercourse was perpetually passing. They extended from the Euphrates to the Nile and from the plateau of Asia Minor to the confines of Arabia. These routes followed the old lines of war and trade along which armies had marched and merchants had travelled for unnumbered generations.

The Tel-el-Amarna tablets show us that letter-writing was not confined to Assyria and Babylonia on the one hand, or to Egypt on the other. Wherever the ancient culture of Babylonia had spread, there had gone with it not only the cuneiform characters and the use of clay as a writing material, but the art of letter-writing as well. The Canaanite corresponded with his friends and neighbors quite as much as the Babylonian, and his correspondence was conducted in the same language and script. Hiram of Tyre, in sending letters to Solomon, did but carry on the traditions of a distant past. Long before the Israelites entered Palestine both a foreign and an inland postal service had been established there while it was still under Babylonian rule. The art of reading and writing must have been widely spread, and, when it is remembered that for the larger number of the Tel-el-Amarna writers the language and system of writing which they used were of foreign origin, it may be concluded that the education given at the time was of no despicable character.

The same conclusion may be drawn from another fact. The spelling of the Babylonian and Assyrian letters is in general extraordinarily correct. We meet, of course, with numerous colloquialisms which do not occur in the literary texts, and now and then with provincial expressions, but it is seldom that a word is incorrectly written. Even in the Tel-el-Amarna tablets, where all kinds of local pronunciation are reproduced, the orthography is usually faultless, in spite of the phonetic spelling. All this shows how carefully the writers must have been instructed at school. The correctness of the spelling in the Assyrian letters is really marvellous, especially when we consider all the difficulties of the cuneiform script, and what a tax it must have been to the memory to remember the multitudinous characters of the syllabary with their still more multitudinous phonetic and ideographic values. It gives us a high idea of the perfection to which the teachers' art had already been brought.

In Assyria, however, the writers usually belonged to the special class of scribes who employed the same conventional hand and devoted their lives to the acquisition of learning. It is probable that they acted as private secretaries as well as public clerks, and that consequently many of the letters which purport to come from other members of the community were really written by the professional scribes. But in Babylonia it is difficult to find any traces of the public or private letter-writer who is still so conspicuous a figure in the East. It is seldom if ever that the Babylonian, whoever he may be, betrays any ignorance of the art of reading and writing, and the endless variety of handwritings and the execrable character of many of them indicate pretty plainly that the aid of the professional letter-writer was rarely invoked. In a commercial community like that of Babylonia an ability to write was of necessity a matter of primary importance.

CHAPTER XI. RELIGION

As in other countries, so too in Babylonia, the official and the popular religion were not in all respects the same. In the popular faith older superstitions and beliefs still lingered which had disappeared from the religion of the state or appeared in it in another form. The place of the priest was in large measure taken by the sorcerer and the magician, the ceremonies of the public cult were superseded by charms and incantations, and the deities of the official creed were overshadowed by a crowd of subordinate spirits whose very existence was hardly recognized among the more cultured classes. The Babylonian was inordinately superstitious, and superstition naturally flourished most where education was least.

The official creed itself was an artificial amalgamation of two different currents of belief. The Babylonian race was mixed; Sumerian and Semite had gone to form it in days before history began. Its religion, therefore, was equally mixed; the religious conceptions of the Sumerian and the Semite differed widely, and it was the absorption of the Sumerian element by the Semitic which created the religion of later days. It is Semitic in its general character, but in its general character alone. In details it resembles the religions of the other Semitic nations of Western Asia only in so far as they have been influenced by it.

The Sumerian had no conception of what we mean by a god. The supernatural powers he worshipped or feared were spirits of a material nature. Every object had its _zi_, or "spirit," which accompanied it like a shadow, but unlike a shadow could act independently of the object to which it belonged. The forces and phenomena of nature were themselves "spirits;" the lightning which struck the temple, or the heat which parched up the vegetation of spring, were as much "spirits" as the _zi_, or "spirit," which enabled the arrow to reach its mark and to slay its victim. When contact with the Semites had introduced the idea of a god among the Sumerians, it was still under the form of a spirit that their powers and attributes were conceived. The Sumerian who had been unaffected by Semitic teaching spoke of the "spirit of heaven" rather than of the god or goddess of the sky, of the "spirit of Ea" rather than of Ea himself, the god of the deep. Man, too, had a _zi_, or "spirit," attached to him; it was the life which gave him movement and feeling, the principle of vitality which constituted his individual existence. In fact, it was the display of vital energy in man and the lower animals from which the whole conception of the _zi_ was derived. The force which enables the animate being to breathe and act, to move and feel, was extended to inanimate objects as well; if the sun and stars moved through the heavens, or the arrow flew through the air, it was from the same cause as that which enabled the man to walk or the bird to fly.

The _zi_ of the Sumerians was thus a counterpart of the _ka_, or “double,” of Egyptian belief. The description given by Egyptian students of the _ka_ would apply equally to the _zi_ of Sumerian belief. They both belong to the same level of religious thought; indeed, so closely do they resemble one another that the question arises whether the Egyptian belief was not derived from that of ancient Sumer.

Wholly different was the idea which underlay the Semitic conception of a spiritual world. He believed in a god in whose image man had been made. It was a god whose attributes were human, but intensified in power and action. The human family on earth had its counterpart in the divine family in heaven. By the side of the god stood the goddess, a colorless reflection of the god, like the woman by the side of the man. The divine pair were accompanied by a son, the heir to his father’s power and his representative and interpreter. As man stood at the head of created things in this world, so, too, the god stood at the head of all creation. He had called all things into existence, and could destroy them if he chose.

The Semite addressed his god as Baal or Bel, “the lord.” It was the same title as that which was given to the head of the family, by the wife to the husband, by the servant to his master. There were as many Baalim or Baals as there were groups of worshippers. Each family, each clan, and each tribe had its own Baal, and when families and clans developed into cities and states the Baalim developed along with them. The visible form of Baal was the Sun; the Sun was lord of heaven and therewith of the earth also and all that was upon it. But the Sun presented itself under two aspects. On the one side it was the source of light and life, ripening the grain and bringing the herb into blossom; on the other hand it parched all living things with the fierce heats of summer and destroyed what it had brought into being. Baal, the Sun-god, was thus at once beneficent and malevolent; at times he looked favorably upon his adorers, at other times he was full of anger and sent plague and misfortune upon them. But under both aspects he was essentially a god of nature, and the rites with which he was worshipped accordingly were sensuous and even sensual.

Such were the two utterly dissimilar conceptions of the divine out of the union of which the official religion of Babylonia was formed. The popular religion of the country also grew out of them though in a more unconscious way. The Semite gave the Sumerian his gods with their priests and temples and ceremonies. The Sumerian gave in return his belief in a multitude of spirits, his charms and necromancy, his sorcerers and their sacred books.

Unlike the gods of the Semites, the “spirits” of the Sumerian were not moved by human passions. They had, in fact, no moral nature. Like the objects and forces they represented, they surrounded mankind, upon whom they would inflict injury or confer benefits. But the injuries were more frequent than the benefits; the sum of suffering and evil exceeds that of happiness in this world, more especially in a primitive condition of society. Hence the “spirits” were feared as demons rather than worshipped as powers of good, and instead of a priest a sorcerer was needed who knew the charms and incantations which could avert their malevolence or compel them to be serviceable to men. Sumerian religion, in fact, was Shamanistic, like that of some Siberian tribes to-day, and its ministers were Shamans or medicine-men skilled in witchcraft and sorcery whose spells were potent to parry the attacks of the demon and drive him from the body of his victim, or to call him down in vengeance on the person of their enemy.

Shamanism, however, pure and simple, is incompatible with an advanced state of culture, and as time went on the Shamanistic faith of the Sumerians tended toward a rudimentary form of polytheism. Out of the multitude of spirits there were two or three who assumed a more commanding position than the rest. The spirit of the sky, the spirit of the water, and more especially the spirit of the underground world, where the ghosts of the dead and the demons of night congregated together, took precedence of the rest. Already, before contact with the Semites, they began to assume the attributes of gods. Temples were raised in their honor, and where there were temples there were also priests.

This transition of certain spirits into gods seems to have been aided by that study of the heavens and of the heavenly bodies for which the Babylonians were immemorially famous. At all events, the ideograph which denotes “a god” is an eight-rayed star, from which we may perhaps infer that, at the time of the invention of the picture-writing out of which the cuneiform characters grew, the gods and the stars were identical.

One of the oldest of the Sumerian temples was that of Nippur, the modern Niffer, built in honor of Mul-lil or El-lil, “the lord of the ghost-world.” He had originally been the spirit of the earth and the underground world; when he became a god his old attributes still clung to him. To the last he was the ruler of the _lil-mes_, “the ghosts” and “demons” who dwelt in the air and the waste places of the earth, as well as in the abode of death and darkness that lay beneath it. His priests preserved their old Shamanistic character; the ritual they celebrated was one of spells and incantations, of magical rites and ceremonies. Nippur was the source and centre of one of the two great streams of religious thought and culture which influenced Sumerian Babylonia.

The other source and centre was Eridu on the Persian Gulf. Here the spirit of the water was worshipped, who in process of time passed into Ea, the god of the deep. But the deep was a channel for foreign culture and foreign ideas. Maritime trade brought the natives of Eridu into contact with the populations of other lands, and introduced new religious conceptions which intermingled with those of the Sumerians. Ea, the patron deity of Eridu, became the god of culture and light, who delighted in doing good to mankind and in bestowing upon them the gifts of civilization. In this he was aided by his son Asari, who was at once the interpreter of his will and the healer of men. His office was declared in the title that was given to him of the god “who benefits mankind.”

Two strongly contrasted streams of religious influence thus flowed from Nippur in the north of Babylonia and from Eridu in the south. The one brought with it a belief in the powers of darkness and evil, in sorcery and magic, and a religion of fear; the other spoke of light and culture, of gods who poured blessings upon men and healed the diseases that afflicted them. Asari was addressed as “he who raises the dead to life,” and Ea was held to be the first legislator and creator of civilized society.

How far the foreign influence which moulded the creed of Eridu was of Semitic origin it is impossible to say. Semitic influences, however, began to work upon Sumerian religion at a very early date. The Semite and the Sumerian intermingled with one another; at first the Semite received the elements of culture from his more civilized neighbor, but a time came when he began to give something in return. The result of this introduction of Semitic and Sumerian beliefs and ideas was the official religion of later Babylonia.

The “spirits” who had ranked above the rest now became gods in the Semitic sense of the term. Mul-lil of Nippur became the Semitic Baal or Bel, the supreme lord of the world, who governs the world below as well as the world above. He it was who conferred empire over mankind upon his worshippers and whose ministers and angels were the spirits of popular belief. Ea wanted but little to become a true god; his name remained unchanged and his dominion extended to all waters whatever, wherever they might be. His son Asari passed into Merodach, the patron-deity of Babylon, who, when his city became the capital of Babylonia, took the place of Bel of Nippur as the supreme Bel. As in Greek mythology the younger Zeus dethroned his father, so in Babylonia the younger Bel of Babylonia dethroned the older Bel of Nippur.

Similarly, Anu, the spirit of the sky, became the Semitic Sky-god Anu, whose temple stood at Erech. Ur, on the western bank of the Euphrates, was dedicated to the Moon-god under the name of Sin, like Harran in Mesopotamia; Larsa was dedicated to the Sun-god. When Borsippa became a suburb of Babylon its presiding deity became at the same time the minister and interpreter of Merodach under the title of Nabium or Nebo “the prophet.” The Semitic god everywhere took the place of the Sumerian “spirit,” while those among the “spirits” themselves who had not undergone the transforming process merged in the three hundred spirits of heaven and the six hundred spirits of earth. They formed the “hosts of heaven,” of whom Bel was the lord.

But Semitic belief necessitated the existence of a goddess by the side of the god. It was, indeed, a grammatical necessity rather than a theological one; the noun in the Semitic languages has a feminine as well as a masculine gender, and the masculine Bilu or Bel, accordingly, implied a female Belit or Beltis. But the goddess was little more than a grammatical shadow of the god, and her position was still further weakened by the analogy of the human family where the wife was regarded as the lesser man, the slave and helpmeet of her husband.

One goddess only escaped the general law which would have made her merely the pale reflection of the god. This was Istar. Istar was an independent deity, owing no allegiance to a husband, and standing on a footing of equality with the gods. But this was because she had once been one of the chief objects of Sumerian worship, the spirit of the evening star. In the Sumerian language there was no gender, nothing that could distinguish the goddess or the woman from the god or man, and the “spirits,” therefore, were indifferently of both sexes. Moreover, the woman occupied an important place in the Sumerian family; where the Semitic translation speaks of “man and woman” the Sumerian original makes it “woman and man.” To the Sumerian mind, accordingly, the female “spirit” was as powerful as the male, acting independently and possessing the same attributes. Hence it was that in taking Istar over from their Sumerian predecessors the Semitic inhabitants of Babylonia took over at the same time a goddess who was the equal of a god.

Among the mixed population of Babylonia, with its mixed culture and language and religion, the character and position of Istar underwent but little change. But when the conquerors of Sargon of Akkad and his predecessors carried the civilization of Babylonia to the West, Istar assumed a new form. Among the Canaanites she became Ashtoreth with the feminine termination, and was identified with the Moon, the consort and reflection, as it were, of Baal the Sun-god. But even so, the existence, of an independent goddess by the side of Baal seemed strange to the Semitic imagination, and among the Semites of Southern Arabia she was transformed into a male god, while the Moabites made her one with the god Chemosh. Even among the learned classes of Semitic Babylonia it was whispered that she was of both sexes, a goddess when imaged in the evening star, a god when visible in the star of the morning.

Closely connected with the worship of Istar was that of Tammuz. Tammuz among the Sumerians appears to have been the “spirit” of the rivulets and waters of spring, and his name signified literally “the son of life” or “of the spirit.” But among the Semites he became the young and beautiful shepherd, the beloved of Istar, slain by the boar’s tusk of winter, or, as others held, of the parching heats of the summer. He symbolized the fresh vegetation of the spring and the Sun-god who called it forth. Once each year, in the sultry heats of June, the women wept and tore their hair in memory of his untimely death, and Istar, it was said, had descended into Hades in the vain hope of bringing him back to life. One of the most famous of Babylonian poems was that which told of the descent of Istar through the seven gates of the underground world, and which was chanted at the annual commemoration of his death. At each gate, it is said, the goddess left behind her some one of her adornments, until at last she arrived stripped and naked before the throne of the goddess of the infernal world. The poem was composed at a time when astronomical conceptions had laid hold of the old mythology, and the poet has interwoven the story of the waning and waxing of the moon into the ancient tale.

The world was generally believed to have originated out of a watery chaos, and to float, as it were, upon the deep. This belief was derived from Eridu, where it was also taught that the deep surrounded the earth like the coils of a serpent.

But other ideas about the origin of things prevailed elsewhere. Inland it was supposed that the firmament of heaven rested on the peak of a mountain—“the mountain of the East,” or “of the World,” as it was commonly called—where the gods lived in an Olympus of their own and the stars were suspended from it like lamps. The firmament was regarded as a kind of extinguisher or as the upturned hull of one of the round coracles that plied on the Euphrates. Other ideas again were prevalent in other parts of the country. Thus at Eridu the place of “the mountain of the World” was taken by a magical tree which grew in the midst of the garden of Eden, or “plain” of Babylonia, and on either side of which were the mouths of the Tigris and Euphrates. It is probably to be identified with the tree of life which figures so frequently in the sculptures of Assyria and on the seal-cylinders of Chaldea, but it may be the tree of knowledge of which we hear in the old Sumerian texts, and upon which “the name of Ea was written.” At all events it is “the holy tree of Eridu,” of whose “oracle” Arioch calls himself “the executor.”

The sun, it was believed, rose and set from between the twin mountains whose gates were guarded by men with the bodies of scorpions, while their heads touched the skies and their feet reached to Hades. The scorpion was the inhabitant of the desert of Northern Arabia, the land of Mas, where the mountains of the sunset were imagined to be. Beyond them were the encircling ocean and the waters of Death, and beyond these again the island of the Blest, where the favorites of the gods were permitted to dwell. It was hither that Xisuthros, the Chaldean Noah, was translated for his piety after the Deluge, and it was here, too, that the flower of immortality blossomed.

For the ordinary mortal a very different fate was reserved. He had to descend after death into the underground world of Hades, where the spirits of the dead flitted about like bats in the darkness, with dust only for their food. It was a land of gloom and forgetfulness, defended by seven gates and seven warders, who prevented the dead from breaking forth from their prison-house and devouring the living under the form of vampires. The goddess Allat presided over it, keeping watch over the waters of life that bubbled up under her golden throne. Before her sat the shades of the heroes of old, each crowned with a shadowy crown and seated on a shadowy throne, rising up only that they might salute the ghost of some human potentate who came to join them from the upper world. In later days, it is true, brighter and higher conceptions of the after life came to prevail, and an Assyrian poet prays that his King, when he dies, may pass away to “the land of the silver sky.”

The various cosmological speculations and beliefs of ancient Chaldea were collected together in later times and an attempt made to combine them into a philosophical system. What this was like we learn from the opening lines of the epic which recounted the story of the Creation. In the beginning, we are told, was the chaos of the deep, which was the mother of all things. Out of it came first the primeval gods, Lakhum and Lakhamu, whose names had been handed down from the Sumerian age. Then came An-sar and Ki-sar, the Upper and Lower Firmaments, and, lastly, the great gods of the Semitic faith, Anu, Bel of Nippur, and Ea. All was ready at last for the creation of the present heavens and earth. But a struggle had first to be carried on between the new gods of light and order and Tiamat, the dragon of the “Deep,” the impersonation of chaos. Merodach volunteered the task; Tiamat and her demoniac allies were overthrown and the sky formed out of her skin, while her blood became the rivers and springs. The deep was placed under fetters, that it might never again break forth and reduce the world to primeval chaos; laws were laid down for the heavenly bodies, which they were to keep forever and so provide a measure of time, and the plants and animals of the earth were created, with man at the head to rule over them. Though man was made of the dust, he was, nevertheless, the “son” of the gods, whose outward forms were the same as his.

It is not to be supposed that this philosophizing of the old myths and legends made its way beyond the circle of the learned classes, but the myths and legends themselves were known to the people and served instead of a cosmology. The struggle between Tiamat and Merodach was depicted on the walls of the temple of Bel at Babylon, and the belief that this world has arisen out of a victory of order over chaos and anarchy was deeply implanted in the mind of the Babylonian. Perhaps it goes back to the time when the soil of Babylonia was won by the cultivator and the engineer from wild and unrestrained nature.

Babylonian religion had its sacred books, and, like the official cosmology, a real knowledge of them was probably confined to the priests and educated classes. But a considerable part of their contents must have been more widely known.

Some of the hymns embodied in them, as well as the incantations and magical ceremonies, were doubtless familiar to the people or derived from current superstitions. The work in which the hymns were collected and procured, and which has been compared with the Veda of India, was at once the Bible and the Prayer-book of Chaldea. The hymns were in Sumerian, which thus became a sacred language, and any mistake in the recitation of them was held to be fatal to the validity of a religious rite. Not only, therefore, were the hymns provided with a Semitic translation, but from time to time directions were added regarding the pronunciation of certain words. The bulk of the hymns was of Sumerian origin, but many new hymns, chiefly in honor of the Sun-god, had been added to them in Semitic times. They were, however, written in the old language of Sumer; like Latin in the Roman Catholic Church, that alone was considered worthy of being used in the service of the gods. It was only the rubric which was allowed to be written in Semitic; the hymns and most of the prayers were in what had come to be termed “the pure” or “sacred language” of the Sumerians. Each hymn is introduced by the words “to be recited,” and ends with _amanû_, or “Amen.”

The religious services were incessant. Every day the sacrifice was offered, accompanied by a special ritual, and the festivals and fasts filled up each month of the year. There were services even for the night as well as for the day. The new moons were strictly observed, and the seventh day was one of solemn rest. The very name Sabattu or “Sabbath” was derived by the native etymologists from the Sumerian words _sa_, “heart,” and _bat_, “to end,” because it was “a day of rest for the heart.” Not only were there Sabbaths on the seventh, fourteenth, twenty-first, and twenty-eighth days of the month, there was also a Sabbath on the nineteenth, that being the end of the seventh week from the first day of the previous month. On these Sabbaths no work was permitted to be done. The King, it was laid down, “must not eat flesh cooked at the fire or in the smoke; must not change his clothes; must not put on white garments; must not offer sacrifices; must not drive in his chariot; or issue royal decrees.” Even the prophet was forbidden to practise augury or give medicine to the sick.

From time to time extraordinary days of public humiliation or thanksgiving were ordered to be observed. These were prescribed by the government and were generally the result of some political crisis or danger. When the Assyrian empire, for instance, was attacked by the nations of the north in the early part of Esar-haddon’s reign, public prayers and fasts “for one hundred days and one hundred nights” were ordained by the “prophets” in the hope that the Sun-god might “remove the sin” of the people and stave off the threatened attack. So, again, when Assur-bani-pal had suppressed the Babylonian revolt and taken Babylon after a long siege, he tells us that “at the instance of the prophets he purified the mercy-seats and cleansed the processional roads that had been polluted; the wrathful gods and angry goddesses he appeased with special prayers and penitential psalms.”

The temple was erected on ground that had been consecrated by libations of wine, oil, and honey, and was a square or rectangular building enclosing an open court, on one side of which was a _ziggurat_, or “tower.” The tower was built in successive stages, and in the topmost stage was the shrine of the god. Each “tower” had a name of its own, and was used for astronomical purposes. It corresponded with “the high-place” of Canaan; in the flat plain of Babylonia it was only by means of a tower that the worshipper could “mount up to heaven” and so approach the gods. Herodotus states that the topmost story of the tower attached to the temple of Bel Merodach at Babylon contained nothing but a couch and a table.

The image of the god stood in the innermost shrine or Holy of Holies of the temple itself. In front of it was the golden table on which the shew-bread was laid, and below was the _parakku_, or “mercy-seat,” whereon, according to Nebuchadnezzar, at the festival of the new year, “on the eighth and eleventh days, the king of the gods of heaven and earth, Bel, the god, seats himself, while the gods of heaven and earth reverently regard him, standing before him with bowed heads.” It was “the seat of the oracles” which were delivered from it by the god to his ministering priests.

In front of the shrine was an altar cased in gold, and another altar stood in the outer court. Here also was the great bason of bronze for purificatory purposes, which was called “the deep,” and corresponded with the “sea” of Solomon’s temple. Like the latter, it sometimes stood on the heads of twelve bronze oxen, as we learn from a hymn in which the construction of one of these basons is described. They were supposed to represent the primeval “deep” out of which the world has arisen and on which it still floats.

The chapel found by Mr. Hormund Rassam at Balawât, near Nineveh, gives us some idea of what the inner shrine of a temple was like. At its north-west end was an altar approached by steps, while in front of the latter, and near the entrance, was a coffer or ark in which two small slabs of marble were deposited, twelve and one-half inches long by eight wide, on which the Assyrian King Assur-nazir-pal in a duplicate text records his erection of the sanctuary. It is not surprising that when the Nestorian workmen found the tablets, they believed that they had discovered the two tables of the Mosaic Law.

The temple sometimes enclosed a Bit-ili or Beth-el. This was originally an upright stone, consecrated by oil and believed to be animated by the divine spirit. The “Black Stone” in the kaaba of the temple of Mecca is a still surviving example of the veneration paid by the Semitic nations to sacred stones. Whether, however, the Beth-els of later Babylonian days were like the “Black Stone” of Mecca, really the consecrated stones which had once served as temples, we do not know; in any case they were anchored within the walls of the temples which had taken their place as the seats of the worship of the gods. Offerings were still made to them in the age of Nebuchadnezzar and his successors; thus we hear of 765 “measures” of grain which were paid as “dues to the Beth-el” by the serfs of one of the Babylonian temples. The “measure,” it may be stated, was an old measure of capacity, retained among the peasantry, and only approximately exact. It was calculated to contain from 41 to 43 _qas_.

The offerings to the gods were divided into sacrifices and meal-offerings. The ox, sheep, lamb, kid, and dove were offered in sacrifice—fruit, vegetables, bread, wine, oil, and spices where no blood was required to be shed. There were also sin-offerings and heave-offerings, when the offering was first “lifted up” before the gods. A contract dated in the thirty-second year of Nebuchadnezzar tells something about the parts of the animals which were sacrificed, though unfortunately the meaning of many of the technical words used in it is still unknown: “Izkur-Merodach, the son of Imbriya, the son of Ilei-Merodach, of his own free will has given for the future to Nebo-balasu-iqbi, the son of Kuddinu, the son of Ilei-Merodach, the slaughterers of the oxen and sheep for the sacrifices of the king, the prescribed offerings, the peace-offerings (?) of the whole year—viz., the caul round the heart, the chine, the covering of the ribs, the …, the mouth of the stomach, and the …, as well as during the year 7,000 sin-offerings and 100 sheep before Iskhara, who dwells in the temple of Sa-turra in Babylon (not excepting the soft parts of the flesh, the trotters (?), the juicy meat, and the salted (?) flesh), and also the slaughterers of the oxen, sheep, birds, and lambs due on the 8th day of Nisan, (and) the heave-offering of an ox and a sheep before Pap-sukal of Bit-Kiduz-Kani, the temple of Nin-ip and the temple of Anu on the further bank of the New Town in Babylon.” The 8th of Nisan, or March, was the first day of the festival of the New Year.

The hierarchy of priests was large. At its head was the _patesi_, or high-priest, who in the early days of Babylonian history was a civil as well as an ecclesiastical ruler. He lost his temporal power with the rise of the kings. But at first the King was also a _patesi_, and it is probable that in many cases at least it was the high-priest who made himself a king by subjecting to his authority the _patesis_ or priestly rulers of other states. In Assyria the change of the high-priest into a king was accompanied by revolt from the supremacy of Babylonia.

With the establishment of a monarchy the high-priest lost more and more his old power and attributes, and tended to disappear altogether, or to become merely the vicegerent or representative of the King. The King himself, mindful of his sacerdotal origin, still claimed semi-priestly powers. But he now called himself a _sangu_ or “chief priest” rather than a _patesi_; in fact, the latter name was retained only from antiquarian motives. The individual high-priest passed away, and was succeeded by the class of “chief priests.” Under them were several subordinate classes of temple servants. There were, for instance, the _enû_, or “elders,” and the _pasisû_, or “anointers,” whose duty it was to anoint the images of the gods and the sacred vessels of the temple with oil, and who are sometimes included among the _ramkû_, or “offerers of libations,” as well. By the side of them stood _asipu_, or “prophet,” who interpreted the will of heaven, and even accompanied the army on its march, deciding when it might attack the enemy with success, or when the gods refused to grant it victory. Next to the prophet came the _makhkhû_ or interpreter of dreams, as well as the _barû_, or “seer.”

A very important class of temple-servants were the _kalî_, or “eunuch-priests,” the _galli_ of the religions of Asia Minor. They were under a “chief _kalû_,” and were sometimes entitled “the servants of Istar.” It was indeed to her worship that they were specially consecrated, like the _ukhâtu_ and _kharimâtu_, or female hierodules. Erech, with its sanctuary of Anu and Istar, was the place where these latter were chiefly to be found; here they performed their dances in honor of the goddess and mourned over the death of Tammuz.

Closely connected with the _kalî_ was a sort of monastic institution, which seems to have been attached to some of the Babylonian temples. The _Zikari_, who belonged to it, were forbidden to marry, and it is possible that they were eunuchs like the _kalî_. They, too, were under a chief or president, and their main duty was to attend to the daily sacrifice and to minister to the higher order of priests. In this respect they resembled the Levites at Jerusalem; indeed they are frequently termed “servants” in the inscriptions, though they were neither serfs nor slaves. They could be dedicated to the service of the Sun-god from childhood. A parallel to the dedication of Samuel is to be found in a deed dated at Sippara on the 21st of Nisan, in the fifth year of Cambyses, in which “Ummu-dhabat, the daughter of Nebo-bel-uzur,” whose father-in-law was the priest of the Sun-god, is stated to have brought her three sons to him, and to have made the following declaration before another priest of the same deity: “My sons have not yet entered the House of the Males (_Zikari_); I have hitherto lived with them; I have grown old with them since they were little, until they have been counted among men.” Then she took them into the “House of the Males” and “gave” them to the service of the god. We learn from this and other documents that the _Zikari_ lived together in a monastery or college within the walls of the temple, and that monthly rations of food were allotted to them from the temple revenues.

The ordinary priests were married, though the wife of a priest was not herself a priestess. There were priestesses, however, as well as female recluses, who, like the _Zikari_, were not allowed to marry and were devoted to the service of the Sun-god. They lived in the temple, but were able to hold property of their own, and even to carry on business with it. A portion of the profits, nevertheless, went to the treasury of the temple, out of whose revenues they were themselves supplied with food. From contracts of the time of Khammurabi we gather that many of them not only belonged to the leading families of Babylonia, but that they might be relations of the King.

Wholly distinct from these devotees of the Sun-god were the female hierodules or prostitutes of Istar, to whom reference has already been made. Distinct from them, again, were the prophetesses of Istar, who prophesied the future and interpreted the oracles of the goddess. One of their chief seats was the temple of Istar at Arbela, and a collection of the oracles delivered by them and their brother prophets to Esar-haddon has been preserved. It is thus that he is addressed in one of them: “Fear not, O Esar-haddon; the breath of inspiration which speaks to thee is spoken by me, and I conceal it not. Thine enemies shall melt away from before thy feet like the floods in Sivan. I am the mighty mistress, Istar of Arbela, who have put thine enemies to flight before thy feet. Where are the words which I speak unto thee, that thou hast not believed them? I am Istar of Arbela; thine enemies, the Ukkians, do I give unto thee. I am Istar of Arbela; in front of thee and at thy side do I march. Fear not, thou art in the midst of those that can heal thee; I am in the midst of thy host. I advance and I stand still!” It is probable that these prophetesses were not ordained to their office, but that it depended on their possession of the “spirit of inspiration.” At all events, we find men as well as women acting as the mouth-pieces of Istar, and in one instance the woman describes herself as a native of a neighboring village “in the mountains.”

The revenues of the temples and priesthood were derived partly from endowments, partly from compulsory or voluntary offerings. Among the compulsory offerings were the esrâ, or “tithes.” These had to be paid by all classes of the population from the King downward, either in grain or in its equivalent in money. The “tithe” of Nabonidos, immediately after his accession, to the temple of the Sun-god at Sippara was as much as 5 manehs of gold, or £840. We may infer from this that it was paid on the amount of cash which he had found in the treasury of the palace and which was regarded as the private property of the King. Nine years later Belshazzar, the heir-apparent, offered two oxen and thirty-two sheep as a voluntary gift to the same temple, and at the beginning of the following year we find him paying a shekel and a quarter for a boat to convey three oxen and twenty-four sheep to the same sanctuary. Even at the moment when Cyrus was successfully invading the dominions of his father and Babylon had already been occupied for three weeks by the Persian army, Belshazzar was careful to pay the tithe due from his sister, and amounting to 47 shekels of silver, into the treasury of the Sun-god. As Sippara was in the hands of the enemy, and the Babylonian forces which Belshazzar commanded had been defeated and dispersed, the fact is very significant, and proves how thoroughly both invaders and invaded must have recognized the rights of the priesthood.

Tithe was also indirectly paid by the temple-serfs. Thus in the first year of Nergal-sharezer, out of 3,100 measures of grain, delivered by “the serfs of the Sun-god” to his temple at Sippara, 250 were exacted as “tithe.” These serfs must be distinguished from the temple-slaves. They were attached to the soil, and could not be separated from it. When, therefore, a piece of land came into the possession of a temple by gift and endowment, they went along with it, but their actual persons could not be sold. The slave, on the other hand, was as much a chattel as the furniture of the temple, which could be bought and sold; he was usually a captive taken in war, more rarely a native who had been sold for debt. All the menial work of the temple was performed by him; the cultivation of the temple-lands, on the contrary, was left to the serfs.

It is doubtful whether the “butchers,” or slaughterers of the animals required for sacrifice, or the “bakers” of the sacred cakes, were slaves or freemen. The expression used in regard to them in the contract of Izkur-Merodach quoted above is open to two interpretations, but it would naturally signify that they were regarded as slaves. We know, at all events, that many of the artisans employed in weaving curtains for the temples and clothing for the images of the gods belonged to the servile class, and the gorgeousness of the clothing and the frequency with which it was changed must have necessitated a large number of workmen. Many of the documents which have been bequeathed to us by the archives of the temple of the Sun-god at Sippara relate to the robes and head-dresses and other portions of the clothing of the images which stood there.

A considerable part of the property of a temple was in land. Sometimes this was managed by the priests themselves; sometimes its revenues were farmed, usually by a member of the priestly corporation; at other times it was let to wealthy “tenants.” One of these, Nebo-sum-yukin by name, who was an official in the temple of Nebo at Borsippa, married his daughter Gigîtum to Nergal-sharezer in the first year of the latter’s reign.

The state religion of Assyria was a copy of that of Babylonia, with one important exception. The supreme god was the deified state. Assur was not a Baal any more than Yahveh was in Israel or Chemosh in Moab.

He was, consequently, no father of a family, with a wife and a son; he stood alone in jealous isolation, wifeless and childless. It is true that some learned scribe, steeped in Babylonian learning, now and then tried to find a Babylonian goddess with whom to mate him; but the attempt was merely a piece of theological pedantry which made no impression on the rulers and people of Nineveh. Assur was supreme over all other gods, as his representative, the Assyrian King, was supreme over the other kings of the earth, and he would brook no rival at his side. The tolerance of Babylonian religion was unknown in Assyria. It was “through trust in Assur” that the Assyrian armies went forth to conquer, and through his help that they gained their victories. The enemies of Assyria were his enemies, and it was to combat and overcome them that the Assyrian monarchs declare that they marched to war. Cyrus tells us that Bel-Merodach was wrathful because the images of other deities had been removed by Nabonidos from their ancient shrines in order to be gathered together in his temple of Ê-Saggil at Babylon, but Assur bade his servants go forth to subdue the gods of other lands, and to compel their worshippers to transfer their allegiance to the god of Assyria. Those who believed not in him were his enemies, to be extirpated or punished.

It is true that the leading Babylonian divinities were acknowledged in Assyria by the side of Assur. But they were subordinate to him, and it is difficult to resist the impression that their recognition was mainly confined to the literary classes. Apart from the worship of Istar and the use of the names of certain gods in time-honored formulæ, it is doubtful whether even a knowledge of the Babylonian deities went much beyond the educated members of the Assyrian community. Nebo and Merodach and Anu were the gods of literature rather than of the popular cult.

But even in Babylonia the majority of the gods of the state religion was probably but little remembered by the mass of the people. Doubtless the local divinity was well known to the inhabitants of the place over which he presided and where his temple had stood from immemorial times. Every native of Ur was doubtless a devoted adorer of Sin, the Moon-god, and for the inhabitants of Babylon Bel-Merodach was the highest object of worship. But the real religion of the bulk of the population consisted in charms and magic. The Babylonian was intensely superstitious, the cultivated classes as much so as the lowest. Sorcery and divination were not only tolerated by the priests, they formed part of the religious system of the state. Prophets and diviners and interpreters of dreams served in the temples, and one of the sacred books of the priesthood was a collection of incantations and magical rites. Among the people generally the old Shamanistic faith had never been eradicated; it was but partially overlaid with the religious conceptions of the Semite, and sorcery and witchcraft flourished down to the latest days of Babylonian history.

The gods and goddesses were believed to utter oracles and predictions through the lips of inspired men and women. Figures of winged bulls and serpents were placed at the entrance of a building to prevent the demons of evil from passing through it. Before the gates of Babylon Nebuchadnezzar “set up mighty bulls of bronze and serpents which stood erect,” and when Nabonidos restored the temple of the Moon-god at Harran two images of the primeval god, Lakhum, were similarly erected on either side of its eastern gate to “drive back” his “foes.” These protecting genii were known as _sêdi_ and _kurubi_, the _shêdim_ and _cherubim_ of the Old Testament. _Sêdi_, however, was a generic term, including evil as well as beneficent genii, and the latter was more properly classed as the _lamassi_, or “colossal forms.” The whole world was imagined to be filled with malevolent spirits ever on the watch to attack and torment mankind. The water that was drunk, the food that was eaten, might contain a demon, whom it would be necessary to exorcise. The diseases that afflict our bodies, the maladies that prey upon our spirits, were all due to the spirits of evil, and could be removed only by the proper incantations and charms. Madness and epilepsy were more especially the direct effect of demoniac possession. The magician alone knew how to cure them; and the priest taught that his knowledge had first been communicated to him by the god Ea through his interpreter, Merodach. Books were written containing the needful formulæ and ritual for counteracting the malevolence of the evil spirits and for healing the sick. Pure or “holy” water and the number seven were regarded as endowed with mysterious power in the performance of these magical rites; thus magical threads were ordered to be bound seven times round the limbs of the sick man, with phylacteries attached to them on which were inscribed “sentences from a holy book.”

It was at night-time that the spirits of evil were more especially active. It was then that vampires escaped from the bodies of the dead or from the realm of Hades to suck the blood of the living, and that the nightmare lay upon the breast of its victim and sought to strangle him. At the head of these demons of the night was Lilat, the wife of Lil, “the ghost;” from the Babylonians she was borrowed by the Jews, and appears in the book of Isaiah under the name of Lilith.

The demons were served by a priesthood of their own. These were the wizards and witches, and the sorcerers and sorceresses, with whom were associated the public prostitutes, who plied their calling under the shadow of night.

It was then that they lay in ambush for the unwary passenger, for whom they mixed deadly philters which poisoned the blood. They were devotees of Istar, but the Istar they worshipped was a wholly different goddess from the Istar of the official cult. She was a goddess of witchcraft and darkness, of whom it was said that she “seized” on her victim “at night,” and was “the slayer of youths.” She it was who was dreaded by the people like the witches and “street-walkers,” who ministered before her, and against whom exorcisms of all kinds were employed. To guard against her and her agents, small images of Lugal-gira and Allamu, the teraphim of the Babylonians, were made and placed to the right and the left of the door that they might “tear out the hearts of the wicked” and “slay the witch.” The Fire-god, moreover, was invoked that he might destroy the ministers of wickedness, and figures of the witch or wizard were moulded in wax and melted in the fire. As the wax dissolved, so, it was prayed, might “the wizard and witch run, melt, and dissolve.”

The exorcisms had to be repeated by the victims of witchcraft. This is clear from the words which come at the end of each of them: “I, So-and-so, the son of So-and-so, whose god is So-and-so and goddess So-and-so, I turn to thee, I seek for thee, I kiss thy hands, I bow myself under thee. Consume the wizard and the witch; annihilate the lives of the sorcerer and the sorceress who have bewitched me. Then shall I live and gladden thy heart.”

In strange contrast to these utterances of popular superstition are the hymns and prayers that were addressed by the cultivated Babylonian to the gods of the official creed. They were gods of light and healing, who punished, indeed, the sins of the wicked, but were ready to listen to the petitions of the penitent and to forgive them their transgressions. Bel-Merodach was “the merciful one who raises the dead to life,” and Ea was ever on the watch to send aid to suffering humanity and foil the demons who warred against man. Here, for example, are some extracts from one of those penitential psalms whose authors seem to have sprung from Eridu and which formed part of the Babylonian Bible long before the age of Abraham:

The heart of my lord is wroth; may it be appeased!
May the god whom I know not be appeased!
May the goddess whom I know not be appeased!
May both the god I know and the god I know not be appeased!…
O lord, my sins are many, my transgressions are great!…
The sin that I sinned I knew not,
The transgression I committed I knew not.…
The lord in the wrath of his heart has regarded me,
God in the fierceness of his heart has revealed himself to me.…
I sought for help, and none took my hand;
I wept, and none stood at my side;
I cried aloud, and there was none that heard me.
I am in trouble and hiding; I dare not look up.
To my god, the merciful one, I turn myself, I utter my prayer;
The feet of my goddess I kiss and water with tears.…
The sins I have sinned turn into a blessing;
The transgressions I have committed let the wind carry away!
Strip off my manifold wickednesses as a garment!
O my god, seven times seven are my transgressions; forgive my sins!
O my goddess, seven times seven are my transgressions; forgive my sins!

To the same early period belongs a hymn to the Moon-god, originally composed for the services in the temple of Ur, the birthplace of Abraham, and afterward incorporated in the sacred books of the state religion. It is thus that the poet speaks of his god:

Father, long-suffering and full of forgiveness, whose hand upholdeth the life of all mankind!…
First-born, omnipotent, whose heart is immensity, and there is none who may fathom it!…
In heaven who is supreme? Thou alone, thou art supreme!
On earth, who is supreme? Thou alone, thou art supreme!
As for thee, thy will is made known in heaven, and the angels bow their faces.
As for thee, thy will is made known upon earth, and the spirits below kiss the ground.

At times the language of the hymn rises to that of monotheism of a pure and exalted character. That a monotheistic school actually existed in one of the literary circles of Babylonia was long ago pointed out by Sir Henry Rawlinson. It arose at Erech, an early seat of Semitic influence, and endeavored to resolve the manifold deities of Chaldea into forms or manifestations of the “one god,” Anu. It never made many converts, it is true; but the tendency toward monotheism continued among the educated part of the population, and when Babylon became the capital of the country its god, Merodach, became not only a Bel or “Lord,” but the one supreme lord over all the other gods. Though the existence of the other gods was admitted, they fell, as it were, into a background of shadow, and the worshipper of Merodach, in his devotion to the god, almost forgot that they existed at all. The prayers of Nebuchadnezzar are a proof how narrow was the line which divided his faith from that of the monotheist. “To Merodach my lord,” he says, “I prayed; I began to him my petition; the word of my heart sought him, and I said: O prince, thou that art from everlasting, lord of all that exists, for the king whom thou lovest, whom thou callest by name, as it seems good unto thee, thou guidest his name aright, thou watchest over him in the path of righteousness! I, the prince who obeys thee, am the work of thy hands; thou hast created me and hast entrusted to me the sovereignty over multitudes of men, according to thy goodness, O lord, which thou hast made to pass over them all. Let me love thy supreme lordship, let the fear of thy divinity exist in my heart, and give what seemeth good unto thee, since thou maintainest my life.”

The man who could thus pray was not far from the kingdom of God.

APPENDIX: WEIGHTS AND MEASURES

In the preceding pages the equivalence of the _qa_ in modern English measures has been given in accordance with the calculations of Dr. Oppert. Other scholars, however, would assign to it a different value, identifying it with the Hebrew _qab_ and making it equal to about two litres. This, indeed, seems to have been its value in the age of Abraham, but in the later days of Babylonian history a different system certainly prevailed.

WEIGHTS.

360 se ("grains")	1 shekel
60 shekels	1 maneh (_mana_)
60 manehs	1 talent

The silver maneh was equivalent to £9, the shekel being 3s., while the gold maneh was ten times its value. The maneh was originally a weight more than one kind of which was in use: (1) The heavy maneh of 990 grammes; (2) the light maneh of 495 grammes; (3) the gold maneh (for weighing gold) of 410 grammes; and (4) the silver maneh of 546 grammes. At Sippara, however, the heavy maneh weighed 787 grammes; the light maneh, 482 grammes; and the gold maneh, 392 grammes; while the standard maneh fixed by Dungi weighed 980 grammes. The maneh of Carchemis contained 561 grammes.

MEASURES OF CAPACITY.

1 _qa_ (Heb. _qab_)	1.66 litres
1 _pi_ or ardeb (Heb. homer)	36 _qas_
1 _bar_ (Heb. se’ah)	60 _qas_
1 homer in Assyria	60 _qas_
1 _gur_ (Heb. kor)	180 _qas_

In the Abrahamic age other systems were in use in Babylonia according to which the _gur_ sometimes contained 360 _qas_ and sometimes 300 _qas_.

The tonnage of ships was reckoned by the _gur_.

MEASURES OF LENGTH.

1 _uban_ or finger-breadth (divided into 180 parts)	16.6 millimetres
30 finger-breadths	1 _ammat_ or cubit (498 mm.)
2 cubits	1 great cubit (996 mm.)
6 great cubits	1 _qanu_ or reed
2 reeds	1 _gar_
60 _gars_	1 _soss_ or stade
30 _sosses_	1 _kasbu_ or parasang (21 kilometres)
2 _kasbus_	1 great _kasbu_

SUPERFICIAL MEASURES.

In the Abrahamic age 180 _se_ were probably equivalent to 1 _gin_, 60 _gin_ to one _sar_ or “garden,” 1,800 _sar_ to 1 feddân (_padânu_) or “acre.” The latter was called _bur-gan_ in Sumerian, or “10 acres,” to distinguish it from a smaller acre, which contained only 180 _sar_.

Time was reckoned by the _kasbu_ or “double hour,” and in early times the weight was divided into three watches of 2 _kasbus_ or 4 hours each. The months were originally lunar, and consisted of 30 days, an intercalary month being inserted in the calendar every six years. The zodiac was divided into 360 degrees.

Mathematics were based upon a sexagesimal system, sixty, called the _soss_, being the unit. The _ner_ was equivalent to 10 _sosses_ and the _sar_ to 6 _ners_.

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FOOTNOTES

[1] Researches in Assyria, Babylonia, and Chaldea (1838), p. 131 _sqq._

[2] In certain cases the wife seems to have had the power of claiming alimony from her husband, though we do not know what were the circumstances which were held sufficient to justify the claim. Thus, in the third year of Nabonidos, “Nahid-Merodach, the son of Samas-baladhu-iqbi, voluntarily granted his wife Ramûa and his son Arad-Bunene four _qas_ of food and three _qas_ of beer daily, as well as fifteen manehs of wool, one _pi_ of sesame, one _pi_ of salt, and sixty _qas_ of sweetmeats each year,” with the provision that the grant should never be cancelled or willed away. The son, however, is included in the gift, and it is possible, therefore, that Ramûa was little more than a concubine.

[3] A similar case, in which, however, it is a testatrix who hands over her property to her son during her lifetime, is recorded in a deed dated at Babylon the 10th day of Sivân, in the second year of Nabonidos. The deed is as follows: “Gugûa, the daughter of Zakir, the son of a native of Isin, has voluntarily sealed and delivered to her eldest son, Ea-zir-ibni, her dowry, consisting of one maneh which is in the keeping of Nebo-akhi-iddin, the son of Sula, the son of Egibi; 35 shekels which have been mortgaged to Tabnea, the son of Nebo-yusallim, the son of Sin-sadunu, and 20 shekels which are due from Tasmetum-ramat, the daughter of Arad-Bel, the son of Egibi, as well as a field producing 48 _qas_ of seed on the canal of Kish. As regards the maneh and 56 shekels belonging to Gugûa, which, in the absence of her eldest son, Ea-zir-ibni, she has divided between her younger sons, Nebo-akhi-bullidh, Nergal-ina-esi-edher, Itti-Samas-baladhu, and Ninip-pir-_utsur_, Ea-zir-ibni shall have no claim to them. Gugûa has delivered to Ea-zir-ibni, her eldest son, one maneh, now in the hands of Nebo-akhi-iddin, 55 shekels in the hands of Tabnea, 50 shekels in the hands of Tasmetum-ramat, and a field bearing 48 _qas_ of seed. As long as Gugûa lives, Ea-zir-ibni shall give his mother Gugûa, as interest upon the property, food and clothing. Gugûa shall alienate none of it out of affection or will it away. Ea-zir-ibni shall not be disturbed in his possession.” The names of three witnesses are attached to the deed, which was “sealed in the presence of Babâ, the daughter of Nebo-zir-lisir, the son of Egibi.”

[4] Journal of the American Oriental Society, xviii., p. 167.

[5] We hear, however, of a “little girl of six years of age” being sold for 17 shekels in the thirteenth year of Nabonidos, but she was doubtless an orphan.

[6] Xxiii. 14.

[7] See above, p. 23 f.

[8] Schliemann, Ilios, pp. 471, 472. Mr. Head shows that the maneh in question is identical with the Babylonian silver maneh of 8,656 grains troy, or 561 grammes, though the latter is now more usually fixed at 546 grammes.

[9] In the Assyrian texts the term for “prison” is _bit kili_, of which _kisukku_ is also given as a synonym.

[10] Our learned author has been misled in this paragraph by the utterly erroneous copy and translation of Father Scheil. The letter reads “To Sin-iddinnam from Hammurabi. The goddesses of Emutbalim which are assigned to thee, the troops under the command of Tnuhsamar will bring to thee in safety. When they reach thee, with the troops which thou hast destroy the people, and the goddesses to their dwellings let them bring in safety.”—CR.

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